TOWN OF BOXBOROUGH

ZONING BYLAW

A true copy attest:

Amended through
Annual Town Meeting
May 19, 2026

TABLE OF CONTENTS

ARTICLE 1. PURPOSE AND AUTHORITY 2
ARTICLE 2. ADMINISTRATION 3
ARTICLE 3. ESTABLISHMENT OF DISTRICTS 10
ARTICLE 4. USE REGULATIONS 12
ARTICLE 5. DIMENSIONAL REQUIREMENTS 27
ARTICLE 6. GENERAL REGULATIONS 32
ARTICLE 7. SPECIAL REGULATIONS 53
ARTICLE 8. SPECIAL DISTRICTS 70
ARTICLE 9. DEFINITIONS 81

ARTICLE 1. PURPOSE AND AUTHORITY

1.1 Purpose

The purposes of this Zoning Bylaw (Bylaw) are to lessen congestion in the streets; to conserve health, to secure safety from fire, flood, panic and other dangers; to provide adequate light and air; to prevent overcrowding of land; to avoid undue concentration of population; to encourage housing for people of all income levels; to facilitate the adequate provision of transportation, water, water supply, drainage, sewerage, schools, parks, open space and other public requirements; to conserve the value of land and buildings, including the conservation of natural resources and the prevention of blight and pollution of the environment; to encourage the most appropriate use of land throughout the Town; and to preserve and increase amenities by promulgating regulations to fulfill these objectives, , all as authorized but not limited by the provisions of the Zoning Act, G.L. c. 40A, as amended, and Section 2A of Chapter 808 of the Acts of 1975.

1.2 Authority

This Bylaw is enacted under the authority of Article 89 of the Amendments to the Constitution of the Commonwealth of Massachusetts and in accordance with G.L. c 40A, as amended.

1.3 Applicability

All buildings or structures erected, constructed, reconstructed, altered, enlarged, or modified, and the use of all premises in the Town, after the effective date of this Bylaw shall conform with the provisions of this Bylaw. No building, structure, or land shall be used for any purpose or in any manner other than as expressly permitted within the district in which it is located. Construction or operations under a building or special permit shall conform to any subsequent amendment of this Bylaw unless the use or construction is commenced within a period of twelve months after the issuance of the building permit, and in cases involving construction, unless construction is continued through to completion as continuously and expeditiously as is reasonable. Where this Bylaw imposes greater restrictions than those imposed by any other regulations, permits, restrictions, easements, covenants, or agreements, the provisions of this Bylaw shall control.

1.4 Separability

The invalidity of any section or provision of this Bylaw shall not invalidate any other section or provision herein.

ARTICLE 2. ADMINISTRATION

2.1 Enforcement

2.1.1 Building Permits. No permit or license shall be granted for a use of a building, structure, or land unless the use conforms in all respects with the provisions of this Bylaw. The Inspector of Buildings shall not issue a building permit without the written approval of a site plan by the Planning Board, where applicable, or unless 30 days lapse from the date of the close of the public hearing without action by the Planning Board under Section 2.5.

2.1.2 Inspector of Buildings. The Inspector of Buildings shall enforce this Bylaw and shall withhold a permit for the construction, alteration, or moving of any building or structure if the building or structure as constructed, altered, or moved would be in violation of this Bylaw.

2.1.3 Procedure. If the Inspector of Buildings is requested in writing to enforce this Bylaw against any person allegedly in violation of its regulations and they shall decline to act, the Inspector of Buildings shall notify, in writing, the party requesting enforcement of any action or refusal to act, and the reasons therefor, within fourteen days of receipt of the request.

2.1.4 Penalty. Any person who violates any provision of this Bylaw or any of the decisions of the Board of Appeals or Planning Board made under the provisions of this Bylaw shall be punished by a fine of $100 for the first offense, $200 for the second offense, $300 for the third offense, and $300 for each succeeding offense, in the absence of an express provision for another penalty. Each day that a violation continues shall constitute a separate offense.

2.2 Board of Appeals.

The Board of Appeals shall consist of five members and two associate members appointed by the Select Board for three-year staggered terms.

2.2.1 Powers. The Board of Appeals shall have the following powers:

(a) To hear and decide appeals under G.L. c. 40A, § 8, as amended.

(b) To hear and decide, under G.L. c. 40A, § 9, applications for special permits when the Board is designated as the special permit granting authority.

(c) To hear and decide, under G.L. c. 40A, § 6, applications for special permits to change, alter, or extend lawfully pre-existing non-conforming uses and structures.

(d) To hear and decide petitions for variances under G.L. c. 40A, § 10.

(e) To hear and decide applications for comprehensive permits for construction of

low- or moderate-income housing under G.L. c. 40B, §§ 20-23.

2.2.2 Use Variances. The Board of Appeals shall not grant use variances.

2.3 Special Permits

2.3.1 Special Permit Granting Authority. Either the Board of Appeals or Planning Board shall act as the Special Permit Granting Authority. Each use requiring a special permit in this bylaw shall specify the Special Permit Granting Authority. The requirements of this Section are applicable to any Special Permit Application required in this Bylaw other than those listed in Section 4.3, Nonconforming Uses and Structures, which follow the requirements MGL Chapter 40A Section 6.

2.3.2 Public Hearings. Special permits shall only be issued following public hearings held within time periods established by G.L. c. 40A, as may be amended.

2.3.3 Application. All special permit applications shall conform to the requirements of the Special Permit Granting Authority's Rules and Regulations.

2.3.4 Decision.

Following a public hearing in accordance with G.L. c. 40A, § 9 and 11 and subject to reasonable administrative rules and regulations, the Special Permit Granting Authority shall either approve, approve with conditions, or disapprove an application. Where the application also requires site plan approval under Section 2.5 and the Planning Board has approved the site plan with conditions, the Planning Board's conditions shall be incorporated into the issuance, if any, of a special permit by the Board of Appeals.

The Special Permit Granting Authority may grant a special permit only if it determines that the structure(s) or use(s) proposed will not have adverse effects which outweigh its benefits on either the town or the neighborhood, in view of the particular characteristics of the site and of the proposal in relation to that site. The determination shall include consideration of each of the following:

(a) Social and community needs served by the proposal;

(b) Traffic flow and safety;

(c) Adequacy of utilities and other public or private services, including storage or disposal of sewage, refuse or other wastes, and drainage or retention of surface water;

(d) Density of population, intensity of use, neighborhood character, and social structures;

(e) Impact on the natural environment;

(f) Impact on health;

(g) Potential fiscal impact, including tax contribution, diminution or enhancement of neighboring property values, and creation of new employment opportunities.

2.3.5 Amendment. In its decision, the Special Permit Granting Authority may reserve the power to amend the terms and conditions of a special permit on application of the owner, lessee, or mortgagee. All provisions of this Section 2.3 shall apply to any modification or amendment.

2.3.6 Conditions. The Special Permit Granting Authority may impose conditions, safeguards, and limitations on time or use to assure that the proposed structure or use will be in harmony with the purposes and intent of this Bylaw.

2.3.7 Lapse. All special permits shall lapse within two years (including the time required to pursue or await the determination of an appeal under G.L. c. 40A, § 17) from the grant of the permit if substantial use has not commenced except for good cause or, in the case of permits for construction, if construction has not begun except for good cause.

2.3.8 Recording. Upon approval of a special permit, the recipient shall comply with the provisions of G.L. c. 40A, § 11, and record the decision with the Middlesex South Registry of Deeds. Proof of recording shall be required of the recipient of a special permit prior to the issuance of any building permit or the beginning of construction.

2.4 Planning Board Associate.

The Planning Board and the Select Board jointly may appoint an associate member as provided for under G.L. c. 40A, § 9. The Planning Board Chairperson may designate an associate member to sit on the board for the purposes of acting on a special permit application in the case of absence, inability to act, or conflict of interest on the part of any member of the Planning Board, or in the event of a vacancy on the board. The term of an associate member shall be for three years.

Associate members may be removed for cause by the Planning Board upon written charges and after a public hearing. Vacancies shall be filled for unexpired terms in the same manner as in the case of original appointments.

2.5 Site Plan Approval

2.5.1 Purpose. The purpose of site plan approval is to promote public health, safety, and welfare by encouraging the laying out of parking, circulation, and buildings in a safe and convenient manner; to ensure that new developments are designed to protect and enhance the visual and environmental qualities of the Town; and to provide for adequate review of development plans that may have significant impacts on traffic, drainage, town services, environmental quality, and community character.

2.5.2 Applicability. The Planning Board shall be the Site Plan Approval authority. Site plan approval shall be required for:

(a) The creation of any structure used for commercial, business, industrial, office multifamily, municipal, institutional, utility, or recreational purposes;

(b) The construction, exterior alteration, relocation, occupancy, or change in use of any building or lot that results in the substantial alteration of an existing building or lot;

(c) The extension or expansion of any existing use. Expansion shall include any increase in floor space of 25 percent or more within a ten-year period, or;

(d) The resumption of any use discontinued for more than two years.

2.5.3 Waiver. Upon a written request by the applicant and review by the Planning Board, the Board may vote to waive the applicant's need to apply for Site Plan Approval if the Board determines the proposed changes to the building or lot are minimal and do not require site plan approval.

2.5.4 Exemptions. The following shall not require site plan approval:

(a) In an Industrial-Commercial or Office Park District, or a Business District, construction, alteration or expansion of a building with a gross floor area of less than 500 square feet a proposed expansion of less than 10 percent the existing gross floor area, including the basement, if applicable.

(b) In all districts, normal maintenance or repair of any building, accessory building, or structure.

(c) Customary home occupations.

(d) The construction or enlargement of any single-family dwelling or building accessory to a single-family dwelling.

2.5.5 Substantial Alteration. For purposes of this Section 2.5, substantial alteration to a building means alteration of a single building or a group of buildings under one ownership on the same lot or contiguous lots that results in an increase in gross floor area of either 500 square feet or 10 percent of the existing gross floor area, whichever is less. The calculation of substantial alteration shall be determined based upon the aggregate of all expansions undertaken within a consecutive five-year period.

Substantial alteration to areas for parking, loading or vehicular access shall mean a change in the layout or location of parking spaces, an increase in pavement area of more than 300 square feet, or any relocation, addition or change in driveways. Resurfacing shall not be construed as a substantial alteration unless it involves a change of surface material.

2.5.6 Submission Requirements. Applications and plans shall be filed by the petitioner in accordance with Planning Board Rules & Regulations for Site Plan Approval.

2.5.7 Decision

Site plan approval shall be granted upon determination by the Planning Board that new buildings or site alterations have been designed in the following manner, after considering the qualities of the specific location, the proposed land use, the proposed building form, grading, egress points, and other aspects of the development. Where the Planning Board renders a decision contrary to the recommendations of the Design Review Board, the Planning Board shall state the reasons in writing.

(a) The proposal shall comply with the purpose and intent of this Bylaw and with existing local and regional plans.

(b) The development shall be integrated into the existing terrain and surrounding landscape and shall be designed to protect abutting properties and community amenities. To the extent possible, building sites shall be designed to minimize the use of wetlands, steep slopes, floodplains, hilltops; minimize obstruction of scenic vistas from publicly accessible locations; preserve unique natural, scenic and historic features; minimize tree, soil and vegetation removal; and maximize open space retention.

(c) Architectural style shall be in harmony with the prevailing character and scale of buildings in the neighborhood and the Town through the use of appropriate building materials, screening, breaks in the roof and wall lines, and other architectural techniques. Proposed buildings shall relate harmoniously to each other.

(d) Adequate measures shall be proposed to prevent pollution of surface and ground water, to minimize erosion and sedimentation, to prevent changes in groundwater levels, to minimize potential for flooding, and to provide for stormwater drainage consistent with the functional equivalent of the Planning Board's Subdivision Rules and Regulations.

(e) Roadways and circulation system shall be designed to promote convenience and safety for both pedestrians and vehicles. Access roads by which the proposed development is reached shall be adequate in width, grade and construction to carry, without danger or congestion, the additional traffic that is generated from the development.

(f) Adequate buffers shall be provided to protect abutting properties from lighting, sight, sound, dust, and vibration.

(g) Adequate facilities shall be provided for water supply and for handling and disposal of waste and other production by-products.

(h) Any new building construction or other site alteration shall provide adequate access to each structure for fire and service equipment.

(i) Architectural Standards in the Town Center District Only. Materials shall be harmonious with existing buildings. In the interest of maintaining a sense of history, vertical siding shall be discouraged and synthetic siding shall imitate the character and dimensions of traditional clapboards. Masonry block buildings should be faced in an appropriate material, such as horizontal wooden siding or brick of a traditional red color. Buildings shall fit in with existing architecture in terms of height, massing, roof shapes, and window proportions.

2.5.8 Conditions

The Planning Board may impose reasonable conditions, even at the expense of the applicant, to ensure conformance, including conditions, safeguards, and limitations on time and use upon the applicant, developer or operator(s) of the site as is deemed necessary to assure harmony with the intent of the Zoning Bylaw, including, but not limited to, the following:

(a) Requirements that the front, side, or rear yard be greater than the minimum required by this Bylaw;

(b) Requirements that parking areas or other parts of the premises be screened from adjoining properties or from the street by walls, fences, planting, or other devices;

(c) Modification of the location or of the exterior features of any and all structures on the site; and,

(d) Limitation on the hours of operation of outdoor lighting.

2.5.9 Bonding. Prior to the issuance of an occupancy permit, the Planning Board may require a performance guarantee to ensure compliance with the plan and conditions set forth in their decision.

2.5.10 Lapse. Any site plan approval issued under this Section 2.5 shall lapse within two years if a substantial use thereof has not commenced except for good cause.

2.5.11 Recording**.** Upon approval of a site plan, a certificate shall be issued by the Planning Board containing the name and address of the owner, identifying the land affected, and certifying that site plan approval has been granted and stating any conditions thereof. No site plan approval shall take effect until a copy of the certificate has been filed with the Middlesex South Registry of Deeds in accordance with G.L. c. 40A, § 11. Proof of recording shall be required of the recipient of site plan approval prior to the issuance of any building permits or the beginning of construction.

2.5.12 Appeal. Any appeal of a Planning Board decision under this Section 2.5 shall be in accordance with G.L. c. 40A, s. 17.

2.5.13 Regulations. The Planning Board may periodically adopt or amend rules and regulations for the implementation of this Section 2.5, by majority vote of the board.

2.6 Design Review

2.6.1 Purpose. The intent of this section is to provide for a detailed review of certain structures in the Town; to enhance the natural and aesthetic qualities of the Town; to preserve the value of land and buildings; and to protect and preserve the historic and cultural aspects and heritage of the Town.

2.6.2 Design Review Board. The Design Review Board shall be composed of five residents of the town who shall be appointed by the Select Board for three-year terms as designated by the respective organizations as follows:

(a) One member of the Planning Board or their designee;

(b) One member of the Select Board or their designee;

(c) One member of the Historical Commission or their designee; and

(d) Two members representing the community at-large, who shall be elected by the three designees as listed above and brought forward to the Select Board for appointment.

Partial terms shall be designated by the respective board or commission or elected in the case of the at-large member, and duly appointed by the Select Board.

2.6.3 Applicability. Design Review in accordance with this section shall be required for:

(a) new construction, exterior alteration, or expansion of buildings in the Town Center District (except for pre-existing single-family dwellings as specified in Section 4.4.2(a)) that is subject to site plan approval under Section 2.5 or is subject to a special permit, and;

(b) new or modified signs in the Town Center District.

2.6.4 Procedures. All applications for design review shall conform to the requirements stated in Design Review Board's Design Guidelines.

2.6.5 Design Attributes and Guidelines. The Design Review Board shall review projects based on the following attributes:

(a) Rhythm of solids and voids

(b) Façade and openings

(c) Massing and spacing of buildings

(d) Placement and orientation of buildings within a lot

(e) Architectural details, materials, and color

(f) Roof slopes and shapes

(g) Signage and lighting

(h) Landscaping

The Design Review Board shall publish and make available to the public, on request, booklet of guidelines further detailing the specific Design Attributes cited above to effectuate the purposes of this section. The Zoning Bylaws will take precedence over any prepared guidelines.

ARTICLE 3. ESTABLISHMENT OF DISTRICTS

3.1 Districts

3.1.1 Types of Districts

The Town of Boxborough is divided into the following districts:

(a) Agricultural-Residential (AR)

(b) Residential-1 (R1)

(c) Business (B)

(d) Business-1 (B1)

(e) Office Park (OP)

(f) Town Center (TC)

(g) Industrial-Commercial (IC)

(h) Aquifer Protection Overlay

(i) Flood Plain Overlay

(j) Wireless Communication Facilities Overlay

(k) Recreational Marijuana Establishments Overlay

3.1.2 Location of Districts. Districts, with the exceptions of the Aquifer Protection, Flood Plain, Recreational Marijuana Establishments, and Wireless Communication Facilities Districts, which are individually mapped, are located and bounded as shown on a map entitled "Zoning Map of Boxborough, Massachusetts" as amended from time to time and on file with the Town Clerk.

ZONING MAP - SEE APPENDIX B

ARTICLE 4. USE REGULATIONS

4.1 Use Regulations

4.1.1 General

No structure shall be erected or used nor shall land be used except in accordance with Section 4.1.3, "Use Regulation Schedule," or in Section 4.2, "Accessory Buildings and Uses," unless exempted by Section 4.2, or by statute. Where a use is not specifically mentioned in Section 4.1.3, that use shall be prohibited.

4.1.2 Applicability. When an activity might be classified under more than one of the following uses, the more specific classification shall govern; if equally specific, the more restrictive shall govern.

4.1.3 Use Regulation Schedule for Principal Uses (For Accessory Uses see Section 4.2).

Symbols employed below shall mean the following:

Y - a permitted use.
N - an excluded or prohibited use.
PB - a use authorized under special permit granted by the Planning Board, as provided under Section 2.3.
ZBA - a use authorized under special permit granted by the Zoning Board of Appeals, as provided under Section 2.3.

4.1.3.a RESIDENTIAL USES **DISTRICTS**

	AR	R1	B	B1	OP	TC	IC
Single-family dwelling	Y	Y	N	N	N	ZBA	N
Two-family dwelling	N	N	N	PB[1]	N	ZBA	N
Conversion to two-family dwelling of dwelling in existence on 5/3/65	ZBA[13]	ZBA	Y	PB[1]	N	Y	ZBA
Multi-family dwelling	N	Y[1]	N	PB[1]	N	N	N
Two-family dwelling, reserved exclusively for elderly occupancy	PB	N	N	PB[1]	N	PB	N
Bed and Breakfast	ZBA[1]	ZBA[1]	N	N	N	ZBA[1]	N
Trailer or mobile home (but see Section 7.6)	N	N	N	N	N	N	N
Dwelling unit incidental to principal commercial use	Y	Y	N	N	N	ZBA	N

4.1.3.b EXTENSIVE USES **DISTRICTS**

	AR	R1	B	B1	OP	TC	IC
Exempted farm, under G.L. c. 40A, § 3	Y	Y	Y	Y	Y	Y	Y
Farm	Y	Y	Y[14]	Y[14]	Y[14]	Y	Y[14]
Ski Tow and accessory structures	ZBA	ZBA	Y	Y	ZBA	N	ZBA
Riding school with less than 20 horses	ZBA	ZBA	Y	Y	ZBA	N	ZBA
Private golf course, at least 9 holes, average 300 yds. per hole	ZBA	ZBA	Y	Y	ZBA	N	ZBA

4.1.3.b EXTENSIVE USES **DISTRICTS**

	AR	R1	B	B1	OP	TC	IC
Public or private facility providing Tennis, swimming or skating	ZBA	ZBA	Y	Y	ZBA	N	ZBA
Commercial earth removal	N	N	N	N	N	N	Y[2]
Conservation area, public park	Y	Y	Y	Y	Y	Y	Y
Airports, heliports, or like facilities (principal or accessory use)	N	N	N	N	N	N	N

4.1.3.c UTILITY AND PUBLIC SERVICE USES **DISTRICTS**

	AR	R1	B	B1	OP	TC	IC
Public utility	ZBA	ZBA	Y	Y	ZBA	ZBA	ZBA
Small-Wireless Facilities located outside of a right of way	PB[22]	PB[22]	PB[22]	PB[22]	PB[22]	PB[22]	PB[22]
Wireless Communication Facility	--------See Footnote 17----------						
Educational, governmental or religious use	Y	Y	Y	Y	Y	Y	Y
Philanthropic use	N	N	Y	Y	Y	Y	N
Public Safety[26]	Y	Y	Y	Y	Y	Y	Y

4.1.3.d BUSINESS/INDUSTRIAL USES **DISTRICTS**

	AR	R1	B	B1	OP	TC	IC
Convalescent, nursing, or rest home	ZBA	ZBA	Y	Y	ZBA	Y	ZBA
Assisted Living Facility	N	N	Y	Y	ZBA	N	ZBA

4.1.3.d BUSINESS/INDUSTRIAL USES **DISTRICTS**

	AR	R1	B	B1	OP	TC	IC
Day care center	Y	Y	Y	Y	Y	Y	Y
Animal Shelter[19]	N	N	N	N	N	N	ZBA [12,18]
Hospital, Medical Center, sanatorium, funeral home	N	N	Y[3]	Y[3]	ZBA [3]	N	ZBA [3]
Sports or athletic facility or full-sized public golf course	N	N	Y	Y	ZBA	N	ZBA
Club	N	N	Y	Y	ZBA	N	ZBA
Professional or business office	N	N	Y	Y	Y	Y	Y
Kennel	N	N	ZBA	ZBA	ZBA	ZBA	ZBA
Veterinary	N	N	Y	Y	Y	Y	ZBA
Research & Development	N	N	Y[3]	Y[3]	Y[3]	N	ZBA [3]
Health Care Facility	N	N	Y[3]	Y[3]	Y[3]	Y[3]	Y[3]
Laboratory	N	N	Y[3]	Y[3]	Y[3]	N	ZBA [3]
Bank	N	N	Y	Y	Y	Y[4]	Y
Hotel, motel, inn	N	N	Y	Y	Y	N	ZBA
Conference center	N	N	N	N	Y	N	ZBA
Restaurant	N	N	ZBA[5, 23]	ZBA[5, 23]	ZBA[23]	ZBA[5, 23]	ZBA[23]

4.1.3.d BUSINESS/INDUSTRIAL USES **DISTRICTS**

	AR	R1	B	B1	OP	TC	IC
Fast-food restaurant	N	N	N	N	N	N	N
Service shops (salon, barber, dry cleaner)	N	N	Y	Y	ZBA	Y[6]	ZBA
Craft shop or art studio	N	N	Y	Y	ZBA	Y[7]	ZBA
Printing shop/Copy Shop/ Word Processing center	N	N	Y[3]	Y[3]	Y[3]	N	Y[3]
Retail stores containing more than 25,000 square feet gross floor area	N	N	N	N	N	N	N
Retail stores containing less than 25,000 square feet gross floor area	N	N	Y	Y	N[17]	Y[8]	N[17]
Adult Use	N	N	N	N	N	N	ZBA
Automobile service station	N	N	N	N	ZBA	N	ZBA
Repair garage, auto detailing garage or like facility	N	N	ZBA	ZBA	ZBA	N	ZBA
Self-storage facility	N	N	N	N	N	N	Y
Car Sales	N	N	ZBA [19]	ZBA [19]	ZBA [19]	N	ZBA [19]
Repair shop	N	N	Y	Y	ZBA	N	ZBA
Warehouse	N	N	N	N	N	N	Y[9]
Specialty Food Shop containing less than or equal to 3,000 feet of gross floor area	N	N	Y[20]	Y[20]	Y[21]	Y[21]	N
Specialty Food Shop containing more than 3,000 feet of gross floor area	N	N	ZBA [20]	ZBA [20]	Y	ZBA [20]	N

4.1.3.d BUSINESS/INDUSTRIAL USES DISTRICTS

	AR	R1	B	B1	OP	TC	IC
Wholesale operations	N	N	Y[9]	Y[9]	ZBA [9]	N	Y[9]
Light Manufacturing	N	ZBA [3,10]	Y[3,11]	Y[3,11]	Y[3]	N	Y[3]
Manufacturing	N	N	N	Y[3,11]	N	N	Y[3]
Building Trade	N	N	ZBA	ZBA	N	N	Y
Landscaping Services	N	N	Y[21]	Y[21]	N	N	Y[21]
Landscaping Contractors	N	N	ZBA	ZBA	N	N	Y
Registered Marijuana Dispensary	N	N	N	N	N	N	ZBA
Roof-Mounted Solar Energy Systems	Y	Y	Y	Y	Y	Y	Y
Small-Scale Ground-Mounted Solar Energy System (2,250 s.f. or less)[25]	Y[24]	Y[24]	Y	Y	Y	N	Y
Medium-Scale Ground-Mounted Solar Energy System[25]	N	PB	Y	Y	Y	N	Y
Large-Scale Ground-Mounted Solar Energy System[25]	N	N	PB	PB	PB	N	PB

FOOTNOTES

[1] See Section 5.3: Intensity Regulations.

[2] In accordance with the Earth Removal Bylaw.

[3] Provided these operations do not use Toxic or Hazardous Materials except as an incidental part of their business. The operation shall provide adequate facilities for storage, containment, and safety in accordance with state and federal regulations for the toxic or hazardous materials used. Toxic or Hazardous Wastes shall be stored and disposed of in accordance with state regulations including, but not limited to, 310 CMR 30.000 and federal regulations including, but not limited to, the Resource Conservation and Recovery Act. Hazardous Wastes shall be disposed of off-site by state-registered hazardous waste transport and disposal contractor(s).

[4] Drive-through windows or drive-through ATMs are prohibited.

[5] Hours of operation 6:00 a.m. to 11:00 p.m. only. Serving or use of disposable utensils, drive-through windows, or take out counters of any kind are expressly prohibited.

[6] No dry cleaning shall be done on the premises.

[7] Hours of operation 6:00 a.m. to 10:00 p.m. only.

[8] Hours of operation per footnote 7; all sale and display of merchandise to be within a building. Mixed-use buildings in the Town Center District shall have only retail on the ground floor. (See Section 9.2 for definitions).

[9] Other than hazardous materials. This restriction includes liquid petroleum products, except for those petroleum products stored in an approved manner for on-site heating and refueling.

[10] Provided that five or fewer persons are employed therein.

[11] Provided the major portion of the goods produced is sold to the consumer on the premises by the producer.

[12] This use shall only be located in the Industrial/Commercial Zone District along Codman Hill Road.

[13] The conversion shall not be allowed where the proposed lot is less than 40,000 square feet in area, or where less than 600 square feet of floor space would be provided for each dwelling unit therein.

[14] Dwellings shall be permitted as accessory buildings only in the Agricultural-Residential, Residential 1, and Town Center Districts.

[15] Intentionally left blank.

[16] See Section 7.3: Wireless Communications Facilities.

[17] Except retail stores customarily incidental and subordinate to the principal use of the premises.

[18] At any given time, an animal shelter may house no more than 50 animals over the age of 6 months, and not more than 5 litters of puppies and 5 litters of kittens.

[19]See Section 4.8.

[20] A portion of those items prepared or sold in a Specialty Food Shop shall be sourced locally from Massachusetts based farms or food provisioners. Food items prepared or sold may be packaged for takeout or an establishment may include seating for on-site consumption. Food items may not be sold directly to persons remaining in their vehicles, and drive-through windows are prohibited.

[21] There may be small displays of materials for review by customers, but there is no storage or distribution of bulk material at the site.

[22] See Section 7.2: Small Wireless Facilities Outside of the Public Right of Way.

[23] See Section 4.9: Special Permits for Restaurants.

[24] The Planning Board, by special permit, may reduce setbacks from lot lines for the Solar Layout of a Small-Scale Ground-Mounted Solar Energy System to those of an accessory structure, if such adjustments enhance the overall site design and still provide protection to adjacent properties.

[25] To avoid "project segmentation" (i.e., project phasing), in determining the size of a Ground-Mounted Solar Energy System, the area calculated shall be the aggregate area (square footage) of all such systems on contiguous parcels of land held in common ownership. Any proposed increase in area of existing arrays that would cause the Solar Energy System, in total, to meet a different size definition (i.e., increase from "Small" to "Medium" or "Medium" to "Large") shall trigger the requirements of the larger size definition.

[26] Use must be owned or operated by the Town of Boxborough. Site Plan approval required for any use per Section 2.5.2a of this Bylaw.

4.1.4 Prohibited Uses. No building, structures or premises shall be used for laboratories or manufacturing that use Biological Agents requiring Biosafety Level 3 (BSL-3) or Biosafety Level 4 (BSL-4) containment (see Section 9.2 "Biosafety Level" definition).

4.2 Accessory Buildings and Uses

4.2.1 General. Any use permitted as a principal use is also allowed as an accessory use in the same district, as are others customarily accessory and incidental to permitted principal uses. Certain accessory uses shall be subject to special regulations, as follows:

(a) Home Occupation. A home occupation conducted within the dwelling unit or an accessory building by a resident occupant and employing no persons other than resident occupants on the premises is permitted, provided that no display of goods is visible from any street, and no more than an average of eight round trips per day are generated by the home occupation. The Board of Appeals may authorize by special permit a home occupation which employs up to two non-resident occupants on the premises in accordance with the following criteria:

1) No display of goods shall be visible from any street;

2) No more than an average of 16 round trips per day are generated by the home occupation; and

3) A request for renewal of a home occupation permit shall be submitted every four years. The Board of Appeals may renew a permit with or without a new public hearing.

(b) Storage of camping trailer or travel trailer, not used as a dwelling, is permitted.

(c) Accessory Scientific Uses. Uses, whether or not on the same parcel as activities permitted as a matter of right, which are necessary in connection with scientific research or scientific development or related production, may be permitted upon the issuance of a special permit by the Board of Appeals, provided that the board finds that the proposed use does not substantially derogate from the public good.

(d) Accessory uses in the Town Center district which produce or use hazardous materials in quantities greater than associated with normal facility cleaning or maintenance procedures are prohibited.

4.2.2 By Right Accessory Dwelling Unit (ADU). An ADU shall be allowed *by right* within a dwelling or in an accessory structure. The Inspector of Buildings may grant a building permit and occupancy certificate for an ADU subject to the following regulations:

(a) The ADU shall be within the building containing the principal dwelling unit, or be within a detached accessory structure that conforms to the minimum setbacks for Accessory Dwellings, as defined in 760 CMR 71.03(3)(b)(2).

(b) No more than one ADU may be located on a lot.

(c) The ADU shall be the lesser of ½ the gross floor area of the principal dwelling or 1,000 SF.

(d) Any addition to an existing dwelling needed to create an ADU shall aggregate to be no larger than the lesser of ½ the gross floor area of the existing principal dwelling or 1,000 SF.

(e) The domestic water and wastewater disposal system shall be adequate to serve both the existing dwelling and the ADU.

(f) Not more than one additional parking space shall be required for an ADU that is more than ½ mile from a commuter rail station, or bus station.

(g) Curb cuts for the lot shall be limited to those already in existence.

(h) Use or "Occupancy" of an ADU and associated dwellings as a "Short Term Rental", as these terms are defined by G.L. c. 64G, § 1 is prohibited.

(i) By right siting of an ADU is allowed only within single family residential zoning districts, as defined in 760 CMR 71.02.

4.3 Nonconforming Uses and Structures

4.3.1 General

Except as may otherwise be provided by law, this Bylaw shall not apply to structures or uses lawfully in existence or lawfully begun, or to a building or special permit issued before the first publication of notice of the public hearing on such Bylaw required by MGL c. 40A, § 5, but shall apply to a building or special permit issued after the first notice of said public hearing, to any reconstruction, extension or structural change of such structure and to any alteration of a structure begun after the first notice of said public hearing to provide for its use for a substantially different purpose or for the same purpose in a substantially different manner or to a substantially greater extent, except where alteration, reconstruction, extension or structural change to a single or two-family residential structure does not increase the non-conforming nature of said structure.

4.3.2 A special permit must be obtained from the Board of Appeals pursuant to the provisions of Section 2.3 before any change, alteration, or extension of a nonconforming use or structure may be made. No permit will be granted unless the Board of Appeals shall have found that such change, alteration, or extension shall not be substantially more detrimental to the neighborhood than the existing nonconforming use.

4.3.3 No change, alteration, or extension of any nonconforming use or structure shall result in an extension of the structure or an increase in the use to more than 100% in excess of the gross floor area of the structure or of the total area of the use existing or begun when this Bylaw was adopted.

4.3.4 This section shall not apply to billboards, signs, and other advertising devices subject to the provisions of MGL c. 93, § 29-33, inclusive, and to MGL c. 93D.

4.3.5 Construction or operations under a building or special permit shall conform to any subsequent amendment of this Bylaw unless the use or construction is commenced within a period of not more than 6 months after the issuance of the permit and in cases involving construction, unless such construction is continued through to completion as continuously and expeditiously as is reasonable.

4.3.6 Wherever a lawful nonconforming use or structure has not been used as such for twenty-four consecutive months or more, it shall not be resumed or re-established and all future uses shall conform to this Bylaw.

4.3.7 To the maximum extent permitted by law, wherever a nonconforming use or structure has been changed to a more conforming use, it shall not again be changed to a less conforming use.

4.3.8 If a nonconforming structure is destroyed by fire or other casualty, then any rebuilding or restoration can take place as of right so long as the rebuilding or restoration conforms in size, configuration, and extent of use to that which existed prior to the destruction or damage and so long as said reconstruction shall have been begun within one year of such casualty; otherwise, no such building or restoration shall take place without a special permit from the Board of Appeals as herein below provided.

4.3.9 Any permitted restoration or rebuilding shall be substantially completed within two years after the issuance of the special permit therefor, or such permission shall lapse.

4.4 Special Permits in Town Center District

4.4.1 In addition to the standards set forth in Section 2.3.4 of this Bylaw, when granting a Special Permit for uses in the Town Center District, the applicant shall demonstrate to the Special Permit Granting Authority that the benefits to the Town in allowing the requested use outweigh any adverse effects. Design Review in accordance with Section 2.6 will be conducted prior to granting Special Permits, (but need not be redundant if already accomplished as part of the site plan review).

Where the Special Permit Granting Authority shall render a decision contrary to the recommendations of the Design Review Board, the Special Permit Granting Authority shall state the reasons in writing. Additionally, the following shall also be considered in granting special permits in the Town Center District:

(a) The proposed use shall be located near uses which are compatible with the proposed use, and nearby uses will be likely to benefit from, rather than be damaged by, having the proposed activity nearby.

(b) Any retail services shall be designed to serve the town's population, rather than the region.

(c) The proposed use shall contribute to the diversity of services and land uses available in the town center.

(d) The design of the buildings shall be in harmony with the prevailing character and scale of buildings in the neighborhood and the town through the use of appropriate building materials, screening, breaks in the roof and wall lines and other architectural techniques. The building design shall be responsive to the rural/historic character of the town and the buildings shall be compatible with traditional New England architecture.

4.4.2 Single-Family Dwellings and Two-Family Dwellings Reserved Exclusively for Elderly Occupancy in the Town Center District

In order to promote mixed uses in the Town Center District and to discourage the conversion of a majority of undeveloped Town Center land to residential uses, single- family dwellings or two-family dwellings reserved exclusively for elderly occupancy shall only be permitted in the Town Center District by special permit in conjunction with non-residential development in a Mixed Use Development.

(a) Applicability

The Planning Board shall be the special permit granting authority for single-family dwellings or two-family dwellings reserved exclusively for elderly occupancy in the Town Center District. Single-family dwellings in existence prior to the effective date of this Bylaw shall not be subject to this Bylaw nor shall any extension or alteration to any existing single-family dwelling or a single-family dwelling previously approved under this Bylaw, provided that any extension or alteration complies with the applicable dimensional requirements of the Zoning Bylaw. Building permits for new single-family dwellings or two-family dwellings reserved exclusively for elderly occupancy may be withheld unless the dwellings comply with the provisions of the Bylaw and any special permit rendered hereunder.

New single-family dwellings or two-family dwellings reserved exclusively for elderly occupancy may only be permitted in the Town Center District as part of a Mixed Use Development. Mixed Use Developments may include any use permitted as of right in the Town Center District, or any use for which a special permit has been granted by the Board of Appeals.

(b) **Criteria.** Prior to the issuance of a special permit for single-family dwellings or two-family dwellings reserved exclusively for elderly occupancy in a Mixed Use Development, the Planning Board shall find the following:

1) The proposal is consistent with the Master Plan;

2) The proposal meets all the applicable dimensional requirements of the Zoning Bylaw;

3) The proposed commercial uses are compatible the residential uses;

4) No more than 30 percent of the Gross Floor Area of the Mixed Use development may be used for residential purposes;

5) The commercial development will be constructed at the same or greater pace than the residential development on a square footage basis;

6) Each single-family dwelling is located on its own lot;

7) Buildings meet the architectural standards for the Town Center District.

4.5 Special Permits for Two-family Dwelling Reserved Exclusively for Elderly Occupancy

The Planning Board shall be the Special Permit Granting Authority for two-family dwellings reserved exclusively for elderly occupancy. In making its determination with respect to a special permit for a two-family dwelling reserved for elderly occupancy, the Special Permit Granting Authority shall find that the proposal meets the following criteria:

(a) Occupancy is deed restricted to persons 55 years of age or older or to a person 55 years of age or older and their spouse or live-in

aid. (b) There are no more than two units per building.

(c) The maximum number of buildings allowed shall be limited to the number of houses that could be created in a subdivision on the site in full conformance with all zoning, subdivision and other applicable state and local regulations, and without the proposal of extraordinary engineering measures. Where the maximum number is in doubt or dispute, the determination of the Planning Board shall be conclusive for all purposes.

(d) The proposed site contains a minimum of 10

acres. (e) The minimum upland area is 5 acres.

(f) The maximum density is 2 units per 60,000 square feet.

(g) Traffic generation is similar or less than what would be generated if the land were developed into single-family dwellings.

(h) The architectural style of the units is similar in character and appearance to other dwellings in the neighborhood.

(i) Adequate landscaped buffers are provided around the development.

4.6 Special Permits for Residential Uses in the B1 District

4.6.1 General

The Planning Board shall be the Special Permit Granting Authority for residential uses in the B1 district. Prior to the issuance of a special permit for a residential use in the B1 district, the Special Permit Granting Authority shall, in addition to other requirements specified in Section 2.3.4, find that the proposal meets the following criteria and conditions:

(a) The proposed residential use in the B1 district is compatible with existing or allowed business uses;

(b) Adequate landscaped and natural buffers are provided, and, where appropriate, physical buffers, such as berms, fences or walls are proposed between residential and commercial uses;

(c) The proposal, to the maximum extent possible, protects the existing tree canopy on Massachusetts Avenue (Route 111);

(d) The proposal retains or preserves unique natural, historical or cultural resources located on the site, if any;

(e) The proposal conforms, to the maximum extent possible, the applicable standards set forth in Section 2.6 Design Review under Section 2.6.5 Design Attributes and Guidelines.

4.6.2 Conditions

The Board shall require, as a condition of a special permit granted under this section a reference to the Business 1 Zone District, its uses and characteristics in the Special Permit and in any deed, condominium or homeowners documents developed as a part of the residential project.

Additionally, the Board may place additional conditions in the Special Permit to ensure conformance with the Design Guidelines in Section 2.6.5 and compatibility with the surrounding area.

4.7 Special Permits for Conversions in the Agricultural-Residential District

The Board of Appeals shall be the Special Permit Granting Authority for the conversion of dwellings in the Agricultural-Residential District. The conversion of dwellings in any Agricultural-Residential District, shall keep the external appearance of the structure consistent with that of a single family dwelling.

4.8 Special Permit for Car Sales

The Board of Appeals shall be the Special Permit Granting Authority for car sales uses. In making its determination with respect to a special permit for “car sales” in the Business, Business 1, Office Park or Industrial-Commercial District, the Board of Appeals shall, in addition to other requirements specified in Section 2.3.4 of this Bylaw find the following:

(a) No more than 20 vehicles will be stored or for sale on the

site; (b) No cars will be parked in the front yard setback area;

(c) Only passenger vehicles or light trucks will be for sale on the

site; (d) No large trucks or campers will be for sale on the site;

(e) Outdoor display areas contain adequate landscape buffers.

4.9 Special Permits for Restaurants

The Board of Appeals shall be the Special Permit Granting Authority for restaurant uses. In making its determination with respect to a special permit for a restaurant in the Business or Business1 District, the Board of Appeals shall, in addition to other requirements specified in Section 2.3.4 of this Bylaw, consider each of the following factors before the issuance of a special permit:

(a) Suitability of the site for the proposed restaurant.

(b) The effect on traffic flow and safety and the impact of traffic on neighboring streets.

(c) Compatibility of proposed building design, scale, and size with community & neighborhood character.

(d) Adequacy of plans to reduce or eliminate noise, smells, and

litter. (e) Sale of food for take-out service is expressly prohibited.

4.10 Special Permit for Alternate Access

The Planning Board shall be the Special Permit Granting Authority for the issuance of special permits in the case where an applicant requests to access a lot through a portion of the same lot which is not the legal frontage for the lot. In addition to the standards set forth in Section 2.3.4 of this Bylaw, the Special Permit Granting Authority shall also consider each of the following factors before the issuance of a special permit:

(a) Whether alternate access shall be along a way currently maintained by a Town, County, or State, or along ways shown on the Definitive Plans of approved subdivisions which have been secured or constructed and the street has been determined by the Planning Board to provide adequate access for fire, police, and emergency vehicles.

(b) Whether the minimum width of the lot from the alternate access road to the building shall be more than 50 feet.

(c) Whether the proposed driveway location minimizes impacts to wetlands compared to a driveway access through the legal frontage.

(d) Whether the proposed driveway provides a safer alternative than a driveway through the legal frontage in that it reduces the number of curb cuts on more heavily traveled roads; and it has adequate sight distances.

(e) Whether the proposed driveway preserves shade trees and stone walls along designated scenic roads.

(f) Whether in the opinion of the Planning Board, the issuance of a special permit will not allow the creation of more building lots than would be allowed without the special permit.

4.11 Special Permit for Adult Uses

The Board of Appeals shall be the Special Permit Granting Authority for Adult Uses. Any proposed Adult Use shall comply with the following public safety standards:

(a) No adult use special permit shall be issued to any person convicted of violating the provisions of G.L. c. 119, § 63 or G.L. c. 272, § 28;

(b) No lot containing an Adult Use shall be located within 750 feet of an Agricultural-Residential District or an existing residential use;

(c) No lot containing an Adult Use shall be located within 750 feet of the Town line;

(d) No lot containing an Adult Use shall be located within 1,500 feet of any building or lot owned and operated by the Acton-Boxborough Regional School District, or any public school operated by any abutting Town or Regional School District;

(e) No lot containing an Adult Use shall be located within 1,000 feet of any other lot containing an Adult Use. The hours of operation of an Adult Use shall be limited as follows:

1) adult bookstore, adult paraphernalia store, adult video store or similar Adult Use between the hours of 9:00 a.m. - 9:00 p.m., 12:00 noon - 9:00 p.m. on Sunday; or

2) adult motion picture theater, adult entertainment or similar Adult Use between the hours of 3:00 p.m. and 12:00 midnight.

(f) The special permit granting authority may impose reasonable conditions, safeguards, and limitations on time and use of any special permit granted for an adult use, and shall specify that any special permit granted shall be personal to the applicant, shall not run with the land, and shall expire upon expiration of the applicant's lease or upon sale or transfer of the property.

(g) A special permit issued for an adult use shall automatically expire after a period of three calendar years from its date of issuance and shall be automatically renewable for successive three-year periods thereafter, provided that a written request for each renewal is made to the special permit granting authority prior to expiration, and that no objection to renewal is made and sustained by the special permit granting authority based upon the public safety factors and standards applied at the time that the original special permit was granted.

4.12 Special Permits for Medium or Large-Scale Ground Mounted Solar Energy

The Planning Board shall be the Special Permit Granting Authority for the issuance of special permits in the case where an applicant requests to install a Medium or Large-Scale Ground-Mounted Solar Energy System. In addition to the standards set forth in Section 7800 of this Bylaw, the Special Permit Granting Authority shall also consider each of the following factors before the issuance of a special permit:

(a) Suitability of the site for the proposed Medium or Large-Scale Ground-Mounted Solar Energy System;

(b) Adequate landscaped and natural buffers are provided around the installation. Where applicable, physical buffers, such as berms and/or fences are proposed between residential and installations of Medium or Large-Scale Ground- Mounted Solar Energy System;

(c) The proposal, to the maximum extent possible, protects the existing tree canopy and stone walls on Massachusetts Avenue (Route 111) and along designated scenic roadways;

(d) The proposal retains and/or preserves unique natural, historical or cultural resources located on the site, if any.

ARTICLE 5. DIMENSIONAL REQUIREMENTS

5.1 General Dimensional Requirements

5.1.1 No structure shall be erected or used, premises used, or lot changed in size or shape except in conformity with the requirements of this section, unless exempted by this Bylaw or by statute.

5.1.2 Dimensional Schedule. No building hereafter may be erected, occupied as a dwelling or placed on a lot having less than the minimum requirement set forth below; nor shall any existing lot be changed as to size or shape so as to result in a violation of the requirements set forth below:

	DISTRICTS						
	AR	**R1**	**B**	**B1**	**OP**	**TC**	**IC**
Minimum lot area (sq. ft. x 1000)	60	80	40	40	160	40	80
Minimum upland lot area sq. ft. x 1000	20	20	20	20	--	20	--
Minimum upland lot area % of total lot area	--	--	--	--	20%	--	20%
Minimum lot frontage (ft.)[9]	150[6]	150	100	100[8]	200	100	200
Minimum lot width (ft.)[7]	100	125	100	100	125	100	125
Minimum front setback (ft.)	40	40	50	50[8]	50	25[2]	50
Minimum side setback (ft.)	30	30	30	30[8]	50	20[2]	50
Minimum rear setback (ft.)	40	40	40	40[8]	50	20[2]	50
Maximum stories	3	3	3	3	3	3	3
Maximum building height (ft.)	45	45	45	30	45	45	45
Maximum lot coverage (%) by buildings, structures, and impervious surfaces	--	--	50	50	30[1]	35[3]	30[1]
Maximum Floor area ratio	--	--	--	--	0.1	--	0.1
Gross Floor Area (Sq Ft)	--	--	--	--	--	8,000[5]	--
Minimum Open Space (%)	--	--	--	--	--	65[4]	--

Footnotes

[1] Deleted at Annual Town Meeting 2022

[2] From lot line. Minimum setbacks from Stow Road and Burroughs Road are 50 feet. Minimum setbacks from Massachusetts Avenue (Route 111) are 75 feet. Where the lot line in the Town Center District abuts the Agricultural-Residential District, the minimum building setback for a residential building shall be 40 feet; the minimum building setback for a nonresidential building shall be 75 feet; and, the minimum parking lot setback shall be 50 feet. Parking shall not be allowed in the front yard, and all parking shall be screened from ways and adjacent properties by vegetative buffers. For commercial or mixed use structures in the Town Center District, there shall be no front or side minimum setback.

[3] As calculated for the entire site as shown on a Site Plan in accordance with Section 2.5, excluding sidewalks.

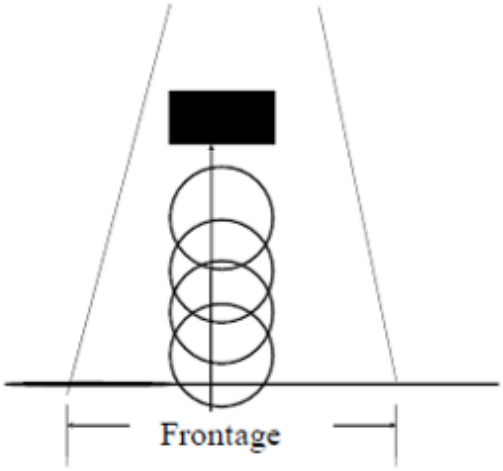
[4] Maintained as open space or sidewalks. Open space shall be protected by adequate covenants to run with the land or by conveyance, lease, or dedication approved by the Planning Board.

[5] Maximum Building Size: No building shall exceed 8,000 square feet gross floor area. Notwithstanding the above, any building in excess of 8,000 square feet gross floor area, but less than 15,000 square feet gross floor area (25,000 square feet for Public Safety Buildings) may be allowed by special permit of the Board of Appeals under Section 2.3 of this Bylaw.

[6] When a lot shall abut more than one street, the lot must have a minimum of 150 feet combined, continuous frontage on one or more streets and shall not be required to have a minimum frontage on each of the streets.

[7] No building lot shall be laid out, and no building shall be erected on a lot, unless the center of a circle having a minimum diameter for the particular zoning district can be passed along a continuous line from the Lot Frontage to at least one point of the building or proposed building site without the circumference intersecting any side lot line. This subsection shall not apply to an existing building or lot, or a building for which a building permit has been issued, as of May 11, 1992, or to any alteration, extension, or structural change thereto. (See Figure 1 below.)

Figure 1
Lot Width



[8] For residential developments, the minimum setback for residential units from adjacent existing business and industrial/commercial zoned property lines shall be 100 feet; the minimum setback from Massachusetts Avenue shall be 50 feet. The Special Permit Granting Authority may reduce the setbacks from lot lines if an adjustment enhances the overall site design and still provides protection to adjacent business and industrial/commercial development.

[9] Lot frontage shall be measured continuously along one street line between side lot lines, or, in the case of corner lots, between one side lot line and the mid-point of the corner radius except in the Agricultural/ Residential district. Lots
with interrupted or discontinuous frontage must demonstrate that the required length along the street may be obtained from one continuous frontage section, without any totaling of discontinuous frontage sections.

5.2 Reduced Frontage Lots

The Board of Appeals may grant a special permit for construction on a reduced frontage lot subject to the requirements below. It is the intent of this Section 5.2 that the intensity regulations, set forth below, be used only at the discretion of the Board of Appeals in those cases where the use of the intensity regulations of Section 5.1 will not serve the best interests of the Town. Reduced frontage lots shall only be permitted in the Agricultural-Residential District.

(a) The lot shall have a minimum of 120,000 square feet

(b) Where the lot has an area of at least 120,000 square feet, but not more than

200,000 square feet, the frontage requirement shall be 75 feet. Lots greater than 200,000 square feet. may have frontage of not less than 50

feet. (c) The building line shall be at least 150 feet.

(d) Setbacks shall be 40 feet. for front yards, 30 feet for side yards, and 40 feet for rear yards.

(e) No building shall exceed 3 stories or 45 feet. in height.

(f) The minimum lot width from the street frontage to the building line shall at no point be less than the minimum frontage required.

5.3 Intensity Regulations

(a) For bed and breakfast in AR, R1, and TC district, not to exceed 4 guest rooms per acre, and to be designed as a single-family structure.

(b) For dwelling unit incidental to commercial use in TC or B1 district, density of the dwelling units shall not exceed 2 units per acre, and the proposed commercial use shall not adversely affect the residential units.

(c) For a multi-family dwelling located in a R1 district, the number of units shall not exceed a maximum density of 3 units per 80,000 square feet of land area.

(d) For a multi-family dwelling located in the B1 district, the number of units shall not exceed a maximum density of 3 units per 40,000 square feet of land area.

(e) No more than one single-family dwelling may be located on a lot. An Accessory Dwelling Unit as defined in Section 9.2 may be permitted on a lot with one Principal Dwelling, as defined in 760 CMR 71.02, if it is in compliance with Section 4.2.2.

5.4 Intensity Regulations for Structures Other Than Buildings

In all districts, no structures may be hereafter erected or used:

(a) on a lot that does not comply with the minimum area requirements, and;

(b) unless it meets at least one-half of the minimum setback requirement.

5.5 Location of Accessory Buildings

No accessory buildings shall be located:

(a) Within the required front yard area;

(b) in any side area nearer to the side lot line than 10

feet; (c) in a rear area nearer to the rear lot line than 10

feet, or;

(d) nearer to another principal or accessory building than 10 feet.

A garage attached to a dwelling shall be considered an accessory building, provided that there is no occupiable or living space that does not conform to the minimum setback for residential dwellings above any part of the garage footprint.

5.6 Height restrictions for tall structures and roof-attached structures, except as covered under Section 7.3 Wireless Communication Facilities

5.6.1 Tall structures (see Section 9.2 Definitions) may be allowed by special permit from the Board of Appeals in accordance with the following requirements:

(a) A tall structure shall not be located within a front or side yard setback;

(b) A tall structure shall be set back from all lot lines a minimum of the structure's height;

(c) A tall structure shall not degrade scenic vistas; and

(d) No lot shall contain more than one tall structure.

5.6.2 Roof mounted or attached structures are permitted provided that they do not exceed 10 feet above the uppermost part of the building to which it is attached or 45 feet total height from ground level, whichever is less.

5.7 Lot Regularity

5.7.1 Except for Reduced Frontage Lots, no building lot shall be created in the Agricultural-Residential District or the Residential 1 District after the effective date of this Bylaw that does not conform to the following requirements:

(a) The lot contains a quadrangle, which includes 70 percent of the lot area required for the district in which the lot is located; and

(b) All principal buildings, accessory buildings and structures and their above and underground appurtenances, with the exception of signs, driveways, utility service connections, drainage, fences and light standards are located within the quadrangle.

5.7.2 Requirements of this section shall not apply to building lots shown on plans endorsed or recorded before the effective date of this amendment. Lots that do not conform to this subsection shall not be considered to be nonconforming for other applicable sections of this Bylaw.

ARTICLE 6. GENERAL REGULATIONS

6.1 Parking and Off-Street Loading Requirements

6.1.1 General. Any use of a building, structure, or land hereafter constructed, erected, or altered in kind or extent shall provide and maintain sufficient off-street parking area to accommodate all vehicles using the premises.

6.1.2 Location. Except as provided for in Section 6.1.3, the required off-street parking shall be located on the same lot as the principal use and no off-street parking area shall be reduced in capacity because of a change in the principal use, or for any other reason, except in compliance with Section 6.1.6.

6.1.3 Common Parking Areas

Common parking areas may be permitted for the purpose of serving two or more principal uses on the same or separate lots provided that:

(a) The combined amount of parking is not less than the sum of the requirement for each use separately, except where it can be demonstrated that the parking need for the uses occurs at different times; and

(b) That it is evident that the common facility will remain available for the several buildings or uses; and

(c) That the several buildings or uses are so closely related, such as in a shopping center or an industrial park, that it is unlikely that any one or more principal uses will change in kind or extent so as to substantially increase the parking requirement of the common facility; and

(d) That where any use does not directly abut a common parking facility, the use shall not be located at a distance greater than 600 feet away from the common parking facility.

The number of spaces required in a common parking facility may be reduced by the Planning Board on site plan review where it is reasonably demonstrated that the hours of day of peak parking need of the individual users are sufficiently different so that a lower total will adequately serve the parking needs of the use.

6.1.4 Surface, Circulation, and Landscaping Requirements

(a) Parking areas shall be graded, surfaced, and drained to the satisfaction of the Inspector of Buildings to the extent necessary to avoid nuisance from dust, erosion, or excessive surface water runoff across any public way or any adjacent property line.

(b) Each automobile space shall be no less than 10 feet by 20 feet. Variations in the required parking space size to accommodate different types of vehicles and traffic may be permitted in the site plan approval process.

(c) Areas not immediately needed for graded parking may be left in a natural or landscaped state.

(d) Internal circulation lanes shall be adequate, as determined by the Planning Board, for two-way traffic, turning and backing.

(e) No curb cut for parking entrances or exits shall exceed 25 feet in width, unless authorized by the Massachusetts Highway Department (MassHighway).

(f) Parking areas shall be landscaped and screened as required in Section 6.3 of this Bylaw.

6.1.5 Computation. When computing the parking requirements of different uses, the number of spaces required shall be the largest whole number obtained after increasing all fractions upwards to one. Employees shall include the largest number of owners, managers, full and part-time workers, and volunteers that may normally be expected to be employed on the premises during any single shift or portion thereof. The number of seats in benches, pews, or other continuous seating arrangements shall be calculated at 20 inches per seat.

6.1.6 Parking Schedule. The following parking ratios shall apply to uses or to types of uses similar to those listed below. In every case, these shall be the minimum requirements:

OFF-STREET PARKING REQUIREMENTS

Use	**Minimum Off-Street Parking Ratios**
Residential uses, including single family, two family, and multi-family	Two spaces per dwelling
Home Occupations	In addition to the spaces required for the dwelling, number of any spaces necessary to accommodate the proposed use
Hotel, Motel, Inn	1 space per guest room, plus 1 space per employee, plus a number of spaces as required elsewhere herein for restaurants, assembly halls, and similar functions if provided on the premises
Animal Shelter	2 spaces plus 1 space per employee

Manufacturing, Wholesale Operations, Utility Buildings other than Business Offices, Warehouses and similar uses not normally	1 space per employee, plus 1 space for each vehicle used in the operation

OFF-STREET PARKING REQUIREMENTS

Use	Minimum Off-Street Parking Ratios
Assembly area without fixed seats, including sports fields, field house and similar uses	1 space per 50 square feet of assembly or spectator area
Assembly area with fixed seats including auditoriums, places of worship, and similar uses including funeral parlors	1 space per 4 seats
Bowling alleys	4 spaces per lane
Banks, Libraries, and Post Office	1 space per 250 feet of gross floor area devoted to public use, plus one space per employee
Business and Professional Offices, Office Buildings Governmental Uses, Philanthropic Uses, Repair Shops, Research and Development Facilities, Light Manufacturing and Office of a Wholesale Operation including sales space	1 space per 500 feet of gross floor area
Clubs, Lodges and Association Buildings	1 space per 2 memberships
Convalescent, Nursing or Rest Home, Hospital or Sanitarium	1 space per 3 beds plus 1 space per employee, plus
Assisted Living Facility	2 spaces per unit plus additional spaces as required for additional uses, i.e., nursing home, community center, health services.
Medical and Dental Offices and Clinics	4 spaces per doctor, dentist and allied professional person
Veterinary	3 spaces per doctor plus 1 space per employee on the largest shift
Kennel	2 spaces plus 1 space per employee
Restaurants, lounges, function rooms of hotels or clubs	1 space per 2 seats, based on the legal seating capacity of the facility
Retail Stores or Service Shops, Printing Shop/Copy Center/ Word Processing Center	1 space per 250 feet of gross floor area of sales space with a minimum of 4 spaces per
Craft Shop or Art Studio	1 space per 250 feet of gross floor area of the sales space

Bed and Breakfast	2 spaces, plus 1 additional space for each rooming unit
Day Care Center	1 space per 2 employees
Recreational Use	1 space per 3 seats of rated capacity or 1 space per 4 persons normally expected on the premises at the time of maximum use, plus additional

OFF-STREET PARKING REQUIREMENTS

Use	**Minimum Off-Street Parking Ratios**
	number of employee vehicles which can be reasonably expected at any one time on the premises
Educational Use	1 space for each staff person plus 1 space for each 5 persons of rated capacity of the largest auditorium
Conference Center	1 space per 2 seats in the largest assembly area, plus additional spaces for the number of employee vehicles which can be reasonably expected at any one time on the premises
Automobile Service Station, Repair or Storage	3 spaces for each service bay plus 1 space for each employee on the largest shift
Car Sales	1 space per 1,500 square feet of gross floor area of indoor and outdoor display area
Building Trade	1 space per 1,000 square feet of gross floor area or 1 space per employee on the largest shift, whichever is greater
Landscaping Services, Landscaping Contractors	1 space per each vehicle or trailer used in the operation and 1 space per 3 employees
Any other use; or any use involving a combination of functions similar to or listed herein	A number of spaces as determined by the Inspector of Buildings by application of the ratios above or most nearly similar to the above

6.1.7 Off-Street Loading Requirements. Off-street loading space shall be provided for any building, as provided herein, that is erected, constructed, or altered, enlarged or moved, hereafter. Loading space shall be an all-weather surface separately provided and maintained from any off-street parking area. The requirements for off-street loading shall be as follows:

OFF-STREET LOADING REQUIREMENTS

Use	Minimum Off-Street Parking Ratios
For industrial plants, wholesale establishments, storage warehouses, spaces for building freight terminals and other uses normally handling large quantities of goods	One space for building 5,000 to 8,000 sq. ft. gross floor area. Two spaces for building 8,000 - 20,000 sq. ft. gross floor area. One space per additional 20,000 sq. ft. gross floor area or fraction there of.
For uses occupying greater than 5,000 sq. ft. not normally handling goods in large quantities including hospitals, office buildings, restaurants, auditoriums, hotels, motels, funeral homes and similar uses	One space for buildings of 5,000 - 50,000 sq. ft. gross floor area and one bay per each additional 50,000 sq. ft. gross floor area or fraction thereof

6.1.8 Off-Street Waiting Requirement. Any drive-in use including car wash, bank window, filling station, theater, or similar use, shall provide sufficient off-street waiting or standing space equal to a minimum of three times the number of vehicles which can be served simultaneously.

6.1.9 Reduction of Paving Requirements. The number of parking spaces required and the amount of off-street loading space required to be paved may be reduced by the Planning Board in the site plan approval process where it is sufficiently demonstrated that a lower number of parking spaces or a smaller amount of off-street loading space will adequately provide for the parking or loading requirements of the intended users; provided that the site has sufficient reserve area, suitable for conversion to graded, surfaced and drained paving areas, to meet the requirements of Section 6.1.6 and Section 6.1.7.

6.2 Access, Driveways, and Private Ways

6.2.1 Location. Access over private ways to business, office park, and industrial-commercial uses and private parking for these uses shall be completely contained within the same district as the business, office park, or industrial-commercial use.

6.2.2 Off-Street Waiting Space. Off-street waiting space shall be provided in accordance with Section 6.1.8.

6.2.3 Multiple Buildings on One Lot

Where one or more than one building is proposed to be built upon a lot, the plan shall be reviewed by the Planning Board who shall make a finding with respect to the adequacy of ways furnishing access to each building site, and make recommendations to the Inspector of Buildings to provide for access in the same manner as otherwise required for lots in a subdivision. No building permit shall be issued unless the following conditions have been met:

(a) 30 days have expired since the submission of the site plan to the Planning Board with no recommendations received from that board; or

(b) Until adequate bond agreements or other binding assurances have been received by the Inspector of Buildings that any conditions as set by the Planning Board, with respect to the ways or access, have been met.

6.2.4 Private/Common Driveways. The Planning Board may grant a special permit for a Private/Common Driveway subject to the following:

(a) Private/Common Driveways shall comply with the Driveway Approach Bylaw as adopted June 29, 1964, and as subsequently amended.

(b) In the Agricultural-Residential (AR) Districts, private/common driveways may be approved if they meet all of the following requirements:

1) No more than three lots shall be accessed by a Private/Common Driveway. The Driveway shall lie entirely within one or more of the lots being served;

2) Frontage requirements for each lot shall be along a town, county, state or approved subdivision road. Frontage along the length of the Private/Common Driveway shall in no way be used to satisfy frontage requirements as specified in the Zoning Bylaw, and;

3) No more than three Private/Common Driveways shall be located on a dead- end street.

(c) In the B, B1, OP, TC, and IC Zoning Districts a private/common driveway may be approved if it meets all of the following requirements:

1) The use of a Private/Common Driveway improves safety, convenience, and traffic flow on any road in Boxborough;

2) The Private/Common Driveway conforms with the purpose and intent of this Bylaw;

3) The Private/Common Driveway is consistent with the Boxborough Master Plan, and;

4) Frontage requirements for each lot served by the Private/Common Driveway shall be along a town, county, state, or approved subdivision road. The Private/ Common Driveway shall in no way be used to satisfy frontage requirements as specified in this Bylaw.

(d) Copies of all easements, covenants, and agreements which shall be recorded with the Registry of Deeds, shall be submitted to the Planning Board for review and approval prior to recording. These easements, covenants and agreements shall indicate that the Town, under no circumstances, shall now or in the future, be held responsible for construction, reconstruction, maintenance, repairs or snow removal on these Private/Common Driveways.

(e) Applications for a Private/Common Driveway special permit shall adhere to the extent feasible to those construction standards set forth in the Planning Board

Private/Common Driveway Guidelines. These guidelines are for advisory purposes only and shall not be binding on the applicant or the Planning Board.

6.3 Landscaping and Screening

6.3.1 Yards and Parking

Except as provided elsewhere in this Bylaw, every required front yard shall be maintained as permanent open space in grass, ground cover, trees, plantings, shrubs, and natural elements of the site, and shall remain free of any buildings, accessory buildings, or parking areas.

(a) In any Business, Office Park, or Industrial-Commercial District, the required front yard setback may not be used for parking.

(b) A landscaped area shall be required for at least the depth of the front yard setback beginning at the street line and extending the full length of the frontage uninterrupted except for permitted entrance and exit drives.

(c) In a Business District the side and rear yard setbacks may be used for parking provided that no parking is located within 10 feet of the lot line.

(d) In an Office Park or Industrial-Commercial District the side and rear yard setbacks shall not be used for parking.

(e) In the Business, Town Center, Office Park, or Industrial- Commercial Districts, parking may be located within the side or rear yard without any setback along the shared boundary in those instances where a private/common driveway is used for access to a shared common parking area as provided in Section 6.1.3. The parking located within the side or rear yard of one lot must share a common lot boundary with the parking located in the side or rear yard of the adjacent lot.

6.3.2 Screening

Where any of the uses listed below occur adjacent to any residential or institutional use, or to a lot in a residential district, there shall be provided a dense screen within the required yard area, or around the particular use, whichever is appropriate as determined by the Inspector of Buildings. All screening shall be maintained by the owner in a sightly condition at all times. The Board of Appeals may, by special permit, waive or reduce the above required screening requirements where it is evident that, because of topography or other conditions peculiar to the site, a lesser amount of screening would not tend to increase nuisance, reduce property values or amenities, or increase hazards to life, health or public safety.

(a) The following uses shall be screened as provided herein:

1) Parking areas or off-street loading areas.

2) Open lot storage or sales areas for new or used automobiles, building supplies, road salt, sand or other bulk materials, discarded materials or similar materials.

3) Parking or storage of two or more school buses, commercial vehicles or items of contractor equipment.

4) Sanitary landfills or other waste treatment facilities, heating plants, waste storage areas, laundries or kitchens accessory to permitted uses, maintenance shops and garages other than garages for residences, and similar principal or accessory use.

(b) The screen shall consist of:

1) Natural materials on the site, including existing trees and woods, or evergreen plantings, at least three feet in height at the time of planting and which will normally at maturity reach at least five feet in height; or,

2) A wall or fence not more than eight feet high constructed of durable materials at least 50 percent opaque, supplemented with plantings, trees, grass, and other landscape elements.

(c) Where the proposed use is located in the Office Park or the Industrial-Commercial District, a continuous buffer, landscaped utilizing natural features and plantings to provide an effective screen for the proposed operation, shall be maintained within all required yards or setback areas. Notwithstanding anything in this Bylaw to the contrary, no parking area shall be contained within this buffer.

6.3.3 Curbs. In all Districts, excluding Agricultural-Residential Districts, curbs shall be provided to prevent motor vehicles from being parked within any yard area or required landscaped strip. For parking areas of less than ten vehicles, the Inspector of Buildings may, at their discretion, permit suitable wheel stops in lieu of continuous curbing.

6.4 Outdoor Lighting.

Outdoor lighting from any source, including sign illumination (see Section 6.5), shall be dark sky compliant with a continuous white light installed or shielded so as to cast no direct beam on a public way, pedestrian way, or on adjacent property or cause a glare or reflection that may constitute a traffic hazard or a nuisance. Uplighting of landscaping, the operation of search lights for advertising purposes, and the use of building floodlighting (except for floodlighting used on public safety buildings) are prohibited.

6.4.1 To prevent unnecessary sky glow and other glare, particularly but not limited to that interfering with astronomical research, all outdoor lighting fixtures shall be shielded from above so as to prevent direct glare from the light source from interfering with the vision of motorists or pedestrians passing in the street or streets abutting the premises and as to prevent direct glare from the light source from lighting neighboring properties, particularly residences, and so that,

(a) all illumination is restricted to an area 15 degrees below the horizontal, and

(b) except for street lights, direct rays from the light source are confined to the property boundaries.

6.4.2 High pressure sodium lamps shall not be used for outdoor lighting.

6.4.3 **Holiday Lighting & Low Intensity Lighting**. Customary holiday lighting and lamps of low luminosity and low intensity serving primarily as markers or as low level illumination for entrances and exits or similar use need not be shielded. Requirements for shielding, filtering and type of light need not be met for emergency lighting required by a public agency in the performance of its duties.

6.4.4 Outdoor lighting shall be of substantially minimum intensity needed at the particular time; parking area lighting, in particular, shall be reduced or eliminated outside business hours. Materials, such as blacktop, which reflect a relatively small fraction of incident light, shall be the surface preferred for lighted areas.

6.4.5 The mounting height of lighting fixtures shall not exceed 30 feet above the ground plane.

6.4.6 All artificial lights used to illuminate tennis or paddle tennis courts, swimming and wading pools and other non-residential privately-owned facilities or public recreation areas shall be extinguished by 11:00 p.m.

6.4.7 Exemption. Any lighting fixture in existence on June 8, 1976, shall be exempt from these conditions.

6.4.8 **Outdoor Lighting Regulations for Special Permit.** Developments and redevelopments requiring a Special Permit or an amendment thereof, shall comply with the standards for outdoor lighting unless otherwise permitted by the Special Permit Granting Authority.

6.4.9 Lighting Tables and Figures

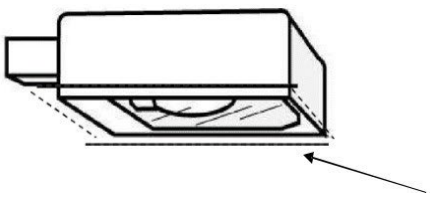
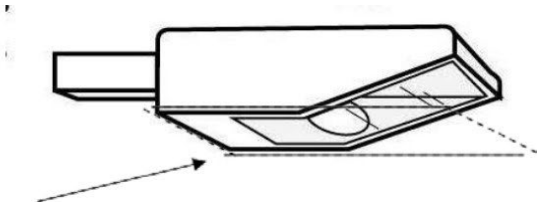


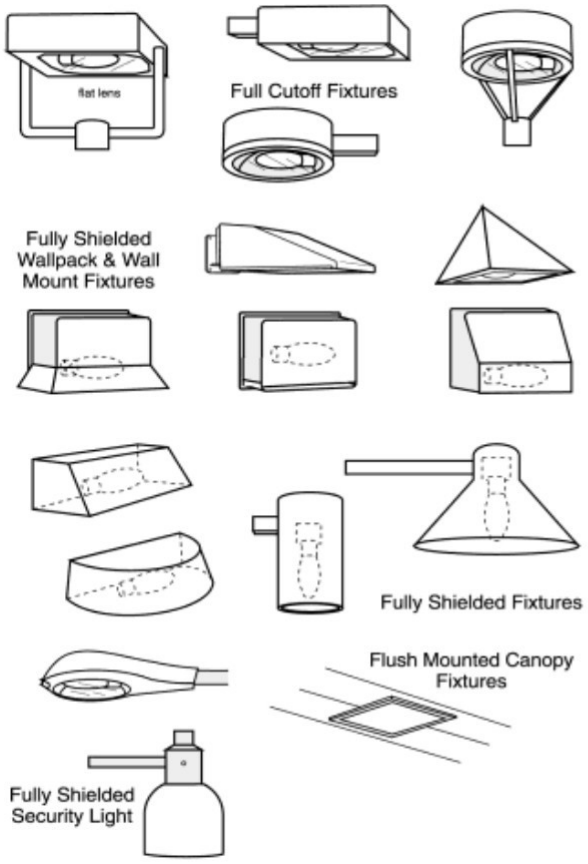
Figure 1A. Fully Shielded. No light emitted above a horizontal plane through the lowest direct-light-emitting part of luminaire.



Horizontal plane

Figure 1B. Not Fully Shielded. Light is emitted above a horizontal plane through the lowest direct-light-emitting part of luminaire.

Examples of FULLY SHIELDED



Examples of LUMINAIRES that are NOT FULLY SHIELDED

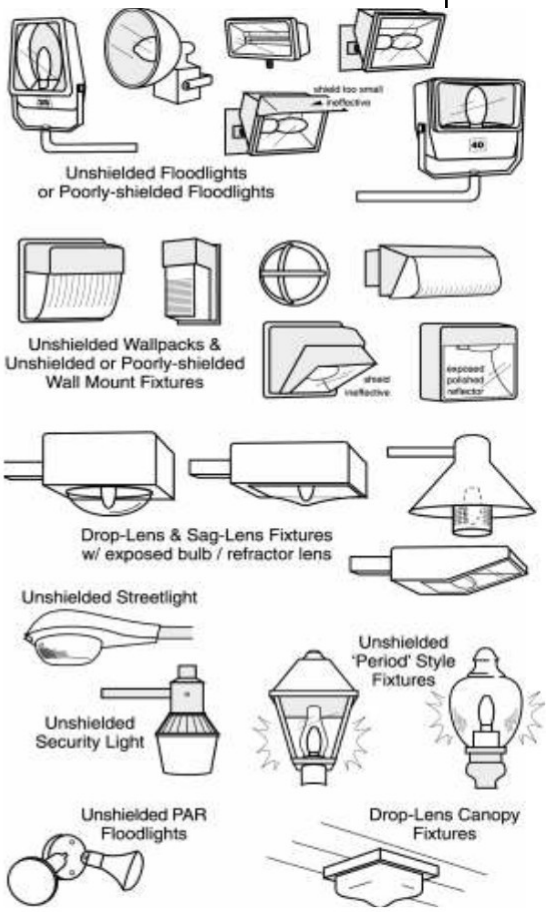
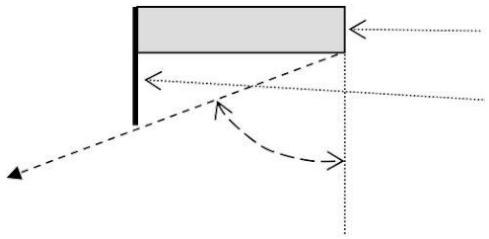


FIGURE 2



Luminaire

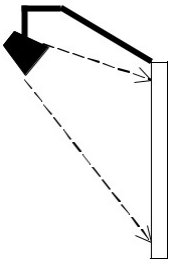
Additional shield. Part of shield visible from residential or conservation lot or public right of way has flat-black finish.

Direct Light toward Lot boundary less than 3xH away

Elevation angle no more than 70 degrees

Figure 2. Any outdoor luminaire whose distance from the lot boundary is less than three times its height shall be shielded so that all direct light cast in the direction of residential or conservation lots and public rights-of-way is cut-off at an angle no more than 70 degrees measured from a vertical line directly below the luminaire.

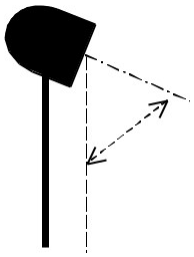
FIGURE 3



Sign: end view

Figure 3: Lighting for externally illuminated signs shall be projected downward from above. The luminaire shall be shielded.

FIGURE 4



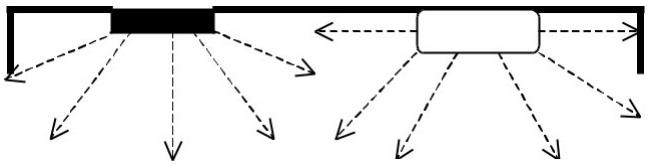
Brightest part of beam

60 degrees

Vertical

Figure 4: Illumination for outdoor recreational facilities shall be shielded luminaires and shall be mounted at sufficient height and aimed so that the brightest part of the beam is elevated no more than 60 degrees above a point directly vertically below the luminaire

FIGURE 5



CANOPY

FULLY SHIELDED LUMINAIRE – Yes Unshielded LUMINAIRE - No

Figure 5: Building canopies, overhangs, roof eaves and similar types of construction shall not be considered as the means for providing the light cutoff. The cutoff characteristics shall be achieved by the luminaire itself.

Table 2. Shielding Requirements

Luminaires whose lamp wattage exceeds the values in Column A of this table shall be shielded. Luminaires whose lamp wattage exceeds the values in Column B of this table shall be fully shielded.

Lamp type	A – SHIELDED	B – FULLY SHIELDED
Incandescent, Halogen	60 watts	120 watts
High Pressure Sodium, Metal Halide, Mercury Vapor, other High Intensity Discharge (HID)	35 watts	35 watts
Fluorescent, Low Pressure Sodium	13 watts	20 watts
LED30 (<3000K)	-	70 watts
LED60 (<3000K)	-	135 watts
LED90 (<3000K)	-	205 watts

6.5 Signs

6.5.1 Purpose. The purposes of this Section is to promote the public health, safety, and welfare of users of Boxborough's streets, roads, and highways; to prevent visual distractions and obstructions from signs which can create traffic hazards; to enhance the visual quality of signage; and to provide for adequate identification of the occupants or use of the premises.

6.5.2 Administration. No sign shall be erected, displayed, altered, or enlarged until an application has been filed and a permit for such an action has been issued by the Inspector of Buildings. All applications for signs shall conform to the requirements stated in Planning Board's Rules and Regulations. Whenever a sign is proposed for a residential subdivision or on a building requiring site plan approval, the sign location, size, and illumination shall be approved by the Planning Board prior to the issuance of a sign permit by the Inspector of Buildings. Unless otherwise specified, sign permits shall be issued by the Inspector of Buildings if it is determined that the sign complies with all applicable sections of this Bylaw and the State Building Code.

6.5.3 General Requirements

(a) Signs shall be consistent with or complement the building's construction materials. The use of materials such as wood or stone is encouraged.

(b) Sign lettering should complement the style and period of the building and should be compatible with the architectural style of the buildings.

(c) Signs should not obscure important architectural features or details such as transoms, windows, sills, moldings, and cornices. Traditional block and curvilinear styles which are easy to read are preferred.

(d) Signs on adjacent storefronts shall be coordinated in height, proportion, and design.

(e) Colors shall complement the facade color of the building. Generally, signs should not contain more than 3 colors except when an illustration is used. Fluorescent colors are prohibited.

(f) All signs shall be maintained by the owner in a clean, safe, and sanitary condition. The Inspector of Buildings may order removal of any signs that are not maintained or erected in accordance with the provisions of this section.

(g) Any sign which shall have been abandoned for a period of 60 days, or which advertises a product or identifies a business or activity which has not been sold or conducted on the premises for 60 days shall be removed within 30 days of notification to take such action from the Inspector of Buildings.

(h) Sign Illumination. Any illuminated sign shall employ only white light of constant intensity and shall conform with Section 6.4. No sign shall be illuminated for more than 30 minutes before opening or after the closing of any

store or business. Internally lit signs are discouraged in Industrial-Commercial, Business, Business-1 and Office Park Districts and are prohibited in the Agricultural-Residential, Residential-1 and the Town Center District.

(i) Except as otherwise provided herein, illumination for any sign shall be provided through a stationary external light source, with the light projected downward from above. In no case shall the illumination of a sign cause blinding or otherwise obstruct the safe vision of any traffic participant anywhere. Sign illumination through an external source shall always be white or off-white.

6.5.4 Internal or Quasi-Internal Sign Types. Should an internally lit sign be deemed permissible in the Industrial- Commercial, Business, Buisiness-1 and Office Park Districts, the following types of signs with internal or quasi-internal illumination shall comply with all applicable standards of the previous section as well as the lighting controls below. The word "opaque" as used in the following subsections shall mean that the opaque object shall appear black when the sign is lit at night.

(a) Opaque individual letter signs or symbols, backlit with a white and concealed light source, thereby creating an effect by which the letters or symbols are silhouetted against a wall illuminated by said light source.

(b) Signs featuring individual letters or symbols which are cut out from an opaque facing and back-lit with a white and concealed light source, thereby creating an effect by which the facing, from which the letters or symbols are cut out, is silhouetted against a wall illuminated by said light source.

(c) Back-lit awning signs with the light source internal or concealed from public view.

(d) Individual letter signs with translucent letter faces, internally illuminated with a soft-glow light source; or signs with an opaque sign face with cutout translucent letter surfaces which are internally illuminated with a soft-glow light source.

For the sign types identified in this Section 6.5.4, the following requirements shall apply:

(e) Internally lit signage shall not be illuminated longer than 30 minutes before opening of after closing of the store or business.

(f) The display area of an illuminated sign shall not exceed an average illuminance of 50 foot-candles measured directly on the surface of the sign.

(g) Where possible, the light fixtures used for sign illumination should be classified as "energy efficient," as defined by the power utility company serving the lot.

6.5.5 Prohibited Signs

(a) No sign shall be erected that creates a traffic hazard or obstructs sight lines or

distracts from signs regulating traffic.

(b) No sign shall contain or be lighted by, any moving, flashing or animated lights, or visible moving parts excepting portions of signs that may indicate the time of day, or the outdoor temperature for information of the general public.

(c) Trailer type signs, roof signs, off-premises signs, and billboards are strictly prohibited.

(d) Any sign not specifically authorized by this Section.

6.5.6 General Exemptions. The following signs shall not require a sign permit.

(a) Signs erected or posted and maintained for public safety and welfare or under any governmental function, law, Bylaw, or other regulation.

(b) A bulletin board or similar sign not exceeding 20 square feet in display area per side, in connection with any place of worship, museum, library, school, or similar public or semi-public structure.

(c) Signs relating to trespassing and hunting, not exceeding 2 square feet in area per side.

(d) Temporary non-illuminated political signs.

(e) Temporary, non-commercial event signs in connection with any event sponsored or hosted by a place of worship, school, museum, library, charitable organization, the town, or similar public or semi-public institution, provided the sign is removed within 7 days following the completion of the event.

(f) The provisions of this Bylaw shall not apply to any accessory sign lawfully in existence at the time of adoption of this Bylaw (March 20, 1967) or the adoption of any amendments.

(g) Off-site and on-site temporary signs associated with a yard sale, garage sale, estate sale, etc. provided they are 6 square feet or less per side, are posted no more than 5 days in advance of the event, and shall be removed within 24 hours following the completion of the event.

(h) Off-site temporary signs associated with a real estate open house provided they are 6 square feet or less per side, are posted no more than 5 days in advance of the event, and shall be removed within 24 hours following the completion of the event.

6.5.7 Signs associated with an agricultural use as defined in G.L. c.40A, §3, offering for sale produce and other products shall not require a sign permit, provided the following:

(a) The sign may indicate only the name of the farm, products for sale or the price of products;

(b) The sign is designed to be portable, such as an A-frame, H-frame or T- frame sign placed on the surface of the ground or temporarily staked into the ground;

(c) Only 2 such signs may be located on a property without a sign permit;

(d) The sign is located on the same property on which the agricultural use is conducted;

(e) The sign is displayed only when the agricultural use is open to the public for purchase of products;

(f) The sign is not illuminated or inflatable.

6.5.8 Temporary signs associated with tradesmen business shall not require a sign permit, provided:

(a) The sign may indicate only the name of the business and contact information such as address, phone, email or web address;

(b) The sign shall be 6 square feet or less per side;

(c) The sign is designed to be portable, such as an A-frame, H-frame or T- frame sign placed on the surface of the ground or temporarily staked into the ground;

(d) Only one double-faced sign per tradesmen may be located on a property;

(e) The sign is located on the same property on which the tradesmen is currently conducting business;

(f) The property owner shall ensure that the sign is removed within 7 days following the completion of the work.

6.5.9 Temporary signs associated with a retail business shall not require a sign permit, provided:

(a) The sign may indicate only the name of the business, the special event or sale of a product and price;

(b) The sign shall be 6 square feet or less per side;

(c) The sign is designed to be portable, such as an A-frame, H-frame or T- frame sign placed on the surface of the ground or temporarily staked into the ground;

(d) Only one double-faced sign per business may be located on a property;

(e) The sign is located on the same property on which the business is conducted; The sign is displayed only when the business is open to the general public; and

(f) The sign is not illuminated or inflatable and does not have any moving parts.

(g) The sign may be displayed during the first 6 months after the new business initially opens, but subsequent to that time not more than 10 days a month.

6.5.10 Residential Districts. Signs permitted in residential districts shall include:

(a) One sign displaying the street number or name of the occupant of the premises or pertaining to a permitted home occupation or accessory use, provided that the sign is no greater than one square foot in area per side.

(b) One temporary sign pertaining to the lease or sale of the premises. The sign may be no greater than 6 square feet in area per side, and shall be removed within 7 days of the lease or sale thereof.

(c) One bulletin or announcement board, identification sign, or entrance marker pertaining to a permitted use on the premises other than a dwelling or accessory use thereto or pertaining to a use permitted by the Board of Appeals, provided that the sign shall not exceed 10 square feet in area per side.

(d) One non-illuminated subdivision identification sign per street entrance provided that the sign shall not exceed 10 square feet in area per side.

(e) Historical markers erected or placed by a bonafide historical association or a governmental agency.

6.5.11 Business Districts, Office Park Districts, and Industrial- Commercial Districts. Signs permitted in business, office park, and industrial-commercial districts shall include:

(a) One wall sign per street frontage for each business or industrial establishment within. The aggregate of all such wall signs shall not exceed 10 percent of the surface area of the wall to which the sign or signs is (are) attached and no wall sign shall extend above or beyond its wall.

(b) One directory of establishments occupying a building at each public entrance thereto, not exceeding one square foot per establishment.

(c) Temporary freestanding or ground signs may be erected on the premises to identify any building under construction, its owner, architect, builders, or others associated with it, provided that such sign shall not exceed 32 square feet in area per side and 10 feet in height. Such sign shall be removed within 7 days of issuance of an occupancy permit.

(d) A temporary freestanding pole or ground sign not exceeding 32 square feet per side advertising the sale, lease or rental of the premises; however, such sign shall be removed within 7 days of the sale, lease or rental thereof.

(e) One freestanding, ground sign or signs affixed to poles or other ground supports may be permitted on special permit by the Board of Appeals. A sign shall not

be placed so as to obstruct sight lines along the public way, and shall not exceed 32 square feet in area per side nor 10 feet in height above mean sea level elevation of the undisturbed ground directly beneath it. If necessary, a sign may be placed at the discretion of the Board of Appeals to afford visibility, providing it does not obstruct sight distances, traffic flow or roadway maintenance.

(f) Accessory signs on the premises not greater than 6 square feet in size may be permitted by special permit by the Board of Appeals.

(g) Historical markers erected or placed by a bonafide historical association or a governmental agency.

6.5.12 Signs Permitted in the Town Center District

Any new sign or alterations to existing signs shall require Design Review in accordance with Section 2.6. Signs in the Town Center District should be oriented to the pedestrian. Buildings' facades shall not be cluttered with signs and signs shall not overpower the facades to which they are attached.

(a) One projecting or wall sign per street frontage for each business establishment. The aggregate of all such signs shall not exceed 1.5 square feet of total sign area per linear foot of storefront or 10 percent of the wall area to which they are attached, whichever is less. No wall sign shall extend above or beyond its wall, and projecting signs shall have a minimum clearance of 8 feet from the bottom of the sign.

(b) One sign displaying the street number or name of the occupant of the premises provided that such sign is no greater than 1 square foot in area.

(c) One directory of establishments occupying a building at each public entrance thereto, not exceeding 1 square foot per establishment.

(d) Temporary freestanding or ground signs may be erected on the premises to identify any building under construction, its owner, architect, builders, or others associated with it, provided that such sign shall not exceed 20 square feet in area per side and 10 feet in height. Such sign shall be removed within 7 days of issuance of an occupancy permit.

(e) A temporary freestanding pole or ground sign not exceeding 20 square feet per side advertising the sale, lease or rental of the premises; however such sign shall be removed within 7 days of the sale, lease or rental thereof.

(f) One freestanding, ground sign or signs affixed to poles or other ground supports may be permitted on special permit by the Board of Appeals. Such sign shall not be placed so as to obstruct sight lines along the public way, and shall not exceed 20 square feet in area per side nor 10 feet in height above mean sea level elevation of the undisturbed ground directly beneath it. If necessary, a sign may be placed at the discretion of the Board of Appeals to afford visibility, providing it does not obstruct sight distances, traffic flow or roadway maintenance.

(g) Historical markers erected or placed by a bonafide historical association or a governmental agency.

(h) Materials such as wood or stone shall be used. Plastic signs and internally lit signs are not appropriate in the Town Center and are expressly prohibited.

6.6 Environmental Protection Standards

6.6.1 General

Any proposed use or structure, including equipment, processes, materials, and services provided or utilized therein, shall comply with the standards in this section. The Inspector of Buildings may require testing in accordance with State and Federal Regulations which may be a major source of potential emissions. The instruments for this testing are to be operated and maintained by the applicant at their expense and shall be available to the Inspector of Buildings or the Inspector of Buildings' agents at reasonable times.

The following standards shall apply to the issuance of building permits and certificates of use and occupancy, and shall be enforced in a manner consistent with other laws of the Town of Boxborough, the Commonwealth of Massachusetts and the United States Government, and any regulations adopted pursuant thereto.

6.6.2 Nuisances

No use of any building, structure, or land shall be lawful in any district if the proposed use is reasonably likely to be injurious to the neighborhood by reason of the emission of smoke, dust, dirt, odor, fumes, sewage, gas, refuse, noise, excessive vibration or other cause. No process shall be used which creates visual or audible interference in any radio or television receivers off the premises or causes fluctuations in line voltages in excess of 10 percent off the premises. No land or structure shall be used in any district as:

(a) a rendering plant, a slaughterhouse, a junk yard, a commercial dump, a farm for fox, mink or other fur bearing animals, or;

(b) a tank farm, so called, which shall mean the above ground storage of more than 5,000 gallons of liquid, or; 5,000 cubic feet of gas, except where the storage of liquid or gas is incidental to a business or industrial-commercial use.

6.6.3 Storage of Waste or Refuse

(a) All facilities used wholly or partly for storage of flammable and explosive materials shall be provided with adequate safety devices and adequate fire suppression and fire fighting equipment and devices approved by the Fire Department. When stored outdoors, materials and activities shall be properly enclosed with a nonclimbable fence with any entry ways securely locked when not in use. Materials such as refuse, garbage, offal, and similar noxious items

which may be attractive to insects, rodents or other pests shall, when stored outdoors, be kept in closed containers and regularly removed from the premises.

(b) If any trash receptacle exceeds 55 gallons or if the aggregate of trash on a lot exceeds 150 gallons, it shall be screened from public view. Temporary trash receptacles are exempt from these provisions provided that they are on site for no longer than 60 days. Temporary trash receptacles used for construction activities are exempt from these provisions during the duration of the site's building permit, or for 60 days, whichever is longer.

(c) Hazardous Waste. No land or structure shall be used in any district as a facility for hazardous waste or disposal of hazardous waste as defined by G.L.c. 21C, § 2, or for the garaging or temporary storage of vehicles used in the transportation of hazardous waste.

(d) Junk Cars. Unregistered motor vehicles, which are unfit for use, permanently disabled, or have been dismantled or are otherwise inoperative, may not be stored, parked, or placed on any lot in the Town unless placed within a building or in an area where the vehicles are not visible from any town accepted road or lot line. This section shall not apply to areas properly approved for storage of motor vehicles by persons licensed under G.L. c. 140, § 57-59.

6.6.4 Environmental Standards in the Industrial-Commercial District

No use in the Industrial-Commercial District shall be constructed, erected, extended, moved, placed, reconstructed, altered, enlarged, occupied, or otherwise established or changed without compliance with the following standards:

(a) Noise. Maximum permissible noise levels in dB(A) at the locations indicated below, for noise radiated without interruption for at least a time period of one hour from any source other than from moving traffic or from a construction site or other temporary activity.

Point of Measurement - Noise	**Weekdays: 7:00 AM – 6:00 PM**	**All other times**
At the lot line of any lot in an Agricultural-Residential District or any Residential or Institutional Use	60 dB(A)	50 dB(A)
At the lot line of any lot in a Business District	65 dB(A)	55 dB(A)

At the lot line of the premises, within any Industrial- Commercial or Office Park District and not bordering any of the above district lines or uses.	70 dB(A)	60 dB(A)

(b) dB(A) shall mean the A-weighted sound pressure level in decibels as measured by a general purpose sound level meter complying with the provision of American Standards for General Purpose Sound Level Meters (S1.4-1971), American National Standards Institute, properly calibrated, and operated on the "A" weighted network. Reference pressure shall be 0.0002 microbars.

(c) Vibration. No continuous or steady-state vibration shall be permitted which is detectable without instruments at the lot line of any lot in an Agricultural-Residential District or the lot line of any Residential or Institutional use.

(d) Glare. No continuously radiated direct or sky reflected glare whether from flood lights or from high temperature processes such as combustion or welding, or otherwise, shall be permitted so as to be perceptible at the lot line of a lot in an Agricultural-Residential District, the lot line of any Residential or Institutional use in any District; or along any public way.

(e) Odors. No emission of odorous gases or other odorous matter shall be permitted in quantities as to be readily detectable at the lot line without instruments.

(f) Other Forms of Air Pollutants. All resulting particulate matter, cinders, dust, vapors, gases, heat, smoke, radioactive emissions, refuse matter, or other air pollutants shall be effectively confined, controlled, regulated, and treated on the premises and disposed of so as to avoid any nuisance or hazard to the public health or safety. The emission of any material to the atmosphere shall be controlled within the limits of Regulations as Amended for the Control of Air Pollutants in the Metropolitan Boston Air Pollution Control District, September 1, 1972, and any subsequent amendments thereto as set forth by the Department of Public Health acting under the authority of G.L. c. 111, § 142D.

(g) Water Pollutants. No discharges into any stream, watercourse, water body, or water supply source so as to endanger the public health shall be permitted in violation of any Town, State or Federal regulation or law.

ARTICLE 7. SPECIAL REGULATIONS

7.1 Wireless Communication Facilities

7.1.1 Purpose. The purposes of this Bylaw are as follows:

(a) to minimize adverse impacts of wireless communication facilities on residential neighborhoods and the community;

(b) to encourage the shared use of facilities to reduce the need for new facilities; and

(c) to limit the overall number and height of facilities to what is necessary to serve the public.

7.1.2 Applicability. This section shall apply to reception and transmission facilities for the purpose of personal wireless communication services. This Bylaw shall not apply to towers or antennas installed for use by a federally licensed amateur radio operator. A wireless telecommunications facility shall not include Small Wireless Facilities as defined herein.

7.1.3 General Requirements

Wireless Communication Facilities shall be allowed only in the Wireless Communication Facilities Overlay District only upon issuance of a special permit in accordance with the provisions of G.L. c. 40A, § 9, this Bylaw and any rules and regulations adopted hereunder. The Planning Board shall be the Special Permit Granting Authority for Wireless Communication Facilities.

(a) Wireless Communication Facilities should be concealed within existing structures where possible.

(b) Lattice style towers and similar facilities requiring more than one leg or guy wires for support are prohibited.

(c) All structures associated with wireless communication facilities shall be removed by the owner or its agent within one year of cessation of use.

(d) The tower height shall not exceed 100 feet measured from the base of the tower to the highest point of the tower including anything on it.

(e) All towers shall be set back from lot lines a minimum of the height of the tower except where the tower abuts the right of way of Route I-495 and Route 2 where the setbacks shall be the minimum permitted by the Commonwealth of Massachusetts. All towers shall be setback a minimum of 500 feet from any school building.

(f) No tower shall be located within 1500 feet of another tower.

(g) Any utilities servicing a tower shall be located underground.

(h) Lighting of wireless communication facilities shall be limited to low level security lighting installed at or near ground level, except for lighting required by the Federal Aviation Administration (FAA).

(i) Fencing shall be provided to control unauthorized access to the tower. All equipment areas shall be landscaped and screened from public view to minimize visibility year-round.

(j) The facility shall contain one sign no greater than one square foot that provides the phone number where the operator in charge can be reached on a 24-hour basis.

7.1.4 Criteria

A special permit for a wireless communication facility shall not be issued unless the Special Permit Granting Authority finds the following:

(a) Existing or approved facilities cannot accommodate the applicant's proposal.

(b) The facility has been designed to accommodate the maximum number of providers but in no case less than 3.

(c) The applicant has agreed to allow other service providers to co-locate on the tower, now, or at anytime in the future.

(d) The tower has been designed, using the best available technology, to blend into the surrounding environment through the use of color, camouflaging techniques, or other architectural treatments.

(e) The facility has been designed to minimize adverse visual impacts on the abutters and the community as demonstrated by illustrations and by a balloon test performed in accordance with any requirements adopted by the Board of Appeals.

(f) The facility is sited so that it is screened, to the maximum extent possible, from public view.

(g) A qualified engineer has certified that the facility is designed to meet all health and safety standards of applicable state and federal law.

7.1.5 Conditions. Before approving any special permit under this section, the Special Permit Granting Authority may impose conditions, safeguards, and limitations to assure that the proposal is in harmony with the general purpose and intent of this Bylaw.

7.1.6 Bonding. Prior to the issuance of a building permit the Special Permit Granting Authority may require a performance guarantee to ensure compliance with the plan and conditions set forth in their decision.

7.2 Small Wireless Facilities Outside of the Public Right of Way

7.2.1 Purpose and Intent

The Purpose and Intent of this Section 7.2 is to permit regulation of the installation of Small Wireless Facilities outside of public rights of way so as to respect the neighborhood characteristics in which they are proposed to be installed consistent with the purposes set forth below and with federal and state law:

(a) to minimize adverse impacts of Small Wireless Facilities on residential neighborhoods and the community;

(b) to encourage the shared use of facilities, where appropriate, to reduce the need for new facilities;

(c) to limit the overall number and height of facilities to what is necessary to serve the public;

(d) to protect the visual, aesthetic, scenic, historic, environmental, and natural or manmade resources of the Town.

7.2.2 Special Permit. All installations of Small Wireless Facilities outside of the public right of way require a Special Permit. The Special Permit Granting Authority is the Planning Board in accordance with the provisions of G.L. c. 40A, § 9, this Bylaw and any rules and regulations adopted hereunder. All of these facilities shall comply with the Technical and Aesthetic Standards for Small Cell Siting published by the Littleton Electric Light and Water Departments (LELWD), to the extent feasible.

7.2.3 Special Requirements

The following Special Requirements shall apply to Small Wireless Facilities located outside of the right of way. The Special Permit Granting Authority shall review all Applications to ensure the following:

(a) To the extent feasible, Applicants shall follow Section 5, General Technical and Aesthetic Requirements and Guidelines as outlined in Littleton Electric Light and Water Department's Technical and Aesthetic Standards for Small Cell Siting.

(b) The proposed facility(ies) shall be designed, using the best available technology, to blend into the surrounding environment through the use of camouflaging techniques (including minimizing size, tapered shapes and colors that match the surrounding area and infrastructure, or other architectural treatments.

(c) No tree trimming or pruning for improved line of sight or for other functional needs will be allowed without explicit permission from the Tree Warden. Requests for tree trimming or pruning and identification of locations shall be

included as part of the Application. Applicants shall specifically avoid, when possible, tree trimming or pruning along the Route 111 Corridor and along designated scenic roads.

(d) Small Wireless Facilities outside of the right of way may be co-located on same structure if the Special Permit Granting Authority determines that aesthetics and structures will not be adversely impacted. A demonstration as to the necessity to co-locate facilities on to the same structure will be required to be made to the Special Permit Granting Authority. Input may be requested from the Inspector of Buildings or other Town Personnel to determine the safety of proposed facilities.

(e) In neighborhoods served by underground electric and other utilities, no above-ground facilities shall be installed if there is an underground alternative. Installations shall be done at the Applicant's expense. A waiver of this requirement may be granted by the SPGA upon request by the Applicant if the Applicant can demonstrate sufficient mitigation of visual, aesthetic and other impacts to the neighborhood, with the implementation of stealth design and the addition of landscaping and screening as determined by the SPGA.

(f) Stealth designs that are not visible to the public are preferred. Examples of stealth designs include shapes and colors that match surrounding infrastructure and minimize adverse visual impacts and the use of tapered shapes that smoothly integrate into structures (avoiding, for example, new rectangular boxes). Examples of stealth locations include chimneys, light poles, rooftop pads and cupolas.

7.3 Earth Removal

The removal of gravel shall be considered as an industrial use, except for the exemptions as stated in Section III.A and Section III.B of the Earth Removal Bylaw, voted March 1961, and as subsequently amended.

7.4 Trailers

7.4.1 Use of trailers in a fixed location shall not be permitted except as specified in this Section 7.4.

7.4.2 House Trailers or Other Movable Dwellings. Except as provided in G.L. c. 40A, § 3, house trailers or other movable dwellings are not permitted in any district, except by special permit from the Board of Appeals for a period of not more than 2 years, it being the intention of this Bylaw that house trailers or other movable dwellings will be permitted to remain only temporarily on any lot in Town, and in no event for more than 2 years. This Bylaw shall not apply to house trailers or other movable dwellings lawfully and continuously in existence on the same site since May 3, 1965.

7.4.3 Construction Trailers

In all districts, the Inspector of Buildings may authorize the temporary use of a trailer or trailers as a construction site office or for storage of construction materials during ongoing construction. Such authorization shall require the removal of the trailer(s) within 30 days after completion of the work for which the trailer(s) was permitted. In authorizing a building permit for a temporary trailer(s), the Inspector of Buildings shall impose the following conditions and standards:

(a) The trailer(s) will be used only for storage or as a construction office, and only in connection with construction underway on the premises. In no event shall the trailer(s) be used for real estate sales.

(b) The trailer(s) floor area shall be no larger than 350 square feet.

(c) The trailer(s) shall be in compliance with the building code and all other codes pertaining to the building's safety.

(d) The trailer(s) shall be located so that it is no less than 50 feet from a public way and from any abutter's property line. To the maximum extent possible, the applicant shall locate the trailer(s) so that it is not visible from a public way or from the abutting property.

(e) The trailer(s) may be used to store flammable, hazardous or explosive material only with approval from the Fire Department.

(f) The number of trailers is consistent with the size of the project.

(g) Use of trailers by the Town for educational or governmental purposes may be authorized by the Inspector of Buildings.

(h) Storage of a camping or travel trailer shall be permitted as specified in Section 4.2.1.b.

7.5 Open Space Commercial Development

7.5.1 Purpose. The purpose of this section is to encourage the preservation of open land for its scenic beauty, open space, forestry, and recreational use; to preserve historical and archeological resources; to protect the natural environment; to protect the value of real property; to promote more sensitive siting of buildings and better overall site planning; to perpetuate the appearance of Boxborough's traditional New England landscape; to allow landowners a reasonable return on their investment; and to facilitate the construction and maintenance of streets, utilities, and public services in a more economical and efficient manner.

7.5.2 Applicability

The Planning Board shall be the Special Permit Granting Authority for an Open Space Commercial Development. A special permit may be granted for an Open Space Commercial Development on any tract of land containing 10 or more acres in the Office

Park, Industrial- Commercial, or Business District.

Where a tract of land proposed to be developed as an Open Space Commercial Development is owned in common with contiguous, residentially zoned land, the buildable area of the residentially zoned land may be included within the Open Space Commercial Development for the purposes of calculating the total square footage of commercial development, and for the purposes of meeting area, open space and FAR requirements.

No part of the commercial development may be located on the residentially zoned portion of the tract, and the residentially zoned land shall be permanently protected as open space under Section 7.5.4.b.

7.5.3 Procedures. All applications for Open Space Commercial Development shall conform to the requirements stated in Planning Board's Administrative Rules and Regulations.

7.5.4 Modification of Requirements

The Planning Board may authorize modification of certain dimensional and parking requirements for lots within an Open Space Commercial Development, including the number, size, and other features of parking spaces and the size, shape, and other dimensional requirements, subject to the following limitations:

(a) Lots having reduced area or frontage must have frontage on a street created by a subdivision involved.

(b) Any land proposed to be designated as open space shall be permanently protected by a recorded restriction enforceable by the Town, providing that the land shall be kept in an open state or that it shall be preserved for exclusively agricultural or recreational purposes. Any land proposed as open land shall be served by suitable access for purposes of recreational use, forest management, or agricultural cultivation.

(c) A minimum of 50 percent of the tract of land shown on the Development Plan shall be maintained as open space. This open space may be separated by the road(s) constructed within the development. A 50-foot vegetated buffer shall be maintained around the perimeter of an Open Space Commercial Development.

7.5.5 Square Feet of Development. The total square feet of a commercial or industrial development shall be limited to the amount of development that could be constructed in full conformance with all zoning, subdivision, and other applicable state and local regulations, and without extraordinary engineering measures. Where the maximum square feet is in doubt, the determination of the Planning Board shall be conclusive for all purposes.

7.5.6 Decision

The Planning Board may approve, approve with conditions, or deny an application for

an Open Space Commercial Development in accordance with Section 2.3 of the Zoning Bylaw (governing special permits). The Planning Board may issue a special permit for an Open Space Commercial Development only if, in addition to other requirements, the applicant shall demonstrate that:

(a) The proposed development conforms with the purpose and intent of the Open Space Commercial Development Bylaw.

(b) The proposed buildings are designed in harmony with the natural features of the site. The site plan, to the extent possible, preserves the topography, views, vistas, wildlife habitat, significant trees or stands of trees, wetlands, brooks, waterbodies, historic or archeological sites, trails and cart paths located on the site.

(c) Adequate access is provided to the common open space.

(d) The overall design and site plan of the Open Space Commercial Development is superior to that of a conventional subdivision and warrants special consideration for modification of existing standards.

(e) The Open Space is of a size, shape, and dimension suitable for park, recreation, conservation, or agricultural purposes.

(f) The plan complies with applicable Subdivision Rules and Regulations.

7.6 Access Through a Commercial District to a Residential District

Access through the Business, Business 1, Office Park, or Industrial-Commercial Districts to the Agricultural-Residential District shall only be allowed by Special Permit. The Special Permit Granting Authority shall be the Planning Board. In granting a permit, the Planning Board shall find that, in addition to the standards set forth in Section 2.3.4 of this Bylaw, there are clear and compelling benefits to the town. In addition, the Board shall find that the proposed access and any development of the commercially zoned land adjacent to the access and under the same ownership, conforms to the following standards:

(a) Landscaped or natural buffers, a minimum of 100 feet wide, are provided between the residential and commercial use;

(b) The existing or proposed commercial use of the adjacent land is compatible with the proposed residential use, or the commercially zoned land is restricted from future commercial development. In the case where the commercially zoned land is restricted from future development, the Planning Board may allow a 100-foot encroachment into the commercial district for residential purposes;

(c) The proposal, to the maximum extent possible, protects the existing tree canopy;

(d) The proposal retains or preserves unique natural, historical or cultural resources located on the site, and;

(e) The proposal conforms to the applicable standards set forth in the Design Review Board's Design Guidelines, referenced under Section 2.6 of this Bylaw; or appropriate conditions may be placed on the special permit to ensure conformance with the Design Guidelines.

7.7 Solar Energy Systems

7.7.1 Purpose. To facilitate and provide reasonable regulations for the placement, design, construction, operation, monitoring, modification, removal and recycling of Solar Energy Systems that address public health, safety and welfare in accordance with MGL c. 40A, § 3, minimizes impacts on scenic, rural, natural and historic community resources, and provides adequate financial assurance for the eventual decommissioning of such installations.

7.7.2 Applicability

The following shall apply to all Solar Energy Systems, including related buildings, structures, and equipment, and to physical modifications of such installations that materially alter their type, configuration, or size as determined by the Planning Board:

(a) Site Plan Review shall be triggered by Medium and Large-Scale Ground-Mounted Solar Energy System Installations.

(b) Roof-Mounted Solar Energy Systems do not trigger Site Plan Review.

(c) Small-Scale Ground-Mounted Solar Energy Systems do not trigger Site Plan Review unless the proposed Solar Energy System is a) located in a residential district and b) requires placement in the front or side yard due an inability to site said Solar Energy System in the rear yard.

(d) Roof-Mounted and Small-Scale Ground-Mounted Solar Energy Systems, however, will be reviewed as part of an application triggering Site Plan Review. For reference to Site Plan Review Application Policy and Procedures, applicants shall refer to the Site Plan Review Provision documents as follows:

1) "Site Plan Review provisions for Large-Scale Ground-Mounted Solar Energy Systems"

2) "Site Plan Review provisions for Medium-Scale Ground-Mounted Solar Energy Systems"

3) "Site Plan Review provisions for Roof-Mounted and Small-Scale Ground-Mounted Solar Energy Systems"

7.8 Solar Energy Systems – Small-Scale Ground-Mounted and Roof-Mounted

7.8.1 Purpose. To facilitate and provide reasonable regulations for the placement, design, construction, operation, monitoring, modification, removal and recycling of Small-Scale Ground-Mounted and Roof-Mounted Solar Energy Systems that address public health, safety and welfare in accordance with MGL c. 40A, § 3, and which minimizes impacts on scenic, rural, natural and historic community resources.

7.8.2 Applicability. This section shall apply to all Small-Scale Ground-Mounted and Roof-Mounted Solar Energy Systems, including related buildings, structures, and equipment, and to physical modifications of such installations that substantially alter their type, configuration, or size as determined by the Planning Board.

(a) Site Plan Approval

Site Plan Approval may be required for Solar Energy Systems as noted below:

1) Roof-Mounted Solar Energy Systems do not require Site Plan Approval.

2) Small-Scale Ground-Mounted Solar Energy Systems require Minor Site Plan Approval if the proposed Solar Energy System is, a) located in an Agricultural-Residential (AR) or Residential 1 (R-1) zoning district and b) requires placement in the front or side yard due to an inability to site said Solar Energy System in the rear yard.

3) Pre-existing, non-conforming Small-Scale Ground-Mounted Solar Energy Systems are not subject to Site Plan Approval unless they are substantially altered, as determined by the Planning Board. Any increase in square footage is considered a substantial alteration and shall be subject to review by the Planning Board.

4) Small-Scale Ground-Mounted and / or Roof-Mounted Solar Energy Systems, included in Development and Redevelopment plans subject to Site Plan Approval under Section 2.5, will be reviewed as part of the Site Plan Approval review process.

5) Site Plan Approval Application Policy and Procedures - Applicants undergoing Site Plan Approval for Small-Scale Ground-Mounted and Roof-Mounted Solar Energy Systems shall refer to the following document(s) for additional information regarding application requirements:

- "Site Plan Approval Provisions for Small-Scale Ground-Mounted and Roof-Mounted Solar Energy Systems"
- "Minor Site Plan Approval provisions for Small-Scale Ground-Mounted Solar Energy Systems"

(b) Designation of Special Permit Granting Authority

Where a special permit is required pursuant to Sections 4.1.3.d and 4.12, the

Planning Board shall be the Special Permit Granting Authority (SPGA) for Small-Scale Ground-Mounted Solar Energy Systems.

7.8.3 Standards and Requirements

The following provisions shall apply to all Small-Scale Ground-Mounted and Roof-Mounted Solar Energy Systems in zoning districts where they are a permitted use.

(a) Setbacks

The Solar Layout of a Small-Scale Ground-Mounted Solar Energy System and Roof-Mounted Solar Layouts of an installation along with appurtenant structures, including but not limited to: buildings, equipment shelters, storage facilities, transformers and substations shall adhere to the building setbacks for front, side and rear yard dimensional requirements of the zoning district in which it is located.

All Small-Scale Ground-Mounted Solar Energy Systems in Agricultural-Residential Districts (AR) or Residential Districts (R-1) shall be installed in the rear yard to the greatest extent practicable. Placement of such systems, or a portion of such systems, in front or side yards is allowed only upon demonstration to the Planning Board that locating the Solar Energy System solely within the rear yard is not practicable or would result in a significant reduction of the Solar Energy Systems performance. Location of some or all of the Solar Energy System within the front or side yard in Agricultural-Residential Districts (AR) or Residential Districts (R-1) shall require a Minor Site Plan Approval.

(b) Landscaping and Screening

Additional screening is not required for Small-Scale Ground-Mounted Solar Energy Systems so long as said systems are sited in the rear yard and property setbacks for the rear and side yard are maintained in a vegetated state, including existing trees and woods, or evergreen plantings, at least three feet in height at the time of planting and which will normally at maturity reach at least five feet in height.

(c) Protection of Forest Land, Land Clearing, Habitat Impacts and Historically Significant Structures

1) Land Clearing - Not more than 1 acre of land shall be deforested for any one Small-Scale Ground-Mounted Solar Energy System. Clearing of natural vegetation shall be limited to what is necessary for the construction, operation and maintenance of the Solar Energy System or otherwise prescribed by applicable laws, regulations, and bylaws/ordinances.

2) Prohibited Locations - Small-Scale Ground-Mounted Solar Energy Systems are prohibited in locations of wetlands or aquifer districts as mapped by the Town of Boxborough, permanently protected open space as defined by the Town of Boxborough Open Space and Recreation Plan, Priority Habitat Areas and BioMap2 Core Habitat and Critical Natural Landscape as mapped by the Massachusetts Division of Fisheries and Wildlife's Natural Heritage & Endangered Species Program (NHESP) and Habitat of Potential Regional or Statewide Importance as mapped by the Department of Environmental Protection (DEP).

3) Historically Significant Structures – Solar Energy Systems on historically significant structures as identified by the Boxborough Historical Commission or as designated by federal, state, or local registries or databases, shall have limited or no visibility to the public and be integrated into the structure to minimize adverse visual impacts. The Planning Board and Design Review Board (in accordance with their purview under the Zoning Bylaw), reserve the right to recommend modifications to the proposed Solar Energy Systems to maintain the historical character of structures(s).

(d) Decommissioning

Upon decommissioning of Solar Energy Systems all solar panel components shall be reused or recycled using industry best practices available at the time of decommissioning.

(e) Height Limitations

Existing zoning district height limitations apply to all Small-Scale Ground-Mounted Solar Energy Systems. If the Small-Scale Ground-Mounted Solar Energy System is accessory to a principal building or structure on a lot, then the height restriction for accessory structures would apply as defined in Section 5.6 of this Bylaw. If the Small-Scale Ground-Mounted Solar Energy System is the principal structure on a lot, then the height restriction shall be a maximum of 15 feet from finished grade. An increase in height may be granted in commercial districts by special permit.

7.9 Solar Energy Systems – Medium and Large-Scale Ground-Mounted

7.9.1 Purpose

To facilitate and provide reasonable regulations for the placement, design, construction, operation, monitoring, modification, removal and recycling of Medium and Large-Scale Ground-Mounted Solar Energy Systems that address public health, safety and welfare in accordance with Massachusetts General Law Chapter 40A, Section 3, and which minimizes impacts on scenic, rural, natural and historic community resources,

and provides adequate financial assurance for the eventual decommissioning of such installations.

7.9.2 Applicability

This section shall apply to all Medium and Large-Scale Ground Mounted Solar Energy Systems, including related buildings, structures, and equipment, and to physical modifications of such installations that substantially alter their type, configuration, or size as determined by the Planning Board.

(a) Site Plan Approval

Site Plan Approval may be required for Solar Energy Systems as noted below:

1) Medium and / or Large-Scale Ground-Mounted Solar Energy Systems require Site Plan Approval.

2) Site Plan Approval Application Policy and Procedures - Applicants undergoing Site Plan Approval for Medium and / or Large-Scale Ground-Mounted Solar Energy Systems shall refer to the following document(s) for additional information regarding application requirements:

- "Site Plan Approval Provisions for Medium-Scale Ground-Mounted Solar Energy Systems"
- "Site Plan Approval Provisions for Large-Scale Ground-Mounted Solar Energy Systems"

(b) Designation of Special Permit Granting Authority

Where a special permit is required pursuant to Sections 4.1.3.d and 4.12, the Planning Board shall be the Special Permit Granting Authority (SPGA) for Medium and Large-Scale Ground-Mounted Solar Energy Systems.

7.9.3 Standards and Requirements

The following provisions shall apply to all Medium-Scale and Large-Scale Ground-Mounted Solar Energy Systems in zoning districts where they are a permitted use.

(a) Setbacks

The Solar Layouts of Medium-Scale or Large-Scale Ground-Mounted Solar Energy Systems, along with all appurtenant structures, including but not limited to: buildings equipment shelters, storage facilities, transformers and substations shall adhere to a 100 foot front, side and rear yard setback requirement in all zoning districts. The Planning Board may reduce setbacks from lot lines by Special Permit for the Solar Layout of a Medium-Scale Ground-Mounted Solar Energy System of 5,000 square feet or less, and/or for any appurtenant

structures, if such adjustments enhance the overall site design and still provide protection to adjacent properties. In such a case, additional screening may be required to minimize adverse impacts.

Any Medium-Scale Ground-Mounted Solar Energy Systems allowed by Special Permit within residential districts shall be installed in the rear yard.

(b) Landscaping and Screening

All appurtenant structures, including but not limited to: buildings, equipment shelters, storage facilities, transformers, and substations shall be architecturally compatible with each other. All structures shall be hidden from view by vegetation or fencing and shall be in place prior to operation. Landscape plantings and/or solid fenced screening shall be provided to reduce the visual impact of Ground-Mounted Solar Energy Systems, along with all appurtenant structures, and specifically to protect nearby receptors from danger, harm, or nuisance that may result from reflective glare. Solar Energy Systems and all appurtenant structures shall have anti-reflective surfaces.

Front, side and rear yard setback areas shall be designed to reduce the visual impact of the Medium and Large-Scale Ground-Mounted Solar Energy System upon adjacent property by use of trees and shrubs and/or naturally vegetated conditions or fencing. Where naturally vegetated conditions are insufficient to reduce visual impacts year-round, landscape plantings for Medium and Large-Scale Ground-Mounted Solar Energy Systems shall consist of a densely planted screen of evergreen foliage not less than 8 feet in height at the time of installation. Suitable landscape plantings shall consist of native species identified by the UMass Clean Energy Extension Pollinator-Friendly Solar PV for Massachusetts initiative.

Should fencing be used, it shall be no more than seven (7) feet high, constructed of durable materials and supplemented with landscape plantings, as defined above. Berms or other methods to adequately screen the facility, depending on site specific conditions may be considered. All screening shall be maintained and replaced as necessary by the owner / operator of the Medium or Large-Scale Ground-Mounted Solar Energy System.

(c) Lighting

Lighting of Medium and Large-Scale Ground-Mounted Solar Energy Systems and appurtenant structures shall be limited to that required for safety and operational purposes, and shall be fully shielded from abutting properties. Lighting of the Medium or Large-Scale Ground-Mounted Solar Energy System shall be directed downward and shall incorporate full cut-off fixtures to reduce light pollution. Security lighting shall be controlled by motion detectors or infrared sensors with an on-time of no more than 10 minutes per activation. No all-night lighting will be allowed.

(d) Utility Connections

All utility connections, conduits, cables, power lines, transformers and inverters shall be placed underground, except (a) where otherwise required by the Massachusetts State Building Code, Massachusetts and/or National Electric Code, the Utility Provider or other authority having jurisdiction; (b) in adverse ground conditions such as appropriate soil conditions, shape and topography of the site, ledge or excess water; or (c) for connection to existing above ground utility lines.

1) Wiring – Wiring within the installation's Solar Layout shall follow industry standards and meet the requirements of the Utility Provider.

2) Aboveground Connections - Aboveground connections that already exist proximate to the site of the proposed facilities may be used, subject to Site Plan Approval by the Planning Board and subject to the requirements of the Utility Provider.

3) Electrical Transformers - Electrical transformers for utility interconnections may be located above ground, subject to Site Plan Approval by the Planning Board and subject to the requirements of the Utility Provider.

4) Access Roads

Where feasible all access roads and utilities shall minimize bisecting of the property and be installed along the perimeter of project.

Access roads and associated tree clearing shall not exceed 25 feet in width.

(e) Noise

1) Noise Generating Equipment - All noise-generating equipment shall be installed as far from abutting structures as practical to mitigate potential noise impacts.

2) Noise Studies - A pre and post-construction noise study shall be required of all Large-Scale Ground-Mounted Solar Energy System installations to demonstrate that the facility is in compliance with the Massachusetts DEP's Noise Policy.

(f) Signs

1) Signs shall comply with the requirements of Section 6.5 of this Bylaw.

2) Dimensions – Facilities located within the Agricultural / Residential Districts shall not have more than one sign, with dimensions no larger than 1 square foot in area per side shall be required to identify the owner and provide a 24-hour emergency contact phone number and may be installed with the trademarks of the installer, manufacturer, and operator of the installation.

3) Advertisements - Medium and Large-Scale Ground-Mounted Solar Energy Systems shall not be used for displaying any advertising except for reasonable identification of the manufacturer, owner or operator of the Solar Energy System.

4) Visibility - Signs should not be visible to abutters nor to passersby on the street, if it can still be visible for emergency purposes.

(g) Stormwater Management and Conservation

Best management practices shall be used for controlling and managing stormwater run-off and drainage for Medium and Large-Scale Ground-Mounted Solar Energy Systems in compliance with all applicable federal, state and local regulations. To the largest extent possible, the ground shall remain pervious to rain water. Where necessary, adequate provision shall be made for groundwater recharge and to prevent site run-off and erosion.

Calculation of Impervious Area - Medium and Large-Scale Ground-Mounted Solar Energy Systems shall not be included in calculations for lot coverage or impervious cover so long as the Solar Collectors have planted surfaces beneath them such as pollinator habitat, dual-use solar or agrivoltaics installations. If the area beneath a Medium or Large-Scale Ground-Mounted Solar Energy System is to be paved or otherwise rendered impervious then this land area shall in fact, count toward any coverage or impervious surface limit. Land required for access roads, utility connections and appurtenant structures will be included in calculations for lot coverage or impervious cover of land.

(h) Protection of Forest Land and Prime Farm Land, Land Clearing, Habitat Impacts and Historically Significant Structures

1) Land Clearing - Not more than 1 acre of land shall be deforested for any one Medium and/or Large-Scale Ground-Mounted Solar Energy System. Clearing of natural vegetation shall be limited to what is necessary for the construction, operation and maintenance of the Solar Energy System or otherwise prescribed by applicable laws, regulations, and bylaws/ordinances.

2) Prohibited Locations – Medium and / or Large-Scale Ground-Mounted Solar Energy Systems are prohibited in locations of old growth forest, prime farmland soils as defined by the US Department of Agriculture Natural Resources Conservation Service, wetlands, aquifer districts, permanently protected open space, Priority Habitat Areas and BioMap2 Core Habitat and Critical Natural Landscape mapped by the Massachusetts Division of Fisheries and Wildlife's Natural Heritage & Endangered Species Program (NHESP) and Habitat of Potential Regional or Statewide Importance as mapped by the Massachusetts Department of Environmental Protection (DEP).

3) Historically Significant Structures – Solar Energy Systems on historically significant structures as identified by the Boxborough Historical Commission or as designated by federal, state, or local registries or databases, shall have limited or no visibility to the public and be integrated into the structure to minimize adverse visual impacts. The Planning Board and Design Review Board (in accordance with their purview under the Zoning Bylaw), reserve the right to recommend modifications to the proposed Solar Energy Systems to maintain the historical character of structure(s).

4) Preferred Locations - Siting of Solar Energy Systems is encouraged in the following locations:

- Building roofs
- Brownfield sites and previously developed sites
- Parking lots

Greenfield development is discouraged. Applicants who propose greenfield installations will be required to demonstrate why the proposed site is preferable to a previously developed site. Such demonstration shall include a comparison of environmental impacts and a cost-benefit assessment.

(i) Height Limitation

1) Existing zoning district height limitations apply for all Ground-Mounted Solar Energy Systems.

2) If a Ground-Mounted Solar Energy System is accessory to a principal building or structure on a lot, then the height restriction for accessory structures would apply as defined in Section 5.6 of this Bylaw.

3) If a Ground-Mounted Solar Energy System is the principal structure on a lot, then the height restriction shall be a maximum of 15 feet from finished grade.

4) An increase in height may be granted in commercial districts by Special Permit from the Planning Board.

(j) Decommissioning

1) Upon decommissioning of Solar Energy Systems all solar panel components shall be reused or recycled using industry best practices available at the time of decommissioning.

2) Life-Cycle Analysis – At the time of Application for Site Plan Approval, the Applicant may be required, as deemed appropriate by the Planning Board, to demonstrate a life-cycle analysis of the components to ensure that there is a net environmental benefit to the proposed installation.

3) Surety - Proponents of Large-Scale Ground-Mounted Solar Energy Systems shall provide a form of surety, either through escrow account, bond or otherwise, to cover the cost of removal in the event the Town must remove the installation and remediate the landscape, in an amount and form determined to be reasonable by the Planning Board, but in no event to exceed more than 125% of the cost of removal and compliance with the additional requirements set forth herein, as determined by the project proponent. The project proponent shall submit a fully inclusive estimate of the costs associated with removal, prepared by a qualified engineer. The amount shall include a mechanism for calculating increased removal costs due to inflation.

ARTICLE 8. SPECIAL DISTRICTS

8.1 Aquifer Protection District

8.1.1 Purpose. The purpose of the Aquifer Protection District is to promote the health, safety, and welfare of the community by protecting, preserving and maintaining the groundwater supply and groundwater recharge areas within the known aquifers of the Town; and preserving and protecting sources of water supply for the public health and safety; and protecting the groundwater and groundwater recharge areas of the Town from development or land use practices adverse to their future purity, viability, and accessibility for use.

8.1.2 Overlay District. The Aquifer Protection District is an overlay district and shall be superimposed on the other Districts established by this Bylaw. Any land lying within the Aquifer Protection District shall also be subject to the development and use regulations of the underlying district in which the land is situated but only to the extent not inconsistent with the regulations for the Aquifer Protection District.

8.1.3 Location of Aquifer Protection Districts

For the purposes of these districts, there are hereby established within the Town certain aquifer protection areas, consisting of aquifers and/or aquifer recharge areas, which are delineated on a map at a scale of 1 inch to 400 feet, prepared for the Town of Boxborough by Boston Survey Consultants and dated December 1978, and modified by IEP, Inc., September 1981 to show "Significant Aquifer Areas." This map is hereby made a part of this district and of the Town Zoning Bylaw and is on file in the Office of the Town Clerk.

Where the bounds as delineated are in doubt or dispute, the applicant may submit a written request to the Planning Board to review the Aquifer delineation. The Planning Board will engage a professional geologist, hydrogeologist, or engineer trained and experienced in hydrology to determine more accurately the location and extent of the aquifer or recharge area which constitutes a portion of the Aquifer Protection District. Such study shall be paid for by the applicant. The Board of Appeals may grant a special permit waiving some or all of the requirements set forth below where the results of the investigation indicate, to the satisfaction of the board, that the proposed development shall not occur within or over any recharge area.

8.1.4 Special Permits. The Special Permit Granting Authority shall be the Board of Appeals. The Board of Appeals may grant a special permit if it determines that the applicant has met the conditions of Section 8.1.

8.1.5 Use Regulations

Symbols employed below shall mean the following:
Y – a permitted use.
N - excluded or prohibited use.
ZBA - a use authorized under special permit granted by the Zoning Board of Appeals as provided under Section 2.3.

Aquifer Protection District Use Regulations

a. Use of sodium salts except on public highways in minimum amounts consistent with Public Highway Safety	N
b. Storage of road salt or other de-icing chemicals, unless housed to prevent leaching from rain water or snow melt	N
c. Dumping of snow brought in from outside the Aquifer Protection District	N
Industrial uses which discharge process wastewater on-site, except for the treatment of sanitary waste	N
d. Use of any septic tank additives, except for sulphuric acid or other biodegradable treatment performed by a licensed professional and supervised by the Board of Health	N
e. Subsurface disposal of liquid or leachable waste or other than sanitary waste	N
f. Disposal of sanitary waste to a subsurface disposal system in quantities exceeding the limit calculated as described below or construction of a sanitary waste system exceeding the limit as described below where the disposal system or its leaching field is wholly or partly within an Aquifer Protection District:	
(1) When a lot is entirely within this district, sanitary waste disposal in excess of 440 gallons per day per acre	N
(2) When a lot is partially within this district, sanitary waste disposal in excess of 440 gallons per day per acre of Aquifer Protection District contained within the lot, except as provided in this table.	N
g. Rendering impervious of more than 20% of any lot except as provided below in this table.	N
h. Permanent removal of earth, sand, and gravel closer than 10 feet above historical high groundwater table except as required for construction and maintenance of structures, drainage facilities, or ponds.	N
i. Storage of uncovered manure in excess of 16 cubic yards per parcel of land as defined by the assessors.	N
j. Automotive, motor, engine or mechanical repair, or service shops except automotive electronic repair shops only.	N

k. Storage of petroleum or other refined petroleum products except within the buildings which it will heat or in vaulted tanks equipped with monitoring systems and not to exceed 2,500 gallons except that up to 10,000 gallons of #2 or more viscous heating oil is allowed.	N
l. Any intensive use of fertilizer, herbicides, or pesticides or any outside storage of these materials except for a public health emergency certified by the Board of Health.	N
m. Storage or disposal of hazardous wastes.	N
n. Junk-yard, salvage, or material recycling facility unless housed to prevent leaching from rainwater and snow melt	N
o. Application, production, storage, or use of hazardous materials in quantities greater than associated with normal cleaning or maintenance procedures and in no case totaling more than 20 kilograms.	N
p. Disposal of solid waste, other than brush and stumps; landfills and open dumps as defined in 310 CMR 19.006; landfilling of sludge or septage as defined in 310 CMR 32.05.	N
q. Disposal of sanitary waste from single family residential structures to subsurface disposal systems in quantities exceeding the limit described in this table. above or the construction of such systems, but only when the disposal rate does not exceed the rate allowed in this table. by more than 100%	ZBA
r. Rendering impervious of more than 20% of any lot, unless drainage retention structures such as filtered catch basins, impoundment areas, etc. are constructed which will ensure that the recharge rate will not be reduced by an amount more than 20% coverage would cause	ZBA
s. Vaulting and monitoring of storage of liquid petroleum products	ZBA

8.1.6 Submittals. Applications for special permits shall be prepared and submitted to the Board of Appeals in accordance with the provisions of Section 2.3 of this Bylaw and the design requirements in Section 8.1.7.

8.1.7 Design Requirements

For those uses which require a special permit or site plan approval, the following standards shall apply:

(a) Where a portion of the lot is partially outside the Aquifer Protection District, site design shall, to the extent feasible, locate potential pollution sources, such

as on-site disposal systems, outside the District boundaries.

(b) All runoff from impervious surfaces shall be recharged on the site by being diverted towards areas covered with vegetation for surface infiltration to the extent possible. Dry wells shall be used only where other methods are infeasible and shall be preceded by oil, grease, and sediment traps to facilitate removal of contamination.

(c) Applicants shall be encouraged to leave as much as possible of the lot in its natural state with no more than minor removal of existing trees and ground vegetation; in no case shall less than 30% of the lot be left in its natural state.

8.1.8 Decision

The application for a special permit may be approved where, in the opinion of the Board of Appeals, the proposal meets either of the following standards (8.1.8.a or 8.1.8.b):

(a) Performance Standards.

The applicant has clearly demonstrated that:

1) The construction and operations of the proposed use will result in groundwater quality at the boundaries of the premises meeting or exceeding the standards established by the Massachusetts Department of Environmental Protection and regulations promulgated by it relating to drinking water standards;

2) Where existing groundwater quality is already below those standards, the proposed use will result in no further degradation and the volume of run-off leaving the site shall be unchanged;

3) A suitable proportion of runoff surfaces shall be recharged to the groundwater, and;

4) An adequate system has been designed to monitor the groundwater quality and that the applicant shall bear the costs for implementing that monitoring system.

(b) Additional non-contiguous acreage.

The applicant has ensured that:

1) The permanent preservation in permeable and substantially vegetated condition of enough land lying hydrologically within the same aquifer district as the proposed use requiring a special permit to achieve overall the permitted coverage and septage requirements, and;

2) The area (acreage) of preserved land when combined with the area (acreage) of the site of the proposed use must be sufficient to result in disposal of sanitary waste in a quantity less than or equal to 440 gallons per day per acre, and in the rendering impervious of not more than 20 percent of the combined land area.

Preserved land need not be contiguous with the site of the proposed use. The means of preservation may be by Conservation Restriction given the Town, or any other means the Board of Appeals finds to be reliably binding and permanent.

Section 8.2 Floodplain Overlay District (Floodplain District)

8.2.1. Purpose The purpose of the Floodplain District is to:

1) Ensure public safety through reducing the threats to life and personal injury
2) Eliminate new hazards to emergency response officials
3) Prevent the occurrence of public emergencies resulting from water quality, contamination, and pollution due to flooding
4) Avoid the loss of utility services which if damaged by flooding would disrupt or shut down the utility network and impact regions of the community beyond the site of flooding
5) Eliminate costs associated with the response and cleanup of flooding conditions
6) Reduce damage to public and private property resulting from flooding waters

8.2.2. Use of FEMA maps and supporting studies The Floodplain District is herein established as an overlay district. The District includes all special flood hazard areas within Boxborough designated as Zone A, AE, AH, AO, A99, V, or VE on the Middlesex County Flood Insurance Rate Map (FIRM) dated July 8, 2025 issued by the Federal Emergency Management Agency (FEMA) for the administration of the National Flood Insurance Program. The exact boundaries of the District shall be defined by the 1%-chance base flood elevations shown on the FIRM and further defined by the Middlesex County Flood Insurance Study (FIS) report dated July 8, 2025. The FIRM and FIS report are incorporated herein by reference and are on file with the Town Clerk, Planning Board, Building Official, Conservation Commission and the Office of Land Use and Permitting.

8.2.3. Designation of community Floodplain Administrator The Town of Boxborough hereby designates the position of Building Commissioner to be the official floodplain administrator for the Town.

8.2.4. Permits required for all proposed development in the Floodplain District The Town of Boxborough requires a permit for all proposed construction or other development in the floodplain district, including new construction or changes to existing buildings, placement of manufactured homes, placement of agricultural facilities, fences, sheds, storage facilities or drilling, mining, paving and any other development that might increase flooding or adversely impact flood risks to other properties.

8.2.5. Assurance that all necessary permits are obtained The town's permit review process includes the requirement that the proponent obtain all local, state and federal permits that will be necessary in order to carry out the proposed development in the floodplain district. The proponent must acquire all necessary permits, and must demonstrate that all necessary permits have been acquired.

8.2.6. Floodway encroachment

In Zones A, A1-30, and AE, along watercourses that have not had a regulatory floodway designated, the best available Federal, State, local, or other floodway data shall be used to prohibit encroachments in floodways which would result in any increase in flood levels within the community during the occurrence of the base flood discharge.

In Zones A1-30 and AE, along watercourses that have a regulatory floodway designated on the Town's FIRM encroachments are prohibited, including fill, new construction, substantial improvements, and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.

8.2.7. Unnumbered A Zones In A Zones, in the absence of FEMA BFE data and floodway data, the building department will obtain, review and reasonably utilize base flood elevation and floodway data available from a Federal, State, or other source as criteria for requiring new construction, substantial improvements, or other development in Zone A and as the basis for elevating residential structures to or above base flood level, for floodproofing or elevating nonresidential structures to or above base flood level, and for prohibiting encroachments in floodways.

8.2.8. Subdivision proposals All subdivision proposals and development proposals in the floodplain district shall be reviewed to assure that:

(a) Such proposals minimize flood damage.

(b) Public utilities and facilities are located & constructed so as to minimize flood damage.

(c) Adequate drainage is provided.

8.2.9. Base flood elevation data for subdivision proposals When proposing subdivisions or other developments greater than 50 lots or 5 acres (whichever is less), the proponent must provide technical data to determine base flood elevations for each developable parcel shown on the design plans.

8.2.10. Recreational vehicles In A, A1-30, AH, AO, AE Zones, all recreational vehicles to be placed on a site must be elevated and anchored in accordance with the zone's regulations for foundation and elevation requirements or be on the site for less than 180 consecutive days or be fully licensed and highway ready.

8.2.11. Watercourse alterations or relocations in riverine areas
In a riverine situation, the Flood Plain Administrator shall notify the following of any alteration or relocation of a watercourse:

- Adjacent Communities, especially upstream and downstream
- Bordering States, if affected
- NFIP State Coordinator

Massachusetts Department of Conservation and Recreation

- NFIP Program Specialist

Federal Emergency Management Agency, Region I

8.2.12. Requirement to submit new technical data If the Town acquires data that changes the base flood elevation in the FEMA mapped Special Flood Hazard Areas, the Town will, within 6 months, notify FEMA of these changes by submitting the technical or scientific data that supports the change(s.) Notification shall be submitted to:

- NFIP State Coordinator
  Massachusetts Department of Conservation and Recreation
- NFIP Program Specialist
  Federal Emergency Management Agency, Region I

8.2.13. Variances to building code floodplain standards The Town will request from the State Building Code Appeals Board a written and/or audible copy of the portion of the hearing related to the variance, and will maintain this record in the community's files.

The Town shall also issue a letter to the property owner regarding potential impacts to the annual premiums for the flood insurance policy covering that property, in writing over the signature of a community official that (i) the issuance of a variance to construct a structure below the base flood level will result in increased premium rates for flood insurance up to amounts as high as $25 for $100 of insurance coverage and (ii) such construction below the base flood level increases risks to life and property.

Such notification shall be maintained with the record of all variance actions for the referenced development in the floodplain district.

8.2.14. Variances to local Zoning Bylaws related to community compliance with the National Flood Insurance Program (NFIP)

A variance from these floodplain bylaws must meet the requirements set out by State law, and may only be granted if:

1) Good and sufficient cause and exceptional non-financial hardship exist;

2) the variance will not result in additional threats to public safety, extraordinary public expense, or fraud or victimization of the public; and

3) the variance is the minimum action necessary to afford relief.

8.2.15. Abrogation and greater restriction section The floodplain management regulations found in this Floodplain District section shall take precedence over any less restrictive conflicting local laws, ordinances or codes.

8.2.16. Disclaimer of liability The degree of flood protection required by this bylaw is considered reasonable but does not imply total flood protection.

8.2.17. Severability If any section, provision or portion of this bylaw is deemed to be unconstitutional or invalid by a court, the remainder of the ordinance shall be effective.

8.2.18. Local Enforcement The Floodplain District and any violations of this section 8.2 is subject to enforcement, as defined in section 2.1 Enforcement.

8.3 Wireless Communication Facilities Overlay District

Wireless Communication Facilities shall be allowed only in the Wireless Communication Facilities Overlay District, which shall be located as shown on the map displayed as Appendix C.

8.4 Recreational Marijuana Establishment Overlay District

8.4.1 Permitted types of Recreational Marijuana Establishments and any other type of Recreational Marijuana Establishment not expressly prohibited in the Zoning Bylaw, if any, are only allowed in the Recreational Marijuana Establishment Overlay District as of right pursuant to a Host Community Agreement. The Recreational Marijuana Establishment Overlay District shall be located as shown on the map as displayed as Appendix D.

8.4.2 The operation within the Town of Boxborough of any marijuana establishment, as defined in MGL c. 94G, § 1, not expressly allowed by this bylaw, including, without limitation, a marijuana cultivator, marijuana testing facility, marijuana research facility, marijuana product manufacturer, marijuana retailer, or any other type of licensed marijuana-related business, is prohibited. This prohibition shall not apply to the sale, distribution, or cultivation of marijuana for medical purposes by a Registered Marijuana Dispensary.

8.5 MBTA Communities Multi-family Overlay District

8.5.1 Purpose. The purpose of the MBTA Communities Multi-family Overlay District (MCMOD) is to allow multi-family housing as of right in accordance with Section 3A of the Zoning Act (Massachusetts General Laws Chapter 40A). This zoning provides for as of right multi-family housing to accomplish the following purposes:

(a) Provide immediate access to rapid transit resources.
(b) Promote a range of housing choices.
(c) Increase opportunities for infrastructure improvements that would promote increased pedestrian access, mobility, and stormwater improvements.
(d) Maintain and encourage appropriate massing and height of buildings that blend in and enhance the building elevations already in existence.

8.5.2 Establishment. This MCMOD is an overlay district having a land area of approximately 10.54 acres in size that is superimposed over the underlying zoning district(s) and is shown on the Zoning Map as Appendix E.

8.5.3 Definitions. For purposes of this Section 8.5, the following definition shall apply.

Multi-Family Housing. A building with 3 or more residential dwelling units or 2 or more buildings on the same lot with more than 1 residential dwelling unit in each building.

8.5.4 Applicability of MCMOD. An applicant may develop multi-family housing located within a MCMOD in accordance with the provisions of this Section 8.5.

8.5.5 Underlying Zoning. The MCMOD is an overlay district superimposed on underlying zoning districts. The regulations for use, dimension, and all other provisions of the Zoning Bylaw governing the respective underlying zoning district(s) shall remain in full force, except for uses allowed as of right or by special permit in the MCMOD. Uses that are not identified in Section 8.5 are governed by the requirements of the underlying zoning district(s).

8.5.6 Permitted Uses

(a) Uses Permitted as of Right. The following uses are permitted as of right within the MCMOD.

1) Multi-family housing, at a rate of no more than 13 units per acre.

8.5.7 Dimensional Regulations.

(a) Table of Dimensional Regulations. Notwithstanding anything to the contrary in this Zoning, the dimensional requirements applicable in the MCMOD are as follows:

Dimension	Unit
Minimum Lot Size	10,000 Sq Ft

Dimension	Unit
Maximum Stories	2
Maximum Building Height	30 FT
Maximum Lot Coverage	60%
Minimum Open Space	40%
Front Yard Setback	40 Ft
Rear Yard Setback	30 Ft
Side Yard Setback	40 Ft

(b) Roof-Mounted Solar Energy Systems. Roof Mounted Solar Energy Systems are not subject to these dimensional regulations and shall be allowed in excess of the maximum building height.

8.5.8 Parking Requirements. Notwithstanding anything to the contrary in this Zoning, the parking requirements applicable in the MCMOD are as follows:

Vehicle Parking Spaces	1.5 Spaces/unit
Bicycle Parking Spaces	1 Spaces/unit
Electric Vehicle Spaces	0.2 Spaces/Vehicle Parking Space

(a) Bicycle storage. For a multi-family development of 10 units or more, covered parking bicycle parking spaces shall be integrated into the structure of the building(s).

8.5.9 Affordability Requirements.

A minimum of ten percent (10%) of the units in a multiple unit development subject to this Bylaw shall be established as affordable housing units constructed or rehabilitated in the MCMOD. Fractions of a dwelling unit shall be rounded down to the nearest whole number. In the event that the Town receives approval by Massachusetts Executive Office of Housing and Livable Communities (EOHLC) of an Economic Feasibility Analysis which indicates feasibility of a higher affordability requirement, this requirement shall increase up to the maximum permitted by law.

8.5.10 Site Plan Review

(a) Applicability. Site Plan Approval under Article 2.5 is required for a project that proposes six (6) dwelling units or more.

(b) Review and Approval. An application for Site Plan Review shall be reviewed by the Planning Board for consistency with the purpose and intent of Article 2.5, Article 8.5, and Planning Board Rules and Regulations for Site Plan Approval.

(c) Design Review Board. The Design Review Board shall review applications for Site Plan Approval within the MCMOD and provide a written recommendation to the Planning Board prior to the close of the public hearing.

8.5.11 Severability. If any provision of this Section 8.5 is found to be invalid by a court of competent jurisdiction, the remainder of Section 8.5 shall not be affected but shall remain in full force. The invalidity of any provision of this Section 8.5 shall not affect the validity of the remainder of the Boxborough Zoning Bylaw.

ARTICLE 9. DEFINITIONS

9.1 Construction

In this Bylaw, the following terms and rules of construction shall apply unless a contrary meaning is required by the context or is specifically prescribed in the text of the Bylaw. Words used in the present tense include the future. The singular number includes the plural and the plural number includes the singular. The word "shall" is mandatory; the word "may" is permissive; the word "should" refers to that which is preferred. The word "and" includes "or" unless the contrary is indicated in the text. If the context indicates that the word "or" does not include the word "and" where a regulation involves two or more items, conditions, provisions, or events connected by the conjunction "and", "or", "either or", the conjunction shall be interpreted as follows:

(a) "And" indicates that all the connected items, conditions, provisions, or events shall apply;

(b) "Or" indicates that the connected items, conditions, provisions, or events may apply singly or in any combination;

(c) "Either or" indicates that the connected items, conditions, provisions, or events shall apply singly but not in combination;

(d) "Includes" or "including" shall not limit a term to specified examples but is intended to extend its meaning to all other instances, circumstances, or items of like kind or character;

(e) "Used or occupied" shall be considered as though followed by the words "or intended or arranged to be used or occupied";

(f) "Structure", "lot", or "parcel" shall be construed as being followed by the words "or any portion thereof";

(g) "Person" includes as well as any individual or individuals, any firm, association, organization, partnership, company, or corporation whether or not the above are organized for a profit;

(h) For terms and words not defined herein that are defined in the State Building Code (MGL c. 23B, § 17, 19, 20 and 21), the definition in the State Building Code shall apply. Where a definition contained herein differs with a definition in the State Building Code, the definition in this Bylaw shall apply but without abrogating the definition as it is contained in and applies to the Building Code.

9.2 Terms Defined

Accessory Building shall mean a detached building, subordinate to the principal building or use and located on the same lot therewith, the use of which is customarily incidental to the principal building or use.

Accessory Sign shall mean any sign that advertises or identifies the person or persons occupying the premises on which the sign is erected or maintained, or the business transacted thereon, or advertises the property itself or any part thereof as for sale or rent, or which gives directions or announcements with respect to the property or the use of the property, and contains no other matter.

Accessory Dwelling Unit (ADU) Shall Mean a self-contained housing unit, inclusive of sleeping, cooking and sanitary facilities on the same lot as a principal dwelling, subject to otherwise applicable dimensional and parking requirements, that:

(i). maintains a separate entrance, either directly from the outside or through an entry hall or corridor shared with the principal dwelling sufficient to meet the requirements of the state building code for safe egress;

(ii). is not larger in gross floor area than 1/2 the gross floor area of the principal dwelling or 1,000 square feet, whichever is smaller; and

(iii). is subject to such additional restrictions as may be imposed herein; and

(iv). May be attached or detached.

Accessory Use shall mean a use customarily incidental and subordinate to the principal building or use of the premises.

Adult Use shall mean and include:

- Adult Bookstores, as defined in G.L. c. 40A, § 9A;
- Adult Motion Picture Theaters, as defined in G.L. c. 40A, § 9A;
- Adult Paraphernalia Store, as defined in G.L. c. 40A, § 9A;
- Adult Video Store, as defined in G.L. c. 40A, § 9A;
- Establishment Which Displays Live Nudity For Its Patrons, as defined in G.L. c. 40A, § 9A

Agriculture shall mean the use of land and structures thereon for the principal purpose of the commercial or domestic production of crops, fruit, dairy products, horses, cattle, sheep, goats, poultry, eggs, maple syrup products, or honey or any combination thereof.

Airport, Heliport shall mean any area of land designed and used for the landing and take-off of aircraft, including facilities for the housing, and maintenance of aircraft.

Animal Shelter shall mean buildings and associated structures owned and operated by a charitable, non-profit organization, and used for the temporary confinement and care of dogs and cats.

Area Median Income (AMI) shall mean the median family income for the metropolitan statistical region that includes the Town of Boxborough, Massachusetts, as defined by the U.S. Department of Housing and Urban Development (HUD).

Aquifer shall mean a geologic formation composed of rock or sand and gravel having a saturated thickness of 10 or more feet and a transmissivity of 5,000 gallons per day per foot or greater that contains significant amounts of potentially recoverable potable water.

As of right (also referred to as by-right) shall mean development that may proceed under the Zoning in place at time of application without the need for a special permit, variance, zoning amendment, waiver, or other discretionary zoning approval. Development may still be subject to site-plan review.

Assisted Living Facility shall mean a facility that is designed and operated to provide its elderly residents with a broad range of services to meet primarily the needs of residents of the facility, including independent or assisted living in single or multi-unit dwellings and some or all of the following: a nursing home; skilled nursing; medical and other health services; personal care; and other services. A nursing home by itself shall not be considered an "Assisted Living Facility."

Automobile Service Station shall mean any establishment where gasoline and other petroleum products are sold and may include accessory facilities for the sale of other retail

products, but excluding any motor vehicle maintenance activities such as vehicle repair, or auto detailing.

Bed and Breakfast or Lodging Home shall mean a building providing lodging for visitors with the proprietor living on the premises.

Biosafety Level (BSL) - shall mean a specific combination of work practices, safety equipment, and facilities which are designed to minimize the exposure of workers and the environment to infectious agents. The Biosafety levels as described in the Centers for Disease Control and Prevention (CDC) and National Institutes of Health (NIH) publication, "Biosafety in Microbiological and Biomedical Laboratories, 6th Edition" are:

- BSL-1 - the basic level of protection and is appropriate for defined and characterized strains of viable biological agents that are not known to cause disease in immunocompetent adult humans;
- BSL-2 - appropriate for handling moderate-risk agents that cause human disease of varying severity by ingestion or through percutaneous or mucous membrane exposure;
- BSL-3 - appropriate for agents with a known potential for aerosol transmission, for agents that may cause serious and potentially lethal infections, and that are indigenous or exotic in origin;
- BSL-4 - exotic agents that pose a high individual risk of life-threatening disease by infectious aerosols and for which no treatment is available.

Building shall mean any structure, whether portable or fixed, having a roof supported by columns or walls and intended for the shelter of persons, animals, or property.

Building Height shall mean the vertical distance measured from the average finished grade at its point of intersection with the front wall of the building to the point specified below for the particular roof type; provided, however, that no measurement to any point listed below, taken vertically from any point at finished grade along the foundation wall, shall exceed the building height by greater than 10 feet. Building height shall be measured to the:

- Highest point of the roof of a flat roof;
- Point halfway between the junction of the top of the roof and the extension of the exterior wall, and the top of the ridge line of a gable or hip roof; provided that when the roof slope is greater than a ratio of 1 foot vertical to 1 foot horizontal, the measurement shall be taken at a point two-thirds of the way up;
- Point one-halfway between the intersection of the lower slope with the upper slope and the ridge line or top of a mansard or gambrel roof; or
- Point two-thirds of the distance up from the sill, plate or exterior wall extended to the top of the roof at that point, and the top of the ridge of a French roof or an A-frame roof.

Building Line shall mean the shortest straight line measurement made between the side lot lines and passing through that part of the house that is closest to the street.

Building Permit shall mean a document issued by the Inspector of Buildings authorizing the erection, moving, alteration, addition to, or reconstruction of buildings and structures consistent with this Bylaw and the State Building Code.

Building, Principal shall mean a building in which is conducted the main or principal use of the lot on which the building is situated.

Building Trade shall mean an establishment for use by tradesmen such as a carpenter, welder, plumber, electrician, roofer, builder, mason, building cleaning service, painter, contractor, or similar occupation.

Car Sales shall mean the indoor or outdoor sale of new or used Class D cars or trucks.

Certificate of Occupancy shall mean the certificate issued by the Inspector of Buildings which permits the use of a building, structure, or land in conformance with this Bylaw.

Club shall mean the facility of a non-profit social, sports, or fraternal organization which is used exclusively by members and their guests.

Commercial Earth Removal shall mean the removal of any earth material (soil, sand, or gravel) from a parcel of land which is not incidental to the construction of a building, structure, or approved subdivision roadway for which a permit has been issued, or to the creation of a fire pond.

Conservation Area, Public Park shall mean an area open to the general public and owned by the Town and reserved for recreation, educational, or scenic purposes.

Day Care Center shall mean any facility operated on a regular basis whether known as a day nursery, nursery school, kindergarten, child play school, progressive school, child development center, or pre-school, or known under any other name, which receives children not of common parentage under 7 years of age or under 16 years of age if children have special needs for non-residential custody and care during part or all of the day separate from their parents.

Day care center shall not include: any part of a public school system; any part of a private organized educational system unless the services of a system are primarily limited to kindergarten, nursery, or related pre-school services; a Sunday school conducted by a religious institution; a facility operated by a religious organization where children are cared for during short periods of time while persons responsible for the children are attending religious services; a family day care home, as defined in G.L. c. 28A, § 9, as amended; an informal cooperative arrangement among neighbors or relatives; or the occasional care of children with or without compensation therefor.

Dwelling shall mean any building used, intended or designed to be used, exclusively for human habitation, that contains one or more dwelling units but excluding boarding and lodging houses, hotels, motels, and mobile homes or house trailers.

Dwelling, Single Family shall mean a detached residential dwelling unit other than a mobile home or house trailer designed for and occupied by one family only.

Dwelling, Two Family shall mean a detached residential building containing 2 dwelling units and designed for and occupied by 2 families.

Dwelling, Multi-Family shall mean a residential building designed for or occupied by 3 or more families, whether rental or owner occupied, with the number of families in residence not exceeding the number of dwelling units provided.

Dwelling Unit shall mean one room or rooms connected together, constituting a separate, independent housekeeping establishment for owner occupancy, or rental or lease on a weekly, monthly, or longer basis, and physically separated from any other dwelling units which may be in the same structure, and containing its own cooking and sleeping facilities.

Education, Governmental or Religious Use shall mean any structure or land used for educational or religious purposes on land owned or leased by the Commonwealth or any of its agencies, subdivisions or bodies politic, or by a religious sect or denomination, or by a nonprofit educational corporation as defined by G.L. c. 40A, § 3.

EOHLC shall mean the Massachusetts Executive Office of Housing and Livable Communities, or any successor agency.

Family shall mean one person, or a group of persons related by birth, blood, marriage, adoption or guardianship, including wards of the State, or not more than five persons not so related,

living as a separate housekeeping unit with independent living, cooking, and sanitary facilities and occupying a dwelling unit.

Farm shall mean agricultural, silvicultural, horticultural, viticultural, or floricultural activity on a parcel of land of less than 5 acres, including necessary accessory buildings, structures, storage, and equipment, but excluding slaughterhouses, rendering plants, fur farms, or piggeries.

Farm, Exempted shall mean agricultural, silvicultural, horticultural, viticultural, or floricultural activity on a parcel of land of more than 5 acres, under G.L. c. 40A, § 3.

Fast Food Restaurant shall mean an establishment whose primary business is sale of food or beverages which are primarily intended for immediate consumption rather than for use as an ingredient in or component of meals, available upon a short waiting time, and packaged or presented so it can be readily eaten outside the premises where it is sold.

Floodplain Overlay District Definitions
The following definitions are required for compliance with the standards set by FEMA and the NFIP, and are to be used in the interpretation of section 8.2 of this bylaw.

DEVELOPMENT means any man-made change to improved or unimproved real estate, including but not limited to building or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials. [US Code of Federal Regulations, Title 44, Part 59]

FLOODWAY. The channel of the river, creek or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height. [Base Code, Chapter 2, Section 202]

FUNCTIONALLY DEPENDENT USE means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities. [US Code of Federal Regulations, Title 44, Part 59] Also [Referenced Standard ASCE 24-14]

HIGHEST ADJACENT GRADE means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure. [US Code of Federal Regulations, Title 44, Part 59]

HISTORIC STRUCTURE means any structure that is:
(a) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
(b) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
(c) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or
(d) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:
(1) By an approved state program as determined by the Secretary of the Interior or
(2) Directly by the Secretary of the Interior in states without approved programs.
[US Code of Federal Regulations, Title 44, Part 59]

NEW CONSTRUCTION. Structures for which the start of construction commenced on or after the effective date of the first floodplain management code, regulation, ordinance, or standard adopted by the authority having jurisdiction, including any subsequent improvements to such structures. *New construction includes work determined to be substantial improvement.* [Referenced Standard ASCE 24-14]

RECREATIONAL VEHICLE means a vehicle which is:
(a) Built on a single chassis;
(b) 400 square feet or less when measured at the largest horizontal projection;
(c) Designed to be self-propelled or permanently towable by a light duty truck; and
(d) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.
[US Code of Federal Regulations, Title 44, Part 59]

REGULATORY FLOODWAY - see FLOODWAY.

SPECIAL FLOOD HAZARD AREA. The land area subject to flood hazards and shown on a Flood Insurance Rate Map or other flood hazard map as Zone A, AE, A1-30, A99, AR, AO, AH. [Base Code, Chapter 2, Section 202]

START OF CONSTRUCTION. The date of issuance for new construction and substantial improvements to existing structures, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement or other improvement is within 180 days after the date of issuance. The actual start of construction means the first placement of permanent construction of a building (including a manufactured home) on a site, such as the pouring of a slab or footings, installation of pilings or construction of columns.

Permanent construction does not include land preparation (such as clearing, excavation, grading or filling), the installation of streets or walkways, excavation for a basement, footings, piers or foundations, the erection of temporary forms or the installation of accessory buildings such as garages or sheds not occupied as dwelling units or not part of the main building. For a substantial improvement, the actual "start of construction" means the first alteration of any wall, ceiling, floor or other structural part of a building, whether or not that alteration affects the external dimensions of the building. [Base Code, Chapter 2, Section 202]

STRUCTURE means, for floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home. [US Code of Federal Regulations, Title 44, Part 59]

SUBSTANTIAL REPAIR OF A FOUNDATION. When work to repair or replace a foundation results in the repair or replacement of a portion of the foundation with a perimeter along the base of the foundation that equals or exceeds 50% of the perimeter of the base of the foundation measured in linear feet, or repair or replacement of 50% of the piles, columns or piers of a pile, column or pier supported foundation, the building official shall determine it to be substantial repair of a foundation. Applications determined by the building official to constitute substantial repair of a foundation shall require all existing portions of the entire building or structure to meet the requirements of 780 CMR. [As amended by MA in 9th Edition BC]

VARIANCE means a grant of relief by a community from the terms of a flood plain management regulation. [US Code of Federal Regulations, Title 44, Part 59]

VIOLATION means the failure of a structure or other development to be fully compliant with the community's flood plain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in §60.3 is presumed to be in violation until such time as that documentation is provided. [US Code of Federal Regulations, Title 44, Part 59]

ZONE A means an area of special flood hazard without water surface elevations determined

ZONE A1-30 and ZONE AE means area of special flood hazard with water surface elevations determined

ZONE AH means areas of special flood hazards having shallow water depths and/or unpredictable flow paths between (1) and (3) feet, and with water surface elevations determined

ZONE AO means area of special flood hazards having shallow water depths and/or unpredictable flow paths between (1) and (3) ft. *(Velocity flow may be evident; such flooding is characterized by ponding or sheet flow.)*

ZONE A99 means area of special flood hazard where enough progress has been made on a protective system, such as dikes, dams, and levees, to consider it complete for insurance rating purposes. (Flood elevations may not be determined.)

ZONES B, C, AND X means areas of minimal or moderate flood hazards or areas of future-conditions flood hazard. *(Zone X replaces Zones B and C on new and revised maps.)*

ZONE V means area of special flood hazards without water surface elevations determined, and with velocity, that is inundated by tidal floods (coastal high hazard area)

ZONE V1-30 and ZONE VE *(for new and revised maps)* means area of special flood hazards, with water surface elevations determined and with velocity, that is inundated by tidal floods (coastal high hazard area)

Floor Area Ratio shall mean the ratio of the total gross floor area of all buildings on a lot to the total area of the lot. When calculating the total Gross Floor Area of buildings on a lot, any Gross Floor Area of buildings with a ceiling height greater than 12’0” other than residential buildings and their accessory structures, shall be added twice to the total.

Floriculture shall mean the use of land and the structures thereon for the principal purpose of the commercial production of flowering plants.

Gross Floor Area shall mean the sum of all horizontal areas of the floors of a building measured from the exterior face of exterior walls. Gross Floor Area shall also include garages, porches, basements, storage rooms, and attic rooms, all with ceiling heights greater than 5 feet for residential uses or 7 feet for all other uses. Gross Floor Area shall exclude unroofed porches, decks, balconies, unroofed exterior stairs, and bay windows or similar projections of less than two feet beyond the main walls.

Groundwater shall mean all the water found beneath the surface of the ground including, but not limited to, subsurface water present in aquifers and recharge areas.

Habitable Space shall mean a space in a building for living, sleeping, eating or cooking. Bathrooms, toilet rooms, closets, halls, storage or utility closets and similar areas are not considered habitable spaces.

Hazardous Material – see Toxic and Hazardous Material

Hazardous Waste - shall mean any substance, including petroleum or derivatives thereof, or combination of substances which because of their quantity, concentration, physical, chemical, infectious, flammable, combustible, radioactive, genetic or toxic characteristics, may cause or significantly contribute to a present or potential risk to human health, safety, or welfare, to the groundwater resources, or to the natural environment. Any substance regulated under applicable Board of Health regulations and under any State or Federal laws and regulations regulating hazardous, chemical, biological or waste materials, or any amendments thereof, shall be considered hazardous waste.

Hazardous Waste Discharge - shall mean the disposal, deposit, injection, dumping, spilling, leaking, incineration, or placing of any hazardous material into or on any land or water so that the hazardous material or any constituent thereof may enter the environment or be emitted into the air or discharged into any waters, including groundwaters.

Health Care Facility shall mean a walk-in clinic, rehabilitation center, medical lab, dental lab, weight loss clinic, or similar facility.

Horticulture shall mean the use of land and the structures thereon for the principal purpose of the commercial production of plants, especially ornamentals.

Host Community Agreement - see Marijuana Definitions

Impervious Surface shall mean material on the ground that does not allow surface water to penetrate into the soil directly beneath it.

Inspector of Buildings shall mean the local official responsible for administering and enforcing the state building code as well as MGL c. 22 § 13A. The Inspector of Buildings must meet the licensure and experiential requirements of MGL c. 143 § 3.

Junkyard shall mean the use of any area of any lot, whether inside or outside a structure, for the keeping or abandonment of discarded materials, or the abandonment of automobiles or other vehicles or machinery or parts thereof.

Kennel shall mean a facility for the sale, boarding, or breeding of household pets, but not including a facility for the sale or breeding of household pets exclusively owned or kept for breeding by the landowner if the facility is located on 5 acres of land or more.

Laboratory shall mean a room or building equipped for scientific experimentation, research, scientific practice, observation or testing. May include small scale production of drugs and chemicals. Includes clinical laboratories as defined in G.L. c. 111D as well as non-clinical facilities.

Landscaping Services shall mean a business for the purpose of landscaping, snow removal and yard maintenance, such as grass cutting, leaf removal, and the care of planting beds, as well as the installation of plants, planting beds, at-grade walks and small landscape features.

The business utilizes lawn mowers, snow blowers and other light equipment. There may be small displays of materials for review by customers, but there is no storage or distribution of bulk material at the site.

Landscaping Contractors shall mean a business for the purpose of large scale site grading and clearing as well as all other Landscaping Service uses. The business utilizes heavy equipment and may store or distribute bulk materials at the site.

Leachable Waste shall mean waste materials including solid wastes, sludge, and agricultural wastes that are capable of releasing water borne contaminants to the surrounding environment.

Life Sciences shall mean advanced and applied sciences that expand the understanding of human physiology and have the potential to lead to medical advances or therapeutic applications including, but not limited to, agricultural biotechnology, biogenerics bioinformatics, biomedical engineering, biopharmaceuticals, biotechnology, chemical synthesis, chemistry technology, diagnostics, genomics, image analysis, marine biology, marine technology, medical devices, nanotechnology, natural product pharmaceuticals, proteomics, regenerative medicine, RNA interference, stem cell research and veterinary science. (MGL, Chapter 130 of the Acts of 2008)

Light Manufacturing shall mean fabrication, processing, packaging, or assembly operations employing only electric or other substantially noiseless and inoffensive motor power, utilizing hand labor or quiet machinery and processes, and free from neighborhood disturbing agents such as odors, gas, fumes, smoke, cinders, refuse matter, electromagnetic radiation, heat, or vibration; provided that there is no outside storage of materials or finished goods.

Lighting Definitions

Candela shall mean The base unit of luminous intensity in the International System of Units (SI); that is, luminous power per unit solid angle emitted by a point light source in a particular direction. A common wax candle emits light with a luminous intensity of roughly one candela.

Canopy shall mean an opaque ceiling over installed lighting.

Cutoff (CO) shall mean a luminary light distribution, specified by the IESNA, where the intensity in candela per 1000 lamp lumens does not numerically exceed 25 (2.5%) at a vertical angle of 90 degrees above nadir, and 100 (10%) at a vertical angle of 80 degrees above nadir. Nadir is the point directly vertically below the luminaire. A full cutoff (FCO) luminaire is also a cutoff luminaire.

Dark Sky, as defined by the International Dark Sky Association (IDA), shall mean certified outdoor lighting fixtures that minimize glare while reducing light trespass and skyglow. IDA approved fixtures are required to be fully shielded and to minimize the amount of blue light in the nighttime environment.

Direct Light shall mean light emitted directly from the lamp, from the reflector or reflector diffuser, or through the refractor or diffuser lens of a luminaire.

Foot Candle (FC) shall mean a unit of illuminance; one lumen per square foot.

Full Cutoff (FCO) shall mean a luminaire light distribution, specified by the IESNA, where zero candela intensity occurs at an angle of 90 degrees above nadir, and at all greater angles from nadir. Additionally, the candela per 1000 lamp lumens does not numerically exceed 100 (10%) at a vertical angle of 80 degrees above nadir. Nadir is the point directly vertically below the luminaire. An FCO luminaire is fully shielded.

Fully Shielded shall mean constructed so that no light emitted by the fixture, either directly from the lamp or a diffusing element, or indirectly by reflection or refraction from any part of the luminaire, is projected above a horizontal plane passing through the lowest direct-light-emitting part of the luminaire (Figure 1). Building canopies, overhangs, roof eaves and similar types of construction shall not be considered as the means for providing the fully shielded light cut-off characteristic. This shall be achieved by the luminaire itself (Figure 5).

Glare shall mean the sensation of visual discomfort or loss in visual performance and visibility produced by luminance within the visual field that is sufficiently greater than the luminance to which the eyes are adapted.

IDA shall mean the International Dark Sky Association.

IESNA/IES shall mean the Illuminating Engineering Society of North America. A professional association of lighting engineers and lighting manufacturers generally recognized as the definitive source for illumination recommendations in the United States. An IES photometric file is defined by IESNA standards.

Indirect Light shall mean direct light that has been reflected off the surface of any permanently constructed object other than the source luminaire.

Illuminance shall mean the luminous flux incident per unit area, expressed in foot candle (one lumen per square foot). Horizontal or vertical illuminance is that measured with a photometer cell mounted horizontally or vertically.

Lamp shall mean the light source component of a luminaire that produces the actual light.

Light-Emitting Diode (LED) shall mean any luminaire composed on an array of LEDs, typically a bank of 30, 60 or 90, used as a light source.

Light Trespass shall mean direct or indirect light produced by an artificial light source and which shines outside the boundaries of the lot containing the luminaire.

Luminaire A complete outdoor lighting unit or fixture including a lamp or lamps, together with the parts designed to distribute the light, to position and protect the lamps, and to connect the lamps to the power supply, but not including a pole on which the luminaire may be mounted.

Luminous Flux shall mean Energy per unit time that is radiated from a source over visible wavelengths. More specifically, it is energy radiated over wavelengths sensitive to the human eye, from about 330 nanometers to 780 nanometers. Luminous flux is a weighted average of the Radiant Flux in the visible spectrum. Luminous flux or luminous power is the measure of the perceived power of light. It differs from radiant flux, the measure of the total power of electromagnetic radiation, in that luminous flux is adjusted to reflect the varying sensitivity of the human eye to different wavelengths of light.

Nadir shall mean the point directly vertically below the luminaire.

Outdoor Lighting The night-time illumination of an outside area or object by a luminaire located outdoors. Luminaires under a canopy are considered outdoor lights and are regulated by this Bylaw.

Outdoor Sales Area shall mean a static display of goods for sale at night, such as automobile sales lots, landscaping and nursery businesses, outdoor construction materials sales lots, and outdoor activity areas such as miniature golf, family fun centers, and permanent swap meets. An outdoor sales area location is not covered by canopies or other structures.

Radiant Flux shall mean the measure of the total power of electromagnetic radiation.

Shielded Luminaire shall mean employing a shield to prevent glare. The luminaire shall have a generally downward distribution of light and must have a top shield to minimize upward light.

Street Lights shall mean luminaires installed within a street and intended primarily for the illumination of the street.

Up-lighting shall mean direct light illumination distributed above a 90-degree horizontal plane through the lowest direct light emitting part of the luminaire.

Lot shall mean a clearly defined parcel of land, not divided by a street, way or road, having sufficient area and dimensions to meet the minimum zoning requirements for frontage, width, setback, yards, coverage, and open space required herein.

Lot Area shall mean the horizontal area of the lot exclusive of any area in a street, way, road, or in a surface drainage easement. The surface drainage easement exclusion shall only apply to lots created after May 11, 1998.

Lot Coverage shall mean the percentage of the lot area that is occupied by buildings, structures, and impervious surfaces.

Lot Frontage shall mean the boundary of a lot coinciding with the street line, being an unbroken distance along a way currently maintained by a town, county, or state, or along ways shown on the Definitive Plans of approved subdivisions which have been secured or constructed, through which actual access to the potential building site shall be required.

(except where a "common driveway" has been allowed per Section 6.2.4, herein or a special permit has been issued by the Planning Board in accordance with Section 4.10), and the street has been determined by the Planning Board to provide adequate access for fire, police, and emergency vehicles.

Lot Line shall mean the lines bounding a lot.

Lot Width shall mean the mean width, at the site of a principal building, measured at a 90 degree angle to the mean direction of the side lot lines.

Manufacturing shall mean fabrication, processing, packaging, or assembly operations which do not qualify as light manufacturing but excluding primary industry such as asphalt, block, bottling, concrete or fertilizer plants; monument works; paper pulp mill; refinery; and rendering or smelting plants.

Marijuana Definitions

Host Community Agreement shall mean the agreed upon terms between the Town and a Recreational Marijuana Establishment or Registered Marijuana Dispensary seeking to operate or continue to operate in the Town which sets forth the conditions to have a Recreational Marijuana Establishment or Registered Marijuana Dispensary located within the Town which shall include, but not be limited to, all stipulations of responsibilities between the Town and the Recreational Marijuana Establishment or Registered Marijuana Dispensary.

A Host Community Agreement between a Recreational Marijuana Establishment or Registered Marijuana Dispensary and the Town may include a community impact fee for the Town; provided, however, that the community impact fee shall be reasonably related to the costs imposed upon the Town by the operation of the Recreational Marijuana Establishment or Registered Marijuana Dispensary and shall not amount to more than 3 percent of the gross sales of the Recreational Marijuana Establishment or Registered

Marijuana Dispensary or be effective for longer than 5 years. Any cost to the Town imposed by the operation of a Recreational Marijuana Establishment or Registered Marijuana Dispensary shall be documented and considered a public record as defined by clause Twenty-sixth of Section 7 of Chapter 4.

Marijuana Cultivator shall mean an entity licensed to cultivate, process, and package marijuana, to deliver marijuana to Recreational Marijuana Establishments, and to transfer marijuana to other Recreational Marijuana Establishments, but not to consumers.

Marijuana Product shall mean a manufactured product that contains marijuana or an extract from marijuana, including concentrated forms of marijuana and products composed of marijuana and other ingredients that are intended for use or consumption, including edible products, beverages, topical products, ointments, oils, and tinctures.

Marijuana Product Manufacturer shall mean an entity licensed to obtain, manufacture, process, and package marijuana and marijuana products for delivery and transfer to Recreational Marijuana Establishments, but not to consumers.

Marijuana Research Facility shall mean an entity licensed to engage in research projects, including cultivation, purchase or otherwise acquire marijuana for the purpose of conducting research regarding marijuana and marijuana products or any analogous uses. A Marijuana Research Facility may be academic institutions, non-profit corporations, and domestic corporations, or entities authorized to conduct business in Massachusetts.

Marijuana Retailer shall mean an entity licensed to purchase and transport marijuana or marijuana product from Recreational Marijuana Establishments and to sell or otherwise transfer this product to Recreational Marijuana Establishments and to consumers. Retailers are prohibited from delivering marijuana or marijuana products to consumers; and from offering marijuana or marijuana products for the purposes of on-site social consumption on the premises of a Recreational Marijuana Establishment.

Marijuana Testing Facility shall mean a facility licensed by the Cannabis Control Commission and is:

- *accredited to the most current International Organization for Standardization 17025 by a third-party accrediting body that is a signatory of the International Laboratory Accreditation Accrediting Cooperation mutual recognition arrangement, or that is otherwise approved by the Cannabis Control Commission;*
- *independent financially from any medical marijuana treatment center, Recreational Marijuana Establishment, or any licensee for which it conducts a test; and*
- *qualified to test marijuana in compliance with 935 CMR 500.160 and GL c. 94C § 34.*

Recreational Marijuana Establishment shall mean a marijuana cultivator, marijuana testing facility, marijuana research facility, marijuana product manufacturer, marijuana retailer, or any other type of licensed marijuana-related business which is not a Registered Marijuana Dispensary.

Registered Marijuana Dispensary, also known as a Medical Marijuana Treatment Center, shall mean an entity registered under 105 CMR 725.100, to be known as a registered marijuana dispensary (RMD), that acquires, cultivates, possesses, processes (including development of related products such as edible MIPs, tinctures, aerosols, oils, or ointments), transfers, transports, sells, distributes, dispenses, or administers marijuana, products containing marijuana, related supplies, or educational materials to registered qualifying patients or their personal caregivers. Unless otherwise specified, RMD refers to the site(s) of dispensing, cultivation, and preparation of marijuana.

MBTA shall mean the Massachusetts Bay Transportation Authority.

Medical Center shall mean a facility providing medical or surgical services to persons, including ambulatory and emergency services, and accessory facilities and functions that are an

integral part of the facility such as laboratories, out-patient departments, training, staff offices, and similar adjunct facilities and functions.

Mixed-use shall mean any combination of two or more permitted principal uses.

Motel, Hotel, or Motor Court shall mean any building containing six or more guest rooms intended or designed to be used, or which are used, rented or hired out to be occupied for sleeping purposes by guests.

Multi-Family Housing. A building with 3 or more residential dwelling units or 2 or more buildings on the same lot with more than 1 residential dwelling unit in each building.

Non-Conforming Structure shall mean a structure lawfully in existence at the time of adoption or amendment of this Bylaw but which does not conform to the regulations contained herein.

Non-Conforming Use shall mean a use lawfully in existence at the time of adoption or amendment of this Bylaw but which does not conform to the regulations contained herein.

Office shall mean a room or group of rooms used primarily for conducting the affairs of a business, profession, service, industry, or government.

Philanthropic Use shall mean a charitable or nonprofit library, museum, or art gallery.

Plate shall mean the uppermost portion of the vertical wall that supports the roof timbers.

Private/Common Driveway shall mean the common portion of the driveway shared by more than one residence by which vehicles (i.e., cars, trucks, etc.) travel to reach a house, garage, or building.

Public Safety shall mean any land, structure or structures owned or operated by the Town of Boxborough for police, fire and emergency medical services, or emergency management.

Public Utility shall mean a utility licensed by the Massachusetts Department of Public Utilities.

Recharge Area shall mean an area of stratified drift composed of permeable, porous materials that collect precipitation or surface water and transmit it to the Aquifer.

Recharge Rate shall mean the total annual precipitation which infiltrates through the surface of the ground and percolates to the water table.

Recreational Marijuana Establishment - see Marijuana Definitions under Section 9.2.

Registered Marijuana Dispensary, - see Marijuana Definitions under Section 9.2.

Repair garage, auto detailing garage, or like facility shall mean any establishment used for the maintenance, inspection, interior cleaning, repair, or servicing of motor vehicles.

Repair Shop shall mean an establishment used for repair of household appliances, bicycles, lawn mowers, and similar small equipment.

Research and Development shall mean an establishment or other facility for carrying on investigation in the natural, physical, social sciences, or life sciences, or engineering and development as an extension of investigation with the objective of creating end products.

Restaurant shall mean an eating place, including a cafeteria, lunchroom or similar establishment, whose principal business is the sale of prepared foods and whose method of operation is service by a restaurant employee to a table or counter where the food is consumed within the restaurant building.

Retail Store shall mean an establishment whose purpose is sale of merchandise within a building provided that there is no outside storage of materials or finished goods.

Road: see "Street."

Sanitary Waste shall mean waste waters arising from ordinary domestic water use as from toilets, sinks, and bathing facilities, etc., and containing concentrations and types of pollutants as to be considered normal human wastes.

Self-Storage Facility shall mean a building consisting of individual, small, self contained units that are leased or owned for the storage of business and household goods, automobiles, boats, or contractors supplies.

Service Shop shall mean an establishment providing personal services such as barber shop, dry cleaner, hair salon, shoe repair, or similar use.

Setback shall mean the minimum distance taken at right angles from front, rear, and side lot lines that shall be maintained between the lot lines and the exterior wall or walls of any building or accessory building. Unroofed porches, decks, balconies, and stairways projecting more than 2 feet beyond the main walls shall be considered part of the exterior wall. Bay windows and similar projections of less than two feet beyond the main walls shall not be considered a part of the exterior wall.

Sign shall mean any privately owned permanent or temporary device, billboard, placard, painting, drawing, poster, letter, word, banner, pennant, insignia, trade flag, or representation, article, or object, that advertises, identifies, calls attention to, or indicates any person, premises or activity, makes an announcement, or gives direction, when placed on a public way or within public view.

Sign, Area of shall include all lettering, wording and accompanying designs and symbols, together with the background on which they are displayed, but shall not include any supporting structure or bracing. The area of a sign consisting of individual letters or symbols attached to or painted on a surface shall be measured by the smallest quadrangle or triangle which encompasses all the letters and symbols.

Sign, Projecting shall mean a sign which is affixed to a building and which extends more than 6 inches perpendicular to the surface to which it is affixed.

Sign, Tradesmen shall mean a sign associated with a contractor, excavator, painter, plumber, roofer, electrician, landscaper, home improvement or a provider of similar services.

Sign, Wall shall mean a sign which is painted on, incorporated into, or affixed parallel to the wall of a building, and which extends not more than 6 inches from the surface of that building.

Small Wireless Facilities are facilities as defined in 47 C.F.R. § 1.6002(l) as may be amended from time to time.

Solar Energy Definitions

Agrivoltaics or Dual Use shall mean the co-developing of the same area of land for both solar photovoltaic power as well as for agriculture. The coexistence of solar panels and crops implies a sharing of light between these two types of production.

Community Solar Farm shall mean a Solar Energy System, Ground-Mounted that provides electricity or bill credits to three or more unique Boxborough customers serviced by the Utility Provider. The share of any one customer shall not exceed 50% of the total capacity of the Solar Energy System.

Ground-Mounted shall mean that installations are structurally mounted to the ground in any manner, including but not limited to ground anchored pole, rack, or rail installations, or non-ground penetrating ballasted installations; Roof-mounted installations or canopy installations above parking lots or driveways are not Ground-Mounted Solar Energy Systems.

Solar Collector shall mean a device, structure or a part of a device or structure for which the primary purpose is to transform solar radiant energy into thermal, mechanical, chemical, or electrical energy.

Solar Energy shall mean radiant energy received from the sun that can be collected in the form of heat or light by a solar collector.

Solar Energy System shall mean a device or structural design feature, whose primary purpose is to harvest energy by transforming solar energy into another form of energy or transferring heat from a Solar Collector to another medium using mechanical, electrical, or chemical means such as to provide daylight for interior lighting or provide for the collection, storage and distribution of solar energy for space heating or cooling, electricity generation, or water heating.

Solar Energy System, Ground-Mounted shall mean a Solar Energy System of any size that is structurally mounted to the ground in any manner, including but not limited to ground anchored pole, rack, or rail installations, or non-ground penetrating ballasted installations or non-ground penetrating ballasted installations; not roof-mounted installations or canopy installations above parking lots or driveways.

Solar Energy System, Large-Scale Ground-Mounted shall be considered an industrial facility use and mean a Solar Energy System with a Solar Layout that occupies more than 40,000 square feet of surface area (equivalent to a rated nameplate capacity of greater than 250kW DC). Inclusive of appurtenant structures.

Solar Energy System, Medium-Scale Ground-Mounted shall be considered an industrial facility use and mean a Solar Energy System with a Solar Layout that occupies more than 2,250 but less than 40,000 square feet of surface area (equivalent to a rated nameplate capacity of about 10- 250kW DC). Inclusive of appurtenant structures.

Solar Energy System, Roof-Mounted or Building-Mounted shall mean a Solar Energy System that is structurally mounted to the roof of a building or structure; may be of any size (small-, medium- or large-scale).

Solar Energy System, Small-Scale Ground-Mounted shall mean a Solar Energy System with a Solar Layout of 2,250 square feet or less. Inclusive of appurtenant structures.

Solar Layout shall mean the total area of the vertical projection on the ground of all panels in the installation's most horizontal tilt position and shall include all spaces between the panels.

Solar Layout for Small-Scale Ground-Mounted shall mean the total area of the vertical projection on the ground of all Solar Collectors in the installation's most horizontal tilt position.

Utility Provider shall mean the local electrical distribution company (Littleton Electric Light Department (LELD) or other).

Solid Waste shall mean any discarded solid material consisting of all combustible and noncombustible solid material including, but not limited to, garbage and rubbish, scrap material, junk, or inert fill material.

Specialty Food Shop shall mean a retail establishment such as a café or bakery that prepares or sells food items, the majority of which are freshly prepared or baked on- site, and may include the sale of beverages, alcoholic or otherwise.

Sports or Athletic Facility shall mean a facility offering participant physical activities such as bowling, basketball, gymnastics, dancing, martial arts, or exercise instruction.

Street shall mean either:

(a) a public way or a way which the town clerk certifies is maintained and used as a public way, or

(b) a way shown on a plan theretofore approved in accordance with the subdivision control law, or

(c) a way in existence when the subdivision control law became effective in the town, having in the opinion of the Planning Board sufficient width, suitable grades, and

adequate construction in relation to the proposed use of land abutting thereon or served thereby, and for the installation of municipal services to serve the land and the buildings erected or to be erected thereon.

Structure shall mean anything constructed or erected, the use of which requires fixed location on or under the ground. Structure shall not include landscape features such as fences no greater than seven 7 feet in height, stone walls or retaining walls no greater than four 4 feet in height, bird baths, driveways, detached stiles, open terraces, ornamental pools, outdoor fireplaces, planting boxes, shelters for household pets, tool houses having not more than 125 square feet of floor area, sculpture, residential lamp posts, mailboxes, fire suppression equipment and their appurtenances, and dry hydrants.

Structure, tall: see "Tall structure."

Subsidized Housing Inventory (SHI). A list of qualified Affordable Housing Units maintained by EOHLC used to measure a community's stock of low-or moderate- income housing for the purposes of M.G.L. Chapter 40B, the Comprehensive Permit Law."

Subdivision Control Law shall mean G.L. c. 41, § 81K-81GG, inclusive, the Subdivision Rules and Regulations adopted pursuant thereto by the Planning Board, as well as the administration and enforcement thereof.

Tall structure shall mean any freestanding man-made device (tower, antennae, wind turbine, lattice, etc.) which exceeds 45 feet in height from ground level.

Toxic or Hazardous Material shall mean any substance or mixture having chemical, physical, or infectious characteristics that could cause it to pose a significant actual or potential hazard to water supplies, or other hazard to human health if it were discharged onto the land, or into the air or waters of the town. Toxic or hazardous materials include but are not limited to: organic chemicals, petroleum products, heavy metals, radioactive or infectious wastes, acids and alkalies, and include products such as pesticides, herbicides, solvents and thinners, and any other material deemed hazardous by G.L. c. 21C.

Trailer shall mean a structure of vehicular, portable design, built on a chassis, having a roof, floor and walls intended for shelter of persons, animals, or property designed to be easily portable but used in a fixed location, and having a floor area greater than 50 square feet.

Upland Lot Area shall mean the contiguous area of the lot exclusive of:

- All wetlands as defined by the Wetlands Protection Act (G.L. c. 131, § 40) and the Town's Wetlands Bylaw; and
- the 100 foot wetlands buffer zone as defined in the Wetlands Bylaw.

Use shall mean the purpose or activity for which land, buildings, or structures are designed, arranged, or intended; or for which land, building or structures are occupied or maintained, including any activity with respect to the requirements of this Bylaw.

Veterinary shall mean a facility where animals are given medical or surgical treatment where boarding of animals is limited to short term care incidental to the medical or surgical treatment.

Warehouse shall mean a structure for the indoor storage of goods for distribution, but not for sale on the premises.

Way: see “Street.”

Wholesale operation shall mean the sale of commodities in quantity for resale or further processing.

Wireless Communication Facility shall mean a facility for the reception and transmission of personal wireless communication signals including towers, antennas, panels, and appurtenant structures designed to facilitate the following types of services: cellular telephone services, personal communication systems, and enhanced specialized mobile radio service. A wireless telecommunications facility shall not include Small Wireless Facilities.

Yard, Front shall mean an open space extending between side lot lines across the front of a lot adjoining a street. Depth of required front yards shall be measured at right angles from the front lot line or lines.

Yard, Rear shall mean an open space extending between side lot lines along the rear lot line. Depth of the required rear yard shall be measured at right angles to the rear lot line. In the case of a triangular lot, the depth of the rear yard shall be measured from the corner of the lot farthest from the front lot line along the bisector of that corner angle; and the innermost rear yard line shall be perpendicular thereto.

Yard, Side shall mean an open space extending along the side lot line between the front yard and the rear yard of a lot. Depth of the required side yards shall be measured at right angles from the side lot line or line.

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
2/4/1952	ATM	51		Earth Removal Bylaw		10/25/1953
11/7/1955	STM	1		Minimum lot size at 30,000 sf and 150 foot frontage		
2/6/1956	ATM	28		Minimum lot size at 40,000 sf		3/7/1956
6/14/1965	STM	1	ALL	Zoning Bylaw	Amends C&I Use Bylaw 4/17/64; Amends Minimum Lot Size Bylaw 4/17/64	7/21/1965
3/13/1967	ATM	18	IV.E.3; VI.E; V.A.2; VII.A	Add Junk cars; Add Signs; Number of dwellings on lot; Add Penalties		10/25/1967
3/11/1968	ATM	24	V.A.5	Add Intensity Regulation-Allows 80,000 square feet, 75 feet frontage, 150 feet building line, 40/30/40 setbacks at discretion of ZBA		9/20/1968
3/11/1968	ATM	25	IV.A.2.d	Add Ski Tow and accessory buildings		9/20/1968
3/11/1968	ATM	26	IV.A.2.e	Add Riding School - not to exceed 20 horses		9/20/1968
3/10/1969	ATM	9	V.A.5	Intensity Regulations - add sentence - Permit may be granted under Section 4 of Chapter 40A after public hearing	Amends previous zoning change from 1968 to clarify at suggestion of Attorney General	7/28/1969
3/10/1969	ATM	26	map	Zoning Map change - Business #12 to IC	Petition article-Mass Ave(south) near Burroughs (west)	7/28/1969
3/16/1970	ATM	7	IV.C.1.a	IC allowed uses changed from "any permitted in Business District" to any except apartment buildings		7/16/1970
12/14/1970	STM	5	IV.2.f	Add Private Golf Course allowed in AR	Must have 9 holes, 300 yard average per hole, not open to public	1/29/1971
3/16/1971	ATM	20	II	Definitions added for Accessory Building; Apartment House; Building; Dwelling; Dwelling Unit; Floor Area; Lot; Structure		6/7/1971
3/16/1971	ATM	21	III.A.5	Add Conservation District		6/7/1971

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
3/16/1971	ATM	23	IV.F.1; V.A.1; V.B.1; V.C.1	Use Regulations - adds sentence "and as subsequently Amended" in reference to Earth Removal Bylaw approved 1961; Change heading "Minimum setback in feet" to "Minimum setback from lot line"; 1.change "structure" to "building" 2.change heading "Minimum setback in feet" to "Minimum setback from lot line"; 1.change "structure" to "building" 2.change heading "Minimum setback in feet" to "Minimum setback from lot line"		6/7/1971
3/16/1971	ATM	24	V.D	Add Intensity for structures other than buildings		6/7/1971
3/16/1971	ATM	25	V.E; V.E.1	Add Supplementary Intensity for Apartment; Add Apartment Density regulations		6/7/1971
3/16/1971	ATM	26	VI.C.1; VI.C.2; VI.C.3	Parking for Business or IC use, Apartments & Ag-Res District		6/7/1971
3/16/1971	ATM	27	VII.A.2	Penalties changed		6/7/1971
3/17/1972	ATM	21	IV.A.2.g	Add tennis, swimming, skating or similar recreation facilities allowed		5/12/1972
6/26/1972	STM	5	IV.B.1.b; IV.C.1.a	Delete "apartment houses" use in Business District; remove "except apartment houses" to allow them is IC District.	Reverses 3/9/70 Amendment	1/10/1900
		6	III; IV; V	Business-1 District Established; uses and intensity described		10/10/1972
		7	III; IV; V	Residential-1 District Established; uses and intensity described		10/10/1972
5/13/1974	ATM	15	I	Revise to include Title, Authority, Purpose		8/28/1974

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/13/1974	ATM	16	II	Deletes section II, Definitions and adds new section II, Definitions	Accessory Structure; Accessory Sign; Accessory Use; Building; Building Height; Building Permit; Building, principal; Certificate of Use and Occupancy; Club or Lodge; Day Care Facility; Dwelling; Dwelling, single family; Dwelling, two-family; Dwelling, multi-family; Dwelling Unit; Family; Farm; Lot; Lot Area; Lot Coverage; Lot Frontage; Lot Line; Motel; Hotel; Motor Court; Nonconforming Use; Setback; Sign; Sign, Area of; Street, Way or Road; Structure; Subdivision Control Law; Use; Yard, Front; Yard, Rear; Yard, Side	8/28/1974
5/13/1974	ATM	17	III; IV	W-District replaces Flood Plain; W-District mapped sheets 1-12; W-District described, Flood Plain deleted		8/28/1974
5/13/1974	ATM	18	IV.E.1	Environmental Protection paragraph replaces General E.1		8/28/1974
5/13/1974	ATM	19	V1.C; V1.E; V1.F; V1.G; V1.H	Replace 'Parking' with 'Parking And Off-street Loading'; Expands sign regulations; Adds section for Landscaping, Screening and Outdoor Lighting; Adds section for Access, Driveways and Private Ways; Adds section for Conversion of Dwellings		8/28/1974
5/13/1974	ATM	20	VII	Entire section revised to further describe powers of ZBA		8/28/1974
5/13/1975	ATM	17	II.A; II.B	Change "Building Code of Boxborough" to "State Building Code" & "Building Inspector" to "Inspector of Buildings"; Change Title and definition of Day Care Facility to Day Care Center; Change definition of Family; Add definition for Lot Width; Change definition of Motel, Hotel, Motor Court; Change definition of Structure.	Changes words where ever they appear in bylaw	9/10/1975
10/7/1975	STM	19	IV.C	Change IC uses		3/1/1976
10/7/1975	STM	20	IV.E.8.d	Change Environmental Protection		3/1/1976
10/7/1975	STM	21	V.A.5	Frontage requirements in AR District		3/1/1976
10/7/1975	STM	22	VI.E.5.e	Freestanding signs in IC District		3/1/1976

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
10/7/1975	STM	24	VI.G.3	Access, Driveways and Private Ways	Planning Board review for adequacy of ways providing access for one or more buildings on a lot	3/1/1976
5/10/1976	ATM	6	IV.B	Business District permitted uses	Re: detached dwellings and Chapter 808 of the Acts of 1975	9/9/1976
6/8/1976	STM	5	VI.E	Re: Signs	Re: intent of Bylaw and grandfathering date	9/27/1976
6/8/1976	STM	7	VI.F.5	Landscaping, Screening, Outdoor Lighting		9/27/1976
5/8/1978	STM	2	I	Entire section rewritten	To bring Bylaw into compliance with Mass Chapter 808 bylaw requirements	8/16/1978
5/8/1978	STM	3	II, IV, VI	Definition changes and additions, wording changes,	Change Definitions for Building Height; Club or Lodge; Family; Lot Width; Structure; Subdivision Control Law. Add definitions for Agricultural; Floriculture; Horticulture	8/16/1978
5/8/1978	STM	4	IV.E	Established Flood Plain District		8/16/1978
5/16/1979	ATM	27	ALL	Entire Bylaw numbering system revised from Ronal, Alpha, Arabic to all Arabic Decimal System		7/25/1979
11/13/1979	STM	6	4.4.4.1.2; 4.4.4.1.3; 4.4.4.1.4; 4.4.4.1.4.1	Re: Special Permit Submission		2/26/1980
12/2/1980	STM	5	2.2; 4.3.2.2	New Definition for Animal Shelter; Add IC Special Permit use - Animal Shelter		3/13/1981
12/2/1980	STM	6	4.6.1.3.8	To include hazardous material storage		3/13/1981
12/2/1980	STM	6	4.6.1.3.8.2	Re: Hazardous materials		3/13/1981
12/2/1980	STM	7	5.1.1	AR - Stories and Building Height		3/13/1981
12/2/1980	STM	7	5.1.5	AR - Stories and Building Height - reduced frontage lots		3/13/1981
12/2/1980	STM	7	5.2.1	Business - Stories and Building Height		3/13/1981
12/2/1980	STM	7	5.3.1	IC - Stories and Building Height		3/13/1981
12/2/1980	STM	8	4.10	Add Airports, heliports and like facilities added by Special Permit		3/13/1981
5/12/1981	ATM	24	Map	IC District #8 revised		8/24/1981
11/9/1981	STM	5	7.4	Add Site Plan Approval section		2/25/1982
11/9/1981	STM	6	4.6.1	Environmental Protection - numerous changes		2/25/1982
11/9/1981	STM	7	7.3.1.4	Add Special Permits in Business & IC - Site Plan		2/25/1982

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
11/9/1981	STM	8	7.3.2.1	Wording changes - several sections		2/25/1982
5/9/1983	ATM	25	4.10	Disallows aircraft operations	Reverses 12/2/80 vote to allow by Special Permit	7/22/1983
1/17/1984	STM	2	Map	Rezone District #1 from I/C to A/R and redefine District #1 as A/R		3/5/1984
5/17/1984	ATM	27	3.1	Establish Aquifer Protection & Office Park Districts		9/14/1984
5/17/1984	ATM	27	3.4	Add description Aquifer Protect. District location		
5/17/1984	ATM	29	4.3	Revise IC uses		9/14/1984
5/17/1984	ATM	30	4.4	W-District uses changed		9/14/1984
5/17/1984	ATM	31	4.6.1.3	Re: Environmental Protection		10/5/1984
5/17/1984	ATM	32	2.2; 4.11	Add definitions for Aquifer; Groundwater; Impervious Surface; Leachable Waste; Recharge Area; Sanitary Waste; Solid Waste; Toxic or Hazardous Materials or Wastes; Re: Aquifer Protection District		9/14/1984
5/17/1984	ATM	33	4.12	Add description of uses allowed under new Office Park District		9/14/1984
5/17/1984	ATM	34	2.2	Definitions added for Building line; Street frontage	Removed descriptions from section 5.1.5 and added to section 2	9/14/1984
5/17/1984	ATM	35	5.3	Revised IC District		9/14/1984
5/17/1984	ATM	37	5.9	Add intensity regs for new Office Park District		9/14/1984
5/17/1984	ATM	38	6.3.5	Re: Parking area and internal circulation		9/14/1984
5/17/1984	ATM	40	6.3.10; 7.3.1.6	Add Paving Requirements; Re: Parking spaces and off-street loading	Article 39 would have added a new section 6.9 but was defeated. This was added to 6.9	9/14/1984
5/17/1984	ATM	41	6.5.5.5	Re: signs in Business and IC		
5/17/1984	ATM	43	Map	Revised IC District #3	Requested by landowner	9/14/1984
5/17/1984	ATM	44	Map	Change district #6 from IC to Office Park and redefined the district boundary		9/14/1984
5/17/1984	ATM	45	Map	Change district #10 from IC to Office Park		9/14/1984
11/26/1984	STM	1	5.9	Renumber sections 5.9 to 5.8	Numbering change - 5.8 did not pass at ATM 1984	1/25/1985
5/13/1985	ATM	29	Various	Add regulations for construction of Private/Common Driveways		8/5/1985
5/13/1986	ATM	27	Various	Clarifies disposal of sanitary waste in Aquifer Protection District		7/29/1986

Changes are summarized for reference purposes - see Town Reports for detailed information

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/13/1986	ATM	28	4.5.2.4.1	Change enforcement in Flood Plain from ZBA to Inspector of Buildings		7/29/1986
5/13/1986	ATM	29	4.4.3.1 to 4.4.3.6	Re: W-District use		7/29/1986
5/13/1986	ATM	30	Various	Office Park references	Office Park District added ATM 1984 - these changes add references where necessary	7/29/1986
5/13/1986	ATM	31	Various	Office Park references		7/29/1986
5/13/1986	ATM	32	2.2	Structure definition changed	Removes ambiguity of "Tanks"	7/29/1986
5/13/1986	ATM	33	Various	Reminds builders to check with ZBA for applicable Special Permits		7/29/1986
5/13/1986	ATM	34	6.3.7	Addresses parking for R&D use		7/29/1986
5/13/1986	ATM	35	Various	Renumbering use sections for clarity	Other sections changed to reflect new numbering	7/29/1986
5/12/1987	ATM	21	2.2	Setback definition changed		9/8/1987
5/9/1988	ATM	18	4.7.3.11	Restrict repair shops in Aquifer Protection District		8/23/1988
5/9/1988	ATM	19	5.1.1; 5,1,2; 5.1.4	80,000 zoning in AR	One house per 80,000 sf; grandfathering of lots	DISAPPROVED
5/9/1988	ATM	19	5.1.5; 5.5.1; 5.5.2; 5.7.1	Reduced frontage in AR; Intensity for apartments Business-1; Intensity for apartments Residential-1; Residential-1 intensity	40,000 to 80,000	8/23/1988
5/9/1988	ATM	20	7.2.2	Filing requirements for Special Permit, appeal, Variance	To comply with 40A	
5/9/1988	ATM	21	7.2.4	Re: deadline for action by town	To comply with 40A	
5/9/1988	ATM	22	7.2.5	Re: deadline for action by town	To comply with 40A	
5/9/1988	ATM	23	7.3.2.5	Re: Special Permit filing requirements	To comply with 40A	
5/9/1988	ATM	24	7.4.2	Re: Site Plan filing requirements	To comply with 40A	
5/18/1989	ATM	25	Various	Create Town Center District	Several sections of Bylaw amended to reference new district	
5/18/1989	ATM	26	Map	To define Town Center District		8/29/1989
5/18/1989	ATM	28	6.6.2	Parking in Business, OP, IC		8/29/1989
5/18/1989	ATM	29	5.2.2	Add limits impermeable surface area in Business District		8/29/1989
5/18/1989	ATM	29	5.6.2	Add limit to impermeable surface area in Business-1 District		8/29/1989
5/18/1989	ATM	30	2.2; 5.3.3; 5.8.1	Floor area ratio definition; Add F.A.R. in IC; Add F.A.R. in OP		8/29/1989

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
6/4/1990	ATM	34	4.9	Clarifies work in W-District requiring Special Permit		10/16/1990
6/4/1990	ATM	36	7.6	Add provision for appointment of Associate Planning Board Member		10/16/1990
6/4/1990	ATM	37	7.4	Revised Site Plan Special Permits regulations		10/16/1990
6/4/1990	ATM	38	2.2; 6.5	"Sign, Area of" definition amended; Add definitions for "Sign, Projecting" and "Sign, Wall"; Amends Sign regulations		10/16/1990
6/4/1990	ATM	39	Map & Various	Add parcels owned by Church to Town Center District		10/16/1990
5/22/1991	ATM	31	Various; 2234	Recodification of Zoning Bylaw; Allows Day Care Center is all Zoning Districts	Definitions and Zoning Map not changed	8/23/1991
5/14/1992	ATM	26	2234	Allow Restaurant by SP in Bus and Bus1		8/26/1992
5/14/1992	ATM		5370	Add Special Permit regulations for restaurants		8/26/1992
5/14/1992	ATM	29	Map & Various	Zoning Map and Zoning Bylaw for Rezoning IC to AR	Along Hill Rd/495 from Cunningham to Betty White land	8/26/1992
5/14/1992	ATM	30	Map & Various	Zoning Map and Zoning Bylaw for rezoning IC to Office Park	West of 495 from 111 to Littleton	8/26/1992
5/14/1992	ATM	31	2310	Add "Minimum Lot Width"		8/26/1992
5/14/1992	ATM	33	6200	Definition of "Lot Frontage" changed	Requires access through frontage	8/26/1992
5/14/1992	ATM	34	4400	Revise "Flood Plain District"	Per Department of Environmental Management recommendations	8/26/1992
5/10/1993	ATM	32	6200	Definitions added for Airport, Heliport; Commercial Earth Removal; Conservation Area, Public Park; Education, Governmental or Religious Use; Philanthropic Use; Public Utility; Repair Shop; Retail Store; Service Shop	After recodification in 1991, discrepancies found between Use Schedule, Parking Schedule and Definitions	8/26/1993
5/10/1993	ATM	33	3160	Revises Parking Schedule	Amends parking schedule to be consistent with bylaw Uses	8/26/1993
5/10/1993	ATM	34	4700	Add Open Space Commercial Development		8/26/1993
5/10/1993	ATM	35	2234; 6200	Definitions added for Club; Sports or Athletic Facility; Clarifies Business/IC uses allowed		8/26/1993
5/10/1993	ATM	36	2234; 6200	Definitions added for Light Manufacturing; Manufacturing; Clarifies allowed uses		8/26/1993
5/10/1993	ATM	38	5380; 6200	Add Allowance of alternate lot access by Special Permit from Planning Board; Definition for Lot Frontage	To allow alternate access by SP	8/26/1993

Changes are summarized for reference purposes - see Town Reports for detailed information

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/10/1993	ATM	40		Add language after "Definition of Districts" - if written description and map conflict, written definition rules		8/26/1993
5/10/1993	ATM	41	5390	Add "Amendments"	Section was left out after recodification	8/26/1993
5/10/1993	ATM	45	Map	Rezone District 2 IC to Business	Summer Road	8/26/1993
5/10/1993	ATM	46	Map	Deleted District 4 IC and rezoned to AR	Summer Road	8/26/1993
5/19/1994	ATM	10	2234	Add footnote to Light Manufacturing uses in B and B1and Manufacturing in B1		8/25/1994
5/19/1994	ATM	13	2310; 6200	Adds dimensional schedule for Minimum Upland Lot Area; Add definition for Upland Lot Area		8/25/1994
5/19/1994	ATM	14	2310	Changes AR minimum lot to 60,000 sf		8/25/1994
5/19/1994	ATM	19	4600; 6200	Add definition for Trailer; Use of trailers		8/25/1994
5/11/1995	ATM	15	4100	Re: Aquifer Protection District	Shifts cost for determining aquifer location to land owner, clarifies Bylaw, specifies prohibited uses	7/24/1995
5/11/1995	ATM	16	3440	For Common Drives, changes permit granting authority from ZBA to Planning Board		7/24/1995
5/11/1995	ATM	18	2340	Add height restrictions for tall structures and roof attached structures		7/24/1995
5/13/1996	ATM	14	4740	Allows modification of parking in Open Space Commercial Development		8/12/1996
5/13/1996	ATM	16	4620	Number of trailers and use allowed in commercial developments		8/12/1996
5/13/1996	ATM	17	2326	Lot width street to building line may not be less than required frontage		8/12/1996
5/13/1996	ATM	22	2231	Corrects wording of "structure" to "dwelling"		8/12/1996
5/13/1996	ATM	23	3530	Re: Storage of Waste or Refuse		8/12/1996
5/13/1996	ATM	29	3160	Reduces number of parking spaces required for business uses		8/12/1996
5/13/1996	ATM	30	4400	Bring Bylaw into compliance with State		8/12/1996
5/12/1997	ATM	12	3140	Update reference to State Department	Dept. of Public Works now Mass Highway Dept. (MHD)	8/4/1997
5/12/1997	ATM	13	3440	No more than 3 Private/Common Drives on dead end street		8/4/1997
5/12/1997	ATM	18	3160	Makes parking requirements consistent with Use Schedule		8/4/1997
5/12/1997	ATM	25	6200	Definition of Private/Common Drive		8/4/1997

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/12/1997	ATM	27	2233	Allows more uses by right rather than Special Permit		8/4/1997
5/12/1997	ATM	29	2325	Only one single family dwelling per lot		8/4/1997
5/12/1997	ATM	32	6200	Add definition for "Car Sales"	Use and parking schedules also updated	8/4/1997
5/12/1997	ATM	33	6200	Definitions of Kennel and Veterinary added	Use and parking schedules also updated	8/4/1997
5/12/1997	ATM	35	2241; 2242	Re: Home Occupations regulations		8/4/1997
5/12/1997	ATM	38	6200	Definition for Adult Use added	Use Schedule and Special Permit sections also updated	8/4/1997
5/14/1998	ATM	17	2232; 2260	Special Permit for single family in Town Center District		8/30/1998
5/14/1998	ATM	18	Map	Rezone parcels on Stow Rd from AR to Business		8/30/1998
5/14/1998	ATM	19	4720	Allows residential land to be counted Open Space Commercial Dev requirements		8/30/1998
5/14/1998	ATM	21	6200	Change definition of Lot Area to exclude drainage easement area	Applies to lots created after May 11, 1998	8/30/1998
5/14/1998	ATM	28	6200	Add definition for Wireless Communication Facilities	Bylaw changed to regulate Wireless Communication Facilities	8/30/1998
5/14/1998	ATM	29	Various	Allows Private/Common Drives in Commercial Districts		8/30/1998
5/14/1998	ATM	30	3312	Exempts shared parking areas from setback requirements		8/30/1998
5/14/1998	ATM	31	Various	Allows car sales by Special Permit		8/30/1998
5/11/1999	ATM	20	Map	Expand Town Center District		8/9/1999
5/11/1999	ATM	21	Map	Change zoning of parcel 166.2B (Stow Road)	From Business to AR - rescinds vote article 18 ATM 1998-by petition article	8/9/1999
5/11/1999	ATM	22	Various	Allows multi-family senior housing in AR District		8/9/1999
5/11/1999	ATM	26	6200	Add definition for Assisted Living Facility	Change Bylaw relative Bylaw sections	8/9/1999
5/11/1999	ATM	27	3340	Update Lighting Bylaw		8/9/1999
5/11/1999	ATM	28	2245	Clarify Setback for Garages		8/9/1999
5/11/1999	ATM	37	6200	Amend definition of Structure	Fences over 6 feet in height considered structures	8/9/1999
11/8/1999	STM	15	Map	Rezone 6-4-113	From AR to IC - rear of parcel on Mass Ave	2/9/2000
11/8/1999	STM	16	4450	Update Flood Map references		2/9/2000
3/27/2000	STM	6	2234	Limit size of retail stores to 25,000 sf		6/22/2000
3/27/2000	STM	7	2234	Prohibit retail stores in IC and OP zone		6/22/2000

Changes are summarized for reference purposes - see Town Reports for detailed information

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
3/27/2000	STM	8	2234	Allows more commercial uses by right	Professional or business office and R&D in IC allowed by right instead of by SP	6/22/2000
5/8/2000	ATM	25	Map & Various	Creates Design Review and expands TC		8/21/2000
5/14/2001	ATM	26	4800	Camouflaging for Wireless Towers		8/29/2001
5/14/2001	ATM	30	4620; 4630	Eliminate SP requirement for trailers	Gives Building Inspector authorization for construction trailers	8/29/2001
11/5/2001	STM	8	4900	Access through Commercial to AR	By Special Permit	3/6/2002
11/5/2001	STM	9	2360	Lot regularity in AR and R1	Quadrangle 70% of lot	3/6/2002
11/5/2001	STM	10	Map	Rezone parcels on Summer Road from Business District #2 to AR	Parcels 283, 284, 290, 291 on Map 10	3/6/2002
5/13/2002	ATM	22	Map & Various	Regulation of Wireless Communication Towers & Wireless Overlay District		8/9/2002
5/13/2002	ATM	23	Map	Rezone portion of parcel 176 on maps 4, 8 from IC # 8 to AR		8/9/2002
5/13/2002	ATM	24	2232	Clarification of footnote 15 under entry for "Farm" in use schedule	Housekeeping article	8/9/2002
5/12/2003	ATM	33	Map	Rezone land Sargent/Littlefield Rds from IC to AR	Map 11 & 12, -6-258 (portion) 354.5, 356	9/15/2003
5/12/2003	ATM	34	Map	Amend Wireless Communications Overlay District	Parcel 176 which was rezoned in 2002 and land in article 33 above now AR, to be removed from Wireless District	9/15/2003
5/12/2003	ATM	35	2342	Reduce height for roof mounted or attached structures	Limits height to 45 feet	9/15/2003
5/10/2004	ATM	32	2234	Divide automotive uses into 2 sections	Distinguish between Auto Service Stations and Repair Garage	7/12/2004
		33	2234	Add category for Self Storage Facility		7/12/2004
5/8/2006	ATM	17	Various	Recodification of Zoning Bylaw	Portions of existing Bylaw were disapproved by the Attorney General	8/22/2006 (partial approval)
5/14/2007	ATM	18	4107	Add Section 4107 Accessory Apartment	Provides Special Permit for accessory apartments	7/26/2007
5/14/2007	ATM	19	6300	Add Section 6305(7) Agricultural Signs	Provides exemption for certain agricultural signs	7/26/2007
5/14/2007	ATM	20	8000	Delete Subsection 8004 Procedures	Removes procedures out of Bylaw and references the Site Plan Rules & Regulations	7/26/2007

Changes are summarized for reference purposes - see Town Reports for detailed information

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/12/2008	ATM	18	2100	Amend definition of Structure	Include exemption for wall less than 4 feet and fire suppression equipment	9/23/2008
5/12/2008	ATM	19	8000	Amend Site Plan Section 8002 Applicability; Amend Section 8003 Exemption; Add Subsection 8004 Substantial Alteration	Provides a new waiver process, reduces square footage exemption in Commercial, Industrial & Office Park, defines the meaning of substantial alteration	9/23/2008
5/12/2008	ATM	20	3002 + map	Adopt New Zoning Map; Delete Definition of Districts; Amend Subsection 3002 Location of Districts & Subsection 4003(1) Footnote 13	Adopt new GIS based Zoning Map consisting of an index sheet and 12 maps	9/23/2008
5/12/2008	ATM	21	Map	Rezone 10 parcels off Stow Rd & Burroughs Rd from Business and Business/Ag-Res to all Ag-Res		9/23/2008
5/12/2009	ATM	19	2100; 6300	Add definition of Tradesman Sign; Add Section 6305(8) Tradesman Sign	Provides exemption for certain tradesman signs	8/27/2009
5/12/2009	ATM	20	6300	Add Section 6305(9) Retail Business Sign	Provides exemption for certain retail business signs	8/27/2009
5/12/2009	ATM	21	4003; 4450; 5002; 5004	Amend Table of Use in B1 District; Add Section 4450 Special Permit for Residential Use in B1 District; Amend Dimensional Schedule for B1 District; Amend Supplementary Intensity Regulations	Amendments provide for residential uses in the Business 1 District by Special Permit from the Planning Board	8/27/2009
5/11/2010	ATM	22	7300	Amend Flood Plain Overlay District	Adopt new FEMA FIRM maps and amendments to the NFIP	8/19/2010
5/11/2010	ATM	23	8004	Amend Site Plan Section 8004	Add additional provisions to substantial alteration	8/19/2010
5/11/2010	ATM	24	2100; 4107(1)(B)(2)	Add Definition of Habitable Space; Amend Accessory Apartment Section 4107(1)(B)(2)	Add definition of habitable space; amends accessory apartment measuring from gross square footage to habitable space	8/19/2010
5/17/2012	ATM	34	2100; 4003(4); 6006	Add two definitions; Amend Table of Uses; Amend Parking Requirements	Add definition of Landscaping Services & Landscaping Contractors, Add LS & LC to Table of Uses and Parking Requirements	8/31/2012
5/13/2013	ATM	26	7900	Add Medical Marijuana Moratorium		9/16/2013
5/13/2013	ATM	27	4003(1); 4300; 5004	Amend Table of Use in TC District; Amend Special Permit in Town Center; Delete Section 5004	Amend Zoning Bylaw to require a Special Permit as part of a mixed use for elderly duplex housing in Town Center	9/16/2013

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/13/2013	ATM	28	4107	Amend Accessory Apartment Bylaw	Amend bylaw to allow accessory apartment by Building Permit instead of Special Permit	9/16/2013
5/12/2014	ATM	33	2100; 4003(4); 7900	Add Definition, Use Category, and Remove Medical Marijuana Moratorium	Amend bylaw to accommodate for Registered Marijuana Dispensaries	7/8/2014
5/12/2014	ATM	34	6104; 6105	Amend Sections 6104 and 6105 regarding Private/Common Driveways in the Ag/Res, Business, Business 1, Office Park, Town Center, and Industrial/Commercial Districts	Convert driveway construction standards to guidelines to allow flexibility to adjust standards	7/8/2014
5/12/2014	ATM	35	7300	Amend Flood Plain Overlay District	Adopt new FEMA FIRM maps and revised NFIP regulations	7/8/2014
5/11/2015	ATM	22	2101	Amend Accessory Structure Definition	Change Accessory Structure definition to Accessory Building	8/19/2015
5/11/2015	ATM	23	2152	Amend Mixed-use Definition	Amend to make consistent with Bylaw	8/19/2015
5/11/2015	ATM	24	4001	Amend Use Regulations, General	Administrative amendment	8/19/2015
5/11/2015	ATM	25	6006	Amend Parking Schedule Language	Change "churches" to "places of worship"	8/19/2015
5/11/2015	ATM	26	4003(1)	Amend Residential Uses	Allow Bed and Breakfast use in AR and R1 Districts by Special Permit	8/19/2015
5/11/2015	ATM	27	6300	Amend Signs Section	Regulate temporary signs associated with non-commercial entities, yard sales, real estate open houses, and businesses; historical markers; and to perform administrative corrections	8/19/2015
5/9/2016	ATM	37	Map; 3002	Amend Zoning Map	Redefine district boundaries to align with parcels and rezone Hill Road parcel from IC to AR	6/28/2016
5/9/2016	ATM	38	8102	Amend Design Review Board Section	Amend to allow for two (2) at-large community members on the Board	6/28/2016
5/9/2016	ATM	39	5002; 5003	Amend Dimensional Schedule and Reduced Frontage Lots	Remove "top of plate" language to make consistent with Building Height definition	6/28/2016
5/9/2016	ATM	40	9004	Amend Penalty Section	Administrative amendment	6/28/2016
5/9/2016	ATM	41	2181	Amend Structure Definition	Amend to allow fences up to seven (7) feet in height as landscape features	6/28/2016

Changes are summarized for reference purposes - see Town Reports for detailed information

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/9/2016	ATM	42	2130; 4003; 4107; 8003	Amend Farm Definition, Use Regulation Schedule Footnote, Accessory Apartment, and Site Plan Approval Exemptions	Administrative amendment to make consistent with Article 22 from 2015 ATM	6/28/2016
5/9/2016	ATM	43	7100; 7200; Various; Map	Delete W-District, Lands Bordering the W-District, and Various References	Remove the W-District and its buffer in their entirety from the Zoning Bylaw and Map	6/28/2016
5/8/2017	ATM	38	9004	Amend Penalty Section	Change $100/day fine system to a $100/$200/$300/day tiered fine system	8/15/2017
5/8/2017	ATM	39	2100; 4003(4); 6006	Add Definition; Amend Table of Uses; Amend Parking Requirements	Add definition of Building Trade, Add Building Trade to Table of Uses and Parking Requirements	8/15/2017
5/8/2017	ATM	40	4003(4)	Amend Table of Uses	Amend permitted Zoning Districts for Landscaping Services and Landscaping Contractors, and remove Home Occupation footnote	8/15/2017
5/8/2017	ATM	41	6307	Amend Section Regarding Signs in the Business, Office Park, and Industrial-Commercial Zoning Districts	Amend Zoning Bylaw to allow for on-site Accessory Signs by Special Permit	8/15/2017
5/8/2017	ATM	42	7700	Add Section Regarding Temporary Moratorium on Recreational Marijuana	Implement moratorium until June 30, 2018	8/25/2017
5/14/2018	ATM	41	7700	Amend Section Regarding Temporary Moratorium on Recreational Marijuana	Extend moratorium until December 31, 2018	7/12/2018
5/14/2018	ATM	42	2136	Add Definition for Gross Floor Area	Add definition for Gross Floor Area	7/12/2018
5/14/2018	ATM	43	4203	Amend Section Regarding Nonconforming Uses and Structures	Clarify how the allowable 100% increase to nonconforming uses and structures is calculated	7/12/2018
9/5/2018	STM	1	7700	Amend Section Regarding Temporary Moratorium on Recreational Marijuana	Extend moratorium until June 30, 2019	1/2/2019
5/13/2019	STM	1	2100	Amendment to establish marijuana definitions	Amendment to establish marijuana definitions based on type of use.	9/12/2019
5/13/2019	STM	10	7700	Establishing a Recreational Marijuana Establishment Overlay District	Established an overlay zone that would designate acceptable areas for establishments, should any be allowed in the future.	9/12/2019
5/13/2019	STM	11	7700	Amendment to prohibit recreational marijuana facilities	Amendment to prohibit recreational marijuana facilities; does not prohibit medical marijuana facilites	9/12/2019

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/13/2019	ATM	48	Appendix B (map)	Amendment of 145 Stow Road to Agricultural Residential	Amendment of 145 Stow Road to Agricultural Residential	5/16/2019
6/29/2020	ATM	39	2100 + 4000	Amendment of Section 2100 Definitions and Section 4000 Use Regulations	Added a definition for specialty food shops and their allowance based on size and location in town.	12/16/2020
6/29/2020	ATM	40	Appendix B (map)	Rezoning of 3.6 +/- Acres to Agricultural Residential	Rezoned a portion of land off of Prist Lane to the Agricultural Residential District. Land was formerly zoned as Town Center.	12/16/2020
6/29/2020	ATM	41	6003 + 6006	Amendment of parking requirements	Decreased the required parking spaces based on squarefootage and allow more flexible use of common parking areas.	12/16/2020
6/29/2020	ATM	42	6200	Amendment of Outdoor Lighting and Signage	Implemented new language, tables, and graphics to align the bylaw with Dark Skies prinicipals	12/16/2020
6/12/2021	ATM	35	2000 + 4003 + 7200 + 7210	Amendment of language around Small Wireless Facilities to minimize adverse impacts of these to residential neighborhoods		11/15/2021
6/12/2021	ATM	38	4004	Amends prohibited uses to include laboratories or manufacturing that uses biological agents requiring Biosafety Level 3 containment	Amends prohibited uses to include toxic or hazardous materials as defined specifically by the NIH and CDC, including changes to use table, definitions, and footnotes	11/15/2021
5/9/2022	ATM	33	4003	Amend Use regualtions	Amended footnotes to include perameters for small scale and roof mounted solar systems by right	11/28/2022
5/9/2022	ATM	34	7800	Add Small ground mounted and Roof Mounted Solar systems	Provisions that allow small scale and roof mounted solar systems by right. Upon review by the AGO, the Town was instructed to remove the language "and no such installation shall be placed on such land that was deforested within the prior 5 years, other than a Community Solar Farm." The remaining language was approved	11/28/2022

Changes are summarized for reference purposes - see Town Reports for detailed information

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
11/15/2022	STM	10	Recodified	Amended the Zoning Bylaw Article I through Article IX by adopting the Recodification of the existing Zoning Bylaw	Amendement reorganized and renumbered the bylaw in simplified terms. Upon review by the AGO, the Town was instructed to remove "a commercial dump" from Article 6.6.2 (a), Article 6.6.3 (c) "Hazardous Waste" in its entirety, and "not-for-profit" from the definition of Registered Marijuana Dispensary under Article 9. Upon further review by board members, Town Planner, and Land Use Counsel, it appears the AGO has mad a determination on "a commercial dump" in error. February 25, 2025, the AGO reversed their decision on Commercial Dumps, and it has been reinserted to the bylaw verbatum. See Article 44 of ATM 2024.	4/12/2023
11/15/2022	STM	11	Article 9	Amend and expand the definiton of Lot Coverage in Article 9	Amend the definition of “Lot Coverage” as found in Zoning Bylaw Article II entitled “Definitions” subsection 2158 or in Article 9 entitled “Definitions” subsection 9.2 of the recodified Zoning Bylaw	4/12/2023
11/15/2022	STM	12	Article 5.1.2	Striking of footnote 1 of Dimensional Requirements	Amendment of Article 5.1.2 "Dimensional Requirements" to create consistency with the Planning Board Stormwater Rules and Regulations, which are required by state and federal regulations to be more restrictive than the current restrictions in the Zoning Bylaw.	4/12/2023
11/15/2022	STM	13	Article 9.2	Amendment of the definition of Floor Area Ratio	Amendment of Article 9.2 to limit the amount of high cube flex space buildings on a property, by calculating the gross floor area of buildings twice when ceiling height exceeds 12 feet.	4/12/2023

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/9/2023	ATM	46	Article 4.2.2	Amendment of the Accessory Apartment Bylaws	Amendment of Article 4.2.2 to modernize language, remove barriers to implementation of an Accessory Apartment or Accessory Dwelling Unit, and to set decommissioning standards. Upon review by the AGO, the Town was instructed to remove the limit of 10 permits that could be issued each year.	11/20/2023
5/13/2024	ATM	44	Article 6.6.2	Amendment of the "Nuisances" section to add "a commercial dump" as prohibited in any district	After the town provided documents confirming it had a zoning bylaw prohibiting solid waste facilitis in the town prior to July 1, 1987, it was confirmed by the AGO that the town's prohibition on commercial dumps does not conflict with G.L. c. 40A Section 9, so Article 44 was approved.	2/25/2024
5/13/2024	ATM	45	Article 4.2.2 and 5.3 [e]	Amendment of the Accessory Apartment Bylaws	Amendment of Article 4.2.2 to remove language regarding Building Inspector issuing permits, update the language regarding Accessory Apartment or Accessory Dwelling Units and to clarify that they are allowed on lots with single family dwellings. The AGO approved the language with the caveat that as of February 2025, a new law ("Affordable Homes Act") would take effect that would not allow towns to require owner occupancy of the principal dwelling.	12/9/2024

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
5/12/2025	ATM	45	Article 8.2 and 9.2	Amendment of the Floodplain Bylaw to adopt the state's Model Floodplain Bylaw	Amendment of the Floodplain Bylaw by striking the previous bylaw, and establishing a Floodplain Overlay District that complies with the National Flood Insurance Provider's Standards. This article further established definitions within section 9.2 that accompany the district	9/9/2025
		46	Article 2.3	Amendment of the Special Permit Regulations	Amendment of the special permit provisions, clarifying that the simple special permit criteria will applu to all special permit types, in addition to any specific criteria, except for those permits issued for Non-Confromities.	9/9/2025
		47	Article 4.2.2, 5.3, and 9.2	Amendment of the Accessory Apartment Bylaws to comply with the state's protections of Accessory Dwelling Units	Amendment of the bylaw by striking the previous section 4.2.2, and establishing a By Righgt Accessory Dwelling Unit (ADU) bylaw. This Bylaw complies with the state's preotected use ADU provisions, 760 CMR 71.00. The AGO approved this bylaw amendment, but further struck the term "Single-Family" in some instances, noting that the state protections extend to "Principal Dwelling Units"	9/9/2025
		48	Article 6.6.3	Amendment of section 6.6.3 to reestablish a prohibition on Hazardous Waste facilities	Amendment of the bylaw to reestablish a previously struck prohibition on Hazardous Waste facilities in Boxborough. This provision had been struck by the AGO during the 2022 recodification, however the Town successfully demonstrated that the original bylaw was subject to a protected status based on the date of adoption.	9/9/2025

ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
		49	Articles 1-9	Amendment of the Zoning Bylaw to correct minor citation and interpretation errors.	Amendment of the bylaw to clean up a variety of minor errors and omissions following recodification. Errors included incorrect citations, language gaps, and natural errors in interpretation. This article was noticed inproperly and subject to a post review appeal period, under G.L. c. 40, § 32. No appeals were filed and the bylaw was subsequently approved.	10/22/2025
10/14/2025	FTM	1	Article 4.1.3 c and 9.2	Amendment of the zoning bylaw to establish the Public Safety Use, footnote, and definition	Amendment of the zoning bylaw to establish the Public Safety Use allowed by right in every zoning district. a footnote was added to emphasize the need for site plan approval. Finally, a definition was added.	2/11/2026
		2	Article 5.1.2	Amendment to the dimensional regulations to accommodate the Public Safety use type.	Amendment of the footnotes under the Dimensional Schedule, increasing the gross quare footage allowed in the Town Center district. This exemption will extend only to the Public Safety use, with the increase of up to 25,000 sq ft only by special permit.	2/11/2026
		5	Article 8.5	Amendmnet to Establish a MBTA Communities Overlay District.	Amendment to establish an overlay district that complies with the MBTA Communities Act. The district and section 8.5 was approved by the Attorney General. However, due to an error in calculating gross density, the district will need to be amended at a future town meeting.	3/13/2026
5/19/2026	ATM	10	Article 4.2.2	Amendment of the Accessory Apartment section to increase the size of allowed dwelling units	Amendment to the ADU zoning bylaw to increase the size of ADUs from 900 square feet to 1,000 square feet.	9/9/2026

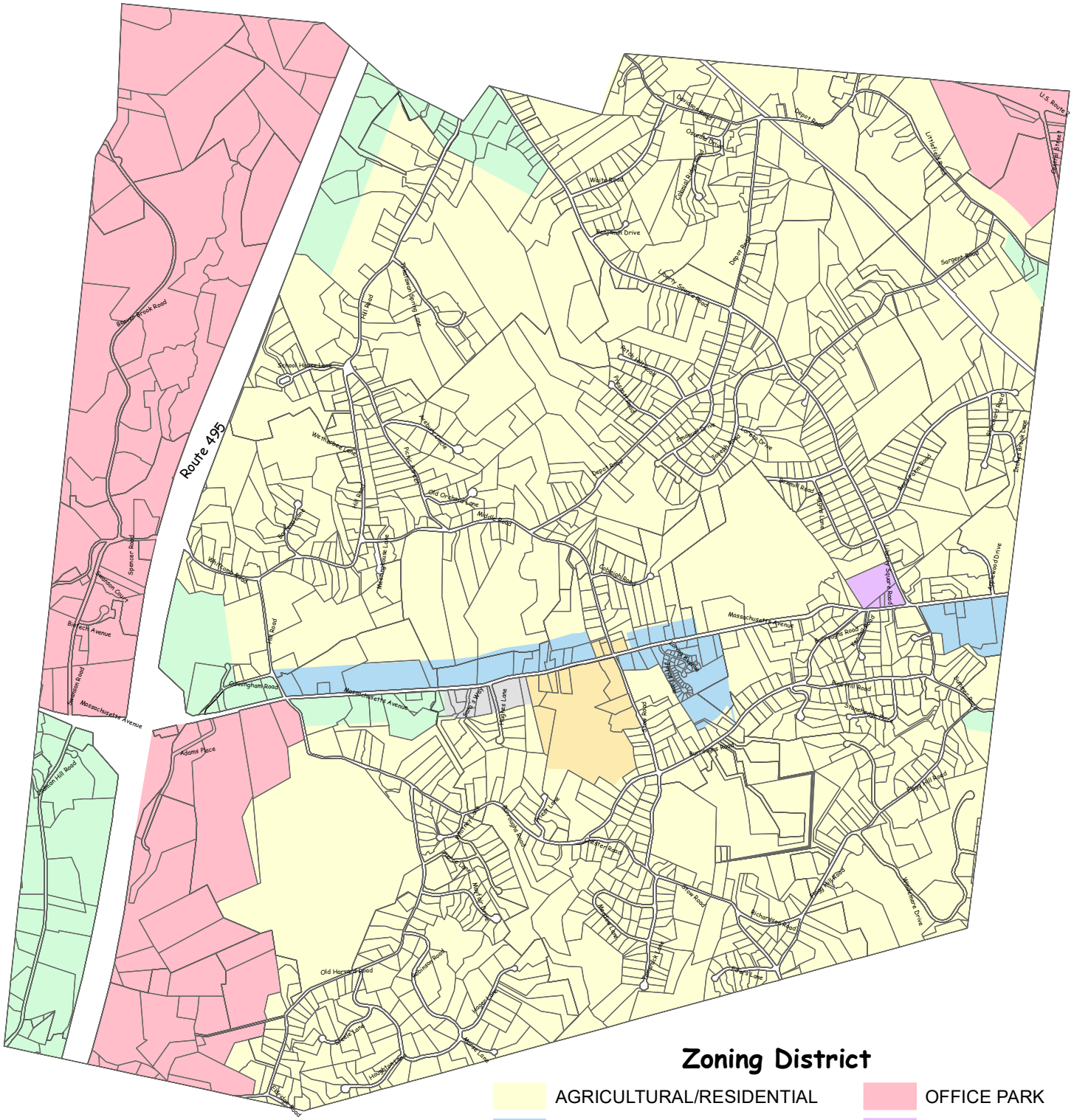
ZONING BYLAW AND ZONING MAP AMENDMENTS

DATE	ANNUAL or SPECIAL	ARTICLE	SECTION	PURPOSE	COMMENT	ATTORNEY GENERAL APPROVAL
		11	Article 6.1.6	Amendment of the off-street parking requirement table to reduce the amount of parking required for businesses and office building and other commercial buildings	Amendment to reduce off-street parking from 1 space per 250 feet of gross floor area to per 500 feet	9/9/2026
		12	Article 9.2	Amendment of the Terms Defined section to change specialty food shop to including sale of alcoholic beverages		9/9/2026

Appendix B

Town of Boxborough
Massachusetts

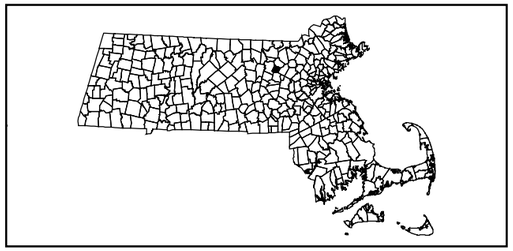
Zoning amended through June 2020

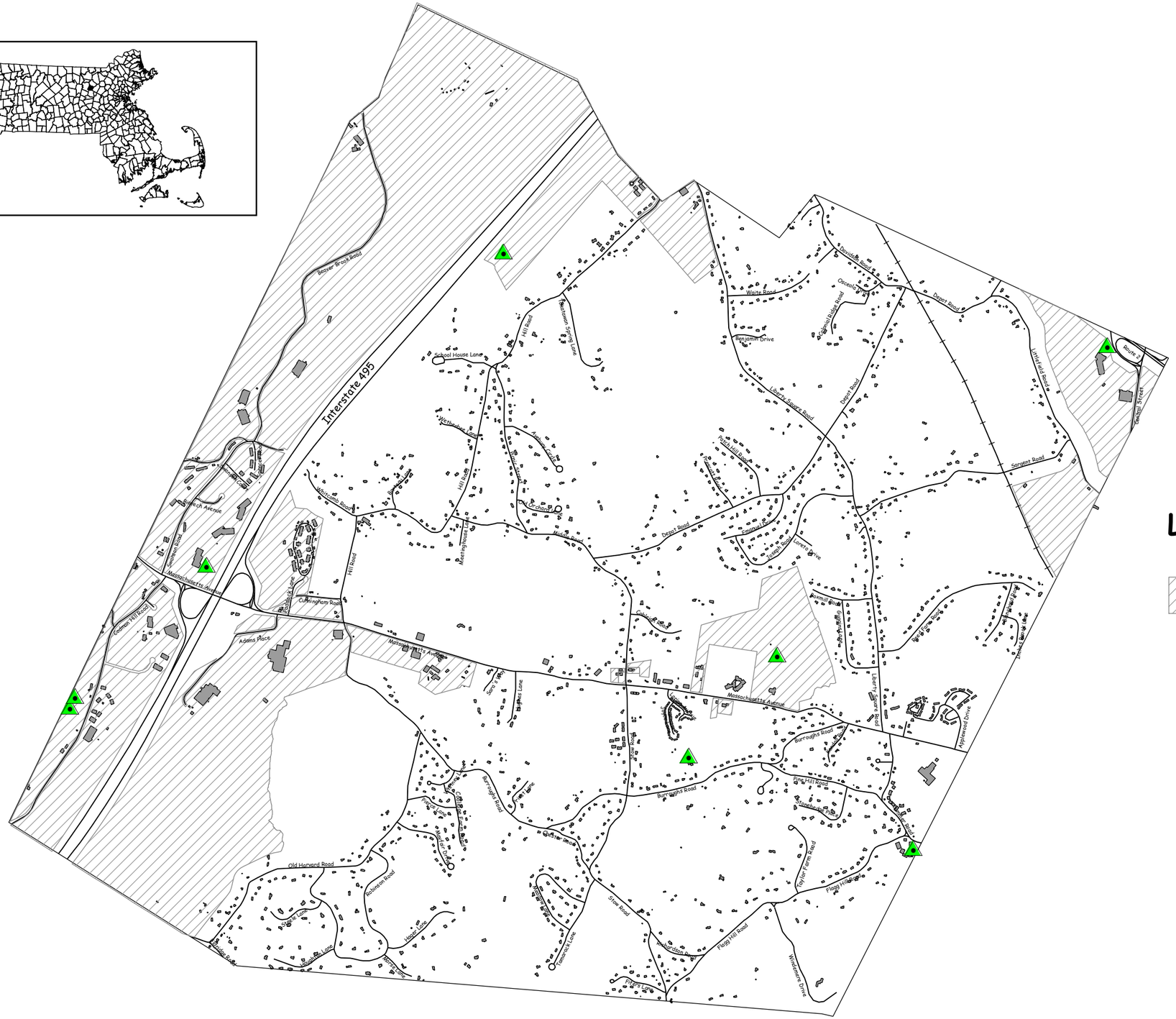


Zoning District

- AGRICULTURAL/RESIDENTIAL
- BUSINESS
- BUSINESS 1
- INDUSTRIAL/COMMERCIAL
- OFFICE PARK
- RESIDENTIAL 1
- TOWN CENTER

2,000 Feet





Town of Boxborough, Massachusetts

Legend

Wireless Overlay District

Existing Wireless Towers

N
W E
S

2,000 1,000 0 2,000 Feet



Town of Boxborough, Massachusetts

N
W
E
S

Legend

MCMOD Overlay District

Feet

4,500 2,250 0 4,500